

USBAR 美国律师考试 MBE联邦法

—
威普研究院
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《美国加州律师考试 (CABAR) 中英双语讲义》

序言

尊敬的未来美国加州律师：

在这个法律全球化日益深入的时代，掌握美国加州法律体系已成为中国法律人参与国际竞争的重要资质。本《美国加州律师考试 (CABAR) 中英双语讲义》专为中国法律从业者设计，融合了美国加州律师考试的前沿动态与中国考生特色备考方法论。

作为编者，我们深刻理解中国考生在备考美国律师考试 USBAR 过程中面临的独特挑战——语言障碍、文化差异、法律体系区别以及繁重的备考压力。为此，我们集结了中美两国具有丰富美国律师考试 USBAR 教学经验的律师和教育专家，历时多月精心编撰这本讲义，力求在保持原汁原味美国法律内容的同时，兼顾中国考生的学习习惯和认知特点。

一 考试权威性与职业价值

美国律师考试 (United States Bar Examination, 简称 USBAR) 是美国各州律师执业资格的统一考试，由全美律师考试委员会 (National Conference of Bar Examiners, 简称 NCBE) 监督，各州律师协会具体组织实施。通过该考试是获得美国各州律师执业资格的必要条件，也是国际法律界公认的专业能力认证。对于中国法律从业者而言，USBAR 证书不仅是个人专业能力的体现，更是参与国际法律事务、处理跨境业务的重要资质。

其中，加州律师考试 (California Bar Examination) 由加州律师协会 (The State Bar of California) 主办，是全美最具挑战性的律师资格考试之一。据数据统计，2025 年 7 月加州律师考试总体通过率为 54.2%，而外国教育背景考生通过率约为 18.2%。这一方面显示其严格性，另一方面也凸显专业备考资料的重要性。通过加州律师考试 CABAR 不仅意味着获得在美国目前最大法律市场的执业资格，更是国际法律业务能力的权威认证。

二 2026 年考试结构详解

美国加州律师考试 CABAR 考试通常为期两天，分为以下三大部分：

多州律师资格考试 (MBE)：为期一天的全美统一考试，包含 200 道单项选择题，考察合同法、宪法、民诉、刑法刑诉、证据法、物权法和侵权法等七个核心领域。

论述题考试 (Essay)：由 5 道论述题组成，除 MBE 的七个领域外，还可能涉及商法、救济、家庭法、信托与遗产法等扩展内容。

实践技能考试 (Performance Test)：包含 1 个“法律实践任务”，测试考生在法律研究、文书起草、案例分析等实务技能。

值得注意的是，全美各州可能在统一考试外增设本州特有的法律内容考核，如加州、纽约州等。本讲义主要针对全美统一考试 (MBE) 部分，对于其他州特定州法内容，建议考生根据目标州要求进行补充学习。

其中，CABAR 采用“5+1+200”考核模式，持续两天：

第一天：

- **Essay Questions (论述题)：**5 道案例分析题，每题 60 分钟
- **Performance Test (实务测试)：**1 项模拟法律任务，时长 90 分钟

第二天：

- **Multistate Bar Examination (MBE)：**200 道选择题，分上下午两场，各 3 个小时



特色考核

- **加州特定法律**，包括：
 - 加州民事诉讼法 (CCP)
 - 加州证据法 (California Evidence Code)
 - 加州商业与职业法规 (B&P Code)

三 中国考生六大挑战

根据我们对近三年中国考生的跟踪研究，主要困难集中在：

法律体系转换：加州“法典化普通法”体系与中国大陆法系的根本差异

语言障碍：法律英语专业性强，同一术语在英美法系和大陆法系中可能含义迥异

思维差异：美国法律强调案例分析和 "issue spotting" 能力，与中国成文法思维不同

知识广度：考试涉及领域广泛，要求考生具备跨部门法的综合应用能力

时间压力：考试题量大，时间分配是重要技巧

实务导向：PT 部分要求具备加州法院文书格式的实操能力

四 讲义架构与使用指南

（一）三维一体内容体系

本讲义采用“三维一体”的编排体系：

知识维度：系统梳理 MBE 七大核心科目和 Essay 扩展科目的法律原则、关键判例和成文法规定。

- 加州 15 门考核科目深度解析
- 2023-2026 年法律修订重点标注
- 加州与联邦法律的适用关系

语言维度：所有内容均以中英双语呈现，重点术语标注对照解释，配备法律英语专项训练。

- 专业术语双语对照表（含西班牙语法律术语对照）
- 加州法院文书标准句式模板
- 易混淆概念对比矩阵

应试维度：每章包含往年真题解析、答题模板和评分标准分析。

- 加州评分标准解密（含考生真实答卷评语）
- 时间管理沙盘演练
- 高频争议点预警系统

（二）阶段化学习方案

第一阶段：基础构建（建议 15-20 周）

- 重点攻克：民法法（含加州 distinction）、证据法（含加州 distinction）、刑法
- 每日任务：
 - 精读 2 个加州关键判例
 - 记忆 10 个核心术语英汉对照
 - 完成 1 道简版论述题
- * 按章节顺序系统学习各部门法基础知识
- * 重点阅读中文释义部分，建立概念框架
- * 完成每章基础练习题，标注疑难问题

第二阶段：能力提升（建议 10-15 周）

- 重点突破：商业法、信托与遗嘱
- 每日任务：
 - 分析 3 道 MBE 练习题
 - 撰写 1 篇完整 PT 文书
 - 参加周末模考（严格计时）
- * 以英文部分为主，中文部分为参考
- * 深入研究案例解析和答题范例
- * 开始计时练习，训练答题速度

第三阶段：冲刺模拟（建议 8-10 周）

- 重点优化：答题节奏、科目薄弱环节
- 每日任务：
 - 全真模拟 1 场 Essay 考试
 - 错题本深度复盘
 - 参加评分标准工作坊
- * 完全使用英文部分，模拟考试环境
- * 重点复习高频考点和易错点
- * 进行全真模拟测试，调整应试策略

（三）加州特色备考策略

基于成功考生的经验数据，科学的学习计划制定，我们推荐以下备考时间分配：

- **全职备考者：**建议每天 6-8 小时，总备考周期 12-16 周
- **在职备考者：**建议每天 3-4 小时，总备考周期 25-35 周

具体时间分配示例，以周六、周日为例：

上午 (3h)：新知识学习 (2h)+ 案例精读 (1h)

下午 (3h)：真题练习 (2h)+ 错题分析 (1h)

晚上 (2h)：重点复习 (1h)+ 法律英语训练 (1h)

（四）高效学习方法

主动学习法：

- 阅读每个案例后尝试用英文总结裁决要点
- 对复杂法律原则制作“一句话记忆卡”
- 和 AI 智学模式进行辩论式讨论

记忆强化技巧：

- 利用“Hermann Ebbinghaus（艾宾浩斯）遗忘曲线（先快后慢、先多后少）”安排复习周期，及时复习是对抗遗忘的关键！
- 为抽象概念创建视觉联想图像
- 将法律原则改编成口诀或故事

应试能力训练：

- MBE 选择题：掌握“排除法”和“最佳选项”判断技巧
- Essay 论述题：熟练使用 IRAC (Issue-Rule-Analysis-Conclusion) 答题结构
- Performance Test 实务题：建立标准化时间分配方案（阅读 / 分析 / 写作 =20%/30%/50%）

加州法律学习四步法

法典定位训练：

- 掌握 California Code 的独特编排逻辑
- 练习快速定位关键条款（如 Family Code § 297.5）

判例区分技巧：

- 识别加州最高法院裁决的约束力层级
- 区分 "published" 与 "unpublished" 意见的引用规则

交叉引用能力：

- 建立宪法→州法→地方条例的适用链条
- 例如：分析租房纠纷时同时考虑 CCP § 1161 与当地 rent control ordinance

实务文档生成：

- 熟练使用加州法院批准的文件格式
- 特别关注诉答文书 (pleadings) 的加州特殊要求

（五）时间管理黄金法则

论述题 (1 小时 / 题)：

- 第 1-5 分钟：快速标注事实中的法律争议点
- 第 5-15 分钟：构建 IRAC 分析框架
- 第 15-50 分钟：撰写（每点分析不超过 7 分钟）
- 第 50-60 分钟：复查加州特定法条引用

MBE 选择题 (1.8 分钟 / 题)：

- 每道题尽量保持平均答题速度（含涂卡环节）
- 标记不确定题目（不超过 30 秒 / 题）
- 尽可能最后 20 分钟专攻标记题

PT 实务论述题 (90 分钟，仅 1 题)：

- 第 1-20 分钟：材料精读与要点标注
- 第 20-30 分钟：大纲构建
- 第 30-80 分钟：文书撰写
- 第 80-90 分钟：格式校对（若时间不够，务必写收尾段）

（六）常见误区与规避建议

根据我们对中国考生的调研，需特别注意避免以下陷阱：

- × 过度依赖中文材料，临场无法适应全英文考试环境
√ 解决方案：逐步增加英文学习比重，最后阶段全英文模拟
- × 死记硬背法条，缺乏灵活应用能力
√ 解决方案：多做案例交叉分析，理解规则背后的政策考量
- × 平均用力，忽视个人薄弱环节
√ 解决方案：定期进行诊断测试，动态调整学习重点
- × 忽视时间管理，考试无法完卷
√ 解决方案：平时严格计时练习，建立各题型时间预警机制

五 资源整合与支持系统

（一）配套资源使用建议

本讲义配有丰富的数字资源：

在线题库系统：包含近 3000+MBE 风格选择题，支持智能组卷和错题追踪

虚拟模拟考试：全真模拟考试环境，提供个性化成绩分析报告

法律术语词典：可随时查询的互动式英美法术语解释库

（二）心理调适与压力管理

美国律师考试备考是一场马拉松而非短跑，心理建设至关重要：

- 设立阶段性目标，每完成一个里程碑给自己适当奖励
- 保持规律作息，后期备考期间每周安排半天完全休息
- 采用 " 番茄工作法 " (25 分钟专注 +5 分钟休息) 提高学习效率
- 当遇到瓶颈时，回顾已取得的进步，保持积极心态

（三）专业支持途径

我们建议您充分利用以下支持资源：

学术支持：定期参加我们的线上直播 & 答疑课程

技术指导：使用我们的智能学习系统进行薄弱环节诊断

经验分享：关注我们邀请的 USBAR 通过者经验分享

个性化辅导：根据需要，提前预约一对一专业辅导 (额外服务)

（四）数字赋能平台

智能诊断系统：

- 基于数千名中国本土考生数据建立的弱点预测模型
- 每两周生成个性化提升建议

加州判例库：

- 精选必读判例解析
- 关键裁决要点的记忆卡片生成工具

虚拟考官系统：

- AI 智能驱动下的答卷即时评估
- 对标加州实际评分标准的反馈报告

（五）心理建设指南

压力管理技巧：

- "5-4-3-2-1" grounding technique：考前焦虑时快速聚焦的方法
- 模考成绩波动分析：建立合理的预期管理

健康备考守则：

- 每学习 50 分钟强制休息 10 分钟
- 保证每周 2 次有氧运动（显著提升记忆效率）
- 采用地中海饮食模式（增强大脑认知功能）

个性化辅导：根据需要，提前预约一对一专业辅导 (额外服务)

亲爱的考生朋友，准备美国加州律师 CABAR 考试无疑是一段充满挑战的旅程，但也将是您法律职业生涯中一次宝贵的成长经历。这本精编讲义凝聚了众多中美法律教育者的智慧与经验，我们期待它能成为您备考路上的得力助手。

请记住，每一个案例的理解、每一个术语的掌握、每一次模拟的进步，都在使您向目标更近一步。当感到艰难时，不妨回想选择这条道路的初心——不仅是为了一纸证书，更是为了拓展法律的视野，提升服务客户的能力。

在这段挑战与成长并存的备考之旅中，请记住：每个研读美国加州判例的夜晚，每次模拟考试的挫折，都在锻造您作为跨境法律人才的特殊禀赋。当您最终宣誓成为美国加州律师的时候，回望这段征程，定会感激此刻全力以赴的自己。

预祝您学习顺利，考试成功！期待在不远的将来，听到您通过考试的好消息。无论遇到任何问题，请记住您不是独自前行，我们的专业团队将全程为您提供支持。

最后，谨以加州最高法院门楣上的箴言与您共勉：

"To the stars through difficulties" (克难而臻至善)。

威普爱生教研院编委会

全体成员

2026 年 05 月 06 日

六 我的学习计划

[illegible]

USBAR MBE 联邦法 核心科目

1

Constitutional Law 宪法

2

Evidence 证据法

3

California Evidence Distinction 加州证据法

4

Tort Law 侵权法

5

Contract Law 合同法

6

Civil Procedure Law 民诉法

7

California Civil Procedure Distinction 加州民诉法

8

Criminal Law 刑法

9

Criminal Procedures 刑事诉讼程序

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宪法

Constitutional Law

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Overview 综述

Constitutional Law is a foundational subject on the U.S. Bar Exam, accounting for a significant portion of the Multistate Bar Examination (MBE) and essay sections. It centers on interpreting the U.S. Constitution to resolve disputes over governmental powers and individual rights, with all tested content rooted in landmark Supreme Court cases. Mastering its eight key domains (as outlined) is critical for exam success, as questions often require applying case precedents to hypothetical scenarios.

宪法是美国律考的核心科目之一，在 MBE 与 Essay 部分均占重要比重。该科目围绕美国宪法的解释展开，解决政府权力与个人权利的争议，所有考点均以最高法院标志性判例为基础。掌握图中列出的八大核心领域对考试通关至关重要，考题通常要求将判例规则应用于假设场景。

I. The Federal Judicial Power 联邦司法权

This domain focuses on the scope of federal courts' authority, including judicial review (Marbury v. Madison), justiciability (standing, ripeness, mootness), and jurisdictional limits (e.g., political questions doctrine). It tests whether a federal court can hear a case, and the rules governing its decision-making power.

该领域聚焦联邦法院的权力范围，包括司法审查权（《马伯里诉麦迪逊案》）、“可诉性”（起诉资格、成熟性、已无实际争议），以及管辖权限制（如政治问题原则）。考点围绕联邦法院是否有权审理某一案件，以及其裁判权的规则展开。

II. The Federal Legislative Power 联邦立法权

Centered on Congress' authority under Article I, this section covers enumerated powers (e.g., commerce clause, taxing/spending power) and limitations (e.g., Tenth Amendment, separation of powers). Questions often involve analyzing whether a federal law is a valid exercise of congressional power, especially regarding the Commerce Clause.

该部分围绕宪法第一条规定的国会权力，涵盖列举权力（如商业条款、征税 / 开支权）与权力限制（如第十修正案、三权分立）。考题常要求分析联邦法律是否为国会权力的合法行使，尤其是商业条款的适用。

III. The Federal Executive Power 联邦行政权

This domain addresses the President's authority under Article II, including executive orders, commander-in-chief power, treaty/executive agreement authority, and checks on executive power (e.g., congressional oversight, judicial review of executive actions like Youngstown Sheet & Tube Co. v. Sawyer).

该领域涉及宪法第二条规定的总统权力，包括行政命令、三军统帅权、条约 / 行政协定权，以及对行政权的制约（如国会监督、对行政行为的司法审查）。

IV. Federalism 联邦制、联邦主义

This section explores the division of power between the federal government and states, including preemption (federal law overriding state law), state sovereign immunity (Eleventh Amendment), and state powers (e.g., police power).

该部分探讨联邦与州之间的权力划分，包括优先适用（联邦法律优于州法律）、州主权豁免（第十一修正案）与州权力（如治安权）。

V. The Structure of the Constitution's Protection of Individual Liberties 宪法对个人自由的保护框架

This domain outlines the procedural framework for enforcing individual rights, such as incorporation doctrine (applying Bill of Rights to states via Fourteenth Amendment), due process (substantive vs. procedural), and the standard of review (rational basis, intermediate scrutiny, strict scrutiny) courts use to evaluate government actions.

该领域概述了保障个人权利的程序框架，包括合并原则（通过第十四修正案将权利法案适用于州）、正当程序（实体性 vs. 程序性），以及法院评估政府行为的审查标准（合理基础、中度审查、严格审查）。

VI. Individual Liberties 个人自由

This section covers substantive due process rights beyond the Bill of Rights, such as privacy rights (e.g., Roe v. Wade, Obergefell v. Hodges), fundamental rights (e.g., right to travel), and limits on government interference with personal autonomy. Questions focus on whether a government action violates a fundamental liberty interest.

该部分涵盖权利法案之外的实体正当程序权利，如隐私权（如《罗诉韦德案》《奥贝格费尔诉霍奇斯案》）、基本权利（如旅行权），以及政府干预个人自主的限制。考题聚焦政府行为是否侵犯基本自由利益。

VII. Equal Protection 平等保护

Centered on the Fourteenth Amendment's Equal Protection Clause, this domain tests classification-based discrimination (e.g., race, gender, age) and the corresponding scrutiny standards.

该领域围绕第十四修正案的平等保护条款，考查基于分类的歧视（如种族、性别、年龄）及对应的审查标准。

VIII. First Amendment 第一修正案

This section focuses on First Amendment protections for free speech (e.g., content-based vs. content-neutral regulations, symbolic speech, commercial speech) and religion (establishment clause, free exercise clause).

该部分聚焦第一修正案对言论自由（如基于内容 vs. 中立于内容的规制、象征性言论、商业言论）与宗教（确立条款、自由行使条款）的保护。



Before the Class

1. 宪法的重要性：

MBE200 道题中至少占 1/8，还经常在 Essay 题目中出现

2. 宪法的难度：

难理解、容易忘、深奥

3. 如何摆正心态：

通过概念 + 案例 + 背景了解的方式掌握高频考点；多次重复学习以更好地掌握知识点；别过于广泛撒网，也别钻牛角尖。



History of the US Constitution



1. 1776 年 7 月 4 日，《独立宣言》（Declaration of Independence）通过，13 个殖民地独立。

2. 1777 年，《联邦条例》（Articles of Confederation）通过。

3. 1786 年，谢斯起义（Shays Rebellion），推动《联邦条例》的改革。

4. 1787 年，12 个州的 55 个代表修改《联邦条例》，形成了现在看到的《美国宪法》的 7 个条款。

5. 1789 年，13 个州里有 9 个州成功批准了该项议案，终于生效，成为世界上最古老并且目前仍旧有效的宪法。

6. 1789 年，Bill of Rights（包括十个 Amendments）制定，在 1791 年被 ratify。

7. 1865 年（南北战争后），the 13th Amendment（废除奴隶制）通过，同年被国会批准。

8. 1868 年，the 14th & 15th Amendment 通过。

I.The Federal Judicial Power 联邦司法权

Overview 综述

The federal judicial power defines the scope of authority for U.S. federal courts, centered on the "cases and controversies" requirement (a core limit on judicial review). It covers three key areas: the procedural prerequisites for federal courts to hear cases, the Supreme Court's review authority, and the constraints on lower federal courts' jurisdiction. All of them are rooted in constitutional principles and landmark precedents.

联邦司法权明确了美国联邦法院的权力范围，核心是“案件和争议”的要求（这是对司法审查权的关键限制）。其内容涵盖三个核心领域：联邦法院受理案件的程序前提、最高法院的复审权，以及对联邦下级法院管辖权的约束。这些规则均以宪法原则和标志性判例为基础。

The **Cases and Controversies Requirements** set the threshold for federal court jurisdiction: Standing ensures the plaintiff has a concrete, personal stake in the outcome; Ripeness requires the dispute to be sufficiently developed (not hypothetical); Mootness bars cases where the issue has already been resolved; the Political Question Doctrine excludes disputes better suited for the legislative or executive branches (e.g., impeachment proceedings).

案件和争议的要求设定了联邦法院管辖权的门槛：原告资格要求原告与案件结果有具体、个人的利害关系；成熟原则要求争议已充分形成（非假设性）；案件已无实际意义规则禁止审理争议已解决的案件；政治问题原则则排除更适合立法或行政分支处理的争议（如弹劾程序）。

Supreme Court Review refers to the Court's authority to hear appeals from lower federal courts and state supreme courts (in cases involving federal law). This power is discretionary (the Court typically grants review only for cases of national importance or conflicting lower court decisions), shaping the development of federal constitutional law. **最高法院复审**指最高法院有权审理来自联邦下级法院和州最高法院的上诉（涉及联邦法律的案件）。这一权力是裁量性的（法院通常仅对具有全国重要性或下级法院判决存在冲突的案件准予复审），对联邦宪法法律的发展起决定性作用。

Lower Federal Court Review is subject to specific limits: These courts may not hear suits against state governments (rooted in state sovereign immunity); the Abstention doctrine requires them to defer to state courts in certain cases (e.g., when a state law issue is unresolved), avoiding unnecessary federal-state conflicts.

联邦下级法院的复审受特定限制：这些法院不得审理针对州政府的诉讼（基于州主权豁免）；弃权规则要求它们在特定案件中（如州法律问题未解决时）尊重州法院的裁判，以避免不必要的联邦与州之间的冲突。

A. The Requirements for Cases and Controversies 案件与争议的要求

Defined by Article 3 of the U.S. Constitution with a requirement for cases and controversies, i.e., a case must be **justiciable**.

美国宪法第三条规定了对案件和争议的要求，即案件必须是**可由法庭裁决的**。

This means Federal Courts must decide actual cases and controversies and do **not render advisory opinions**.

这意味着联邦法院必须裁决实际的案件和争议，而**不能发表咨询性意见**。

1.Standing 原告资格

Standing is the issue of whether the plaintiff is the proper party to bring a matter to the court for adjudication. Standing must be met at all stages of litigation, including on appeal.

原告资格是指原告是否是将某事项提交法院裁决的适格当事人这一问题。在诉讼的所有阶段，包括上诉阶段，都必须具备原告资格。

a.Injury 损害

The plaintiff must allege and prove that he or she has been injured or imminently will be injured (future injury).

原告必须主张并证明自己已经受到损害或即将受到损害（未来的损害）。

- ① Plaintiffs only may assert injuries that they **personally** have suffered;
原告只能主张自己**亲身遭受**的损害；

- ② Plaintiffs seeking injunctive or declaratory relief must show **a likelihood of future harm**.
寻求禁令救济或确认性救济的原告必须证明存在**未来受到损害的可能性**。

💡【MBE 考试提示】

In an MBE question, if asked“which of the plaintiff has the best standing,”always choose the one who is personally suffered; if there is more than one who is personally suffered, choose the one who is suffered a monetary loss.

在 MBE 的题目中，如果问到 “以下哪位原告最具备原告资格”，总是选择亲身遭受损害的那位；如果有多位亲身遭受损害，则选择遭受金钱损失的那位。

🏛️ Supreme Court Case : Sierra Club v. Morton (Secretary of the Interior of the United States) 1972 最高法院案例：1972 年塞拉俱乐部诉莫顿（美国内政部长）案

Disney wanted to build a ski resort in Mineral King Valley, Sierra Club, a membership corporation with a special interest in the conservation and sound maintenance of the national parks, game refuges, and forests of the country, brought this suit for a declaratory judgment and an injunction to restrain federal officials from approving an extensive skiing development in the Mineral King Valley because they believed that the project would cause irreparable harm to the public interest.

迪士尼公司想在米纳勒尔金谷建造一个滑雪胜地，塞拉俱乐部是一个会员制社团，对国家公园、野生动物保护区和森林的保护及合理维护有着特殊兴趣。该俱乐部提起诉讼，要求获得宣告性判决并发布禁令，以阻止联邦官员批准在米纳勒尔金谷进行大规模滑雪开发项目，因为他们认为该项目会对公共利益造成不可挽回的损害。

On the theory that this was a public action involving questions as to the use of natural resources, petitioner did not allege that the challenged development would affect the club or its members in their activities, or that they used Mineral King, but maintained that the project would adversely change the area's aesthetics and ecology. 基于这是一项涉及自然资源使用问题的公共行动这一理论，塞拉俱乐部并未声称受到质疑的开发项目会影响该俱乐部或其成员的活动，也未表明他们使用过米纳勒尔金谷，而是坚称该项目会对该地区的美学和生态产生不利影响。

The case was brought up to Supreme Court in the end, and the Supreme Court ruled that Sierra Club had no alleged any legal interest in the case, because they failed to allege that any of their members has ever used Mineral King. Then, they sent some of the members to walk in the Mineral King and amended their allegations accordingly. Then the court said that they had standing, since they had alleged a personally suffered injury. 该案最终上诉至最高法院，最高法院裁定塞拉俱乐部在该案中未主张任何合法权益，因为他们未能证明其任何成员曾使用过米纳勒尔金谷。随后，该俱乐部派了一些成员前往米纳勒尔金谷，并相应地修改了诉求。之后，法院表示该俱乐部具备原告资格，因为他们主张了亲身遭受的损害。

🏛️ Supreme Court Case : City of Los Angeles v. Lyons 1983 最高法院案例：1983 年洛杉矶市诉莱昂斯案

In 1977, Lyons was pulled over by a Los Angeles police officer for a traffic violation. Although Lyons offered no resistance, the officer asked him to step out of the car, and proceeded to place Lyons in a chokehold, rendering Lyons unconscious. Lyons sued the municipality and sought damages and injunctive relief in District Court for the Central District of California. He asked the court to issue an injunction preventing the police department from using chokeholds in the future unless circumstances were to result in death or serious bodily injury if force was withheld. 1977 年，莱昂斯因交通违规被洛杉矶警察拦下。莱昂斯并未反抗，但警察要求他下车，并对他实施了锁喉动作，致使他失去意识。莱昂斯起诉市政府，并向加利福尼亚中区地方法院寻求损害赔偿和禁令救济。他请求法院发布禁令，禁止警察局在未来除非在不使用武力会导致死亡或严重身体伤害的情况下才能使用锁喉动作。

The issues in this case were “does this case present an actual case or controversy that can be determined by the Supreme Court? And if so, does Lyons have standing to seek injunctive relief against the municipality of Los Angeles?” 该案的争议焦点是 “该案是否构成可由最高法院裁决的实际案件或争议？如果是，莱昂斯是否具备对洛杉矶市政府寻求禁令救济的原告资格？”

The Supreme Court held that this case does not present an actual case or controversy as required in the Constitution under Article III. Past illegal conduct, by itself, is insufficient to establish an actual case or controversy for injunctive relief. Even though Lyons was injured by the police in the past, this act alone does not establish that Lyons is threatened with immediate injury or that he will be pulled over and placed in a chokehold again. In this case, injunctive relief against the municipality may or may not address the injury suffered by Lyons. He could seek damages for any injuries he sustained from the chokehold (i.e. hospital bills, etc.), but he did not have standing to enforce an injunction where it was not clear if others would be placed in a chokehold in the future.

最高法院认为，该案并不构成宪法第三条所要求的实际案件或争议。过去的非法行为本身不足以构成寻求禁令救济的实际案件或争议。尽管莱昂斯过去曾被警察伤害，但仅此行为并不能证明莱昂斯面临即将到来的伤害威胁，或者他会再次被拦下并被锁喉。在本案中，针对市政府的禁令救济可能解决也可能无法解决莱昂斯所遭受的伤害。他可以就锁喉所受的任何伤害（如医疗费等）寻求损害赔偿，但在不清楚未来是否会有人被锁喉的情况下，他不具备执行禁令的原告资格。

b.Causation and Redressability 因果关系 & 可救济性

The plaintiff must allege and prove that the **defendant caused the injury** so that a favorable court decision is likely to remedy the injury.

原告必须主张并证明**被告造成了损害**，以便法院作出有利判决时有可能补救该损害。

Supreme Court Case:

最高法院案例：

There is a federal statute saying that if a hospital wants to have tax exempt status, it has to provide free care to indigents. IRS enacted another rule, saying that hospitals could keep their tax exempt status without providing free care to indigents. Poor people went to hospitals requesting free care yet being rejected. Thus they sued IRS to strike down the inconsistent rule with that of federal statute. The Supreme Court though ruled that the plaintiffs lacked standing. Supreme Court said that the plaintiffs could not demonstrate that it was the revenue rule as opposed to the economics of the situation that was causing the lack of free care, thus no standing.

有一项联邦法规规定，如果医院想要获得免税资格，就必须为贫困人口提供免费医疗服务。美国国税局（IRS）颁布了另一项规则，称医院无需为贫困人口提供免费医疗服务也可保留免税资格。生活困难的人们前往医院要求免费治疗却遭到拒绝。于是他们起诉国税局，要求推翻与联邦法规不一致的规则。然而，最高法院裁定原告缺乏原告资格。最高法院表示，原告无法证明是税收规则而非实际经济状况导致医院不提供免费医疗服务，因此不具备原告资格。也就是说，无法证明是原告的行为导致了医院不提供免费医疗服务，还是医院本身不想获得免税资格。因此，在无法证明医院的行为与原告损失存在因果关系的情况下，原告不具有原告资格。

c.No Third Party Standing 不存在第三方原告资格

A plaintiff cannot assert claims of others, of third parties, who are not before the court.

原告不能主张未出庭的其他人、第三方的权利主张。

① **Exception 1:** Third party standing is allowed if there is a close relationship between the plaintiff and the injured third party.

例外 1：如果原告与受损害的第三方之间存在密切关系，则允许第三方原告资格。

Example 1:

Doctor Patient Relationship. This relationship is close enough for a doctor to argue rights for his patients, such as the rights to abort. Actually, the right to abort belongs to women (patients), but since doctors have close relationship with patients, they can sue based on the patients' injuries.

医患关系 - 这种关系足够密切，医生可以为患者主张权利，比如堕胎权。实际上，堕胎权属于女性（患者），但由于医生与患者关系密切，他们可以基于患者所受的损害提起诉讼。

Example 2:

Michael Newdow challenged the words “under God” in the Pledge of Allegiance in public schools on behalf of his daughter since he thought that it was an impermissible establishment of religion. But the Supreme Court dismissed the case for lack of standing because the father divorced the mother therefore, he had no custody of the daughter, and the mother did not want the case to go. The Supreme Court in here did not recognize the third party standing in this case.

迈克尔·纽道代表女儿对公立学校宣誓词中“在上帝之下”这句话提出质疑，他认为这是不允许的确立宗教的行为。但最高法院以缺乏原告资格为由驳回了此案，因为孩子的父亲与母亲离婚后没有监护权，而孩子的母亲并不希望此案继续进行。在此案中，最高法院不承认第三方原告资格。

② **Exception 2:** Third party standing is allowed if the injured party is unlikely to be able to assert his or her own rights. (Ex. Unconscious victim in a criminal case).

例外 2：如果受损害方不太可能能够主张自己的权利，则允许第三方原告资格（例如刑事案件中无意识的受害者）。

③ **Exception 3:** An organization may sue for its members (associational standing), if:

例外 3：一个组织可以代表其成员提起诉讼（社团原告资格），条件是：

- The members would have standing to sue;
成员具备起诉的原告资格；
- The interest are germane/relevant to the organizations purposes; and
相关利益与该组织的宗旨密切相关；以及
- Neither the claim nor relief requires participation of individual members.
无论是诉讼请求还是救济都不需要个别成员的参与。

d.No Generalized Grievances 不能因为广义上的不满而去起诉

The plaintiff must not sue solely as a citizen or as a taxpayer interested in having the government follow the law.

原告不能仅仅以公民或希望政府依法行事的纳税人身份提起诉讼。

Exception: Taxpayers have standing to challenge government expenditures pursuant to federal (or state or local) statutes as violating the Establishment Clause (financial aid to religious institutions).

例外：纳税人有权质疑政府根据联邦（或州、地方）法规进行的支出是否违反政教分离条款（对宗教机构的财政援助），重点是这笔钱是政府作为政府支出提供的。

Establishment Clause: Establishment Clause of the First Amendment to the Constitution, together with that Amendment's Free Exercise Clause, **form the constitutional right of freedom of religion**. The relevant constitutional text is: “**Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof...**”

政教分离条款：宪法《第一修正案》中的政教分离条款与该修正案中的宗教活动自由条款共同构成了宗教信仰自由的宪法权利。相关宪法文本为：“国会不得制定关于确立国教或禁止信教自由的法律……”

The Establishment Clause is a limitation placed upon the United States Congress preventing it from passing legislation forcing an establishment of religion, broadly making it illegal for the government to promote theocracy or promote a specific religion with taxes. The second half of the Establishment Clause inherently prohibits the government from preventing the free exercise of religion, which broadly forbids the government from establishing state atheism.

《确立条款》是对美国国会的一种限制，防止其通过强制确立宗教的立法，广义上规定政府利用税收推广神权政治或推广特定宗教属于非法行为。《确立条款》的后半部分本质上禁止政府妨碍宗教信仰的自由行使，广义上禁止政府确立国家无神论。

🔑 Supreme Court Case : Flast v. Cohen 1968

最高法院案例：1968 年弗拉斯诉科恩案

Congress had funded, under Titles I and II of the Elementary and Secondary Education Act of 1965 (the Act), writing, arithmetic, and other subjects in religious schools. Appellants brought suit, claiming that these expenditures violated the Establishment and Free Exercise clauses of the First Amendment of the Constitution. The only claim to standing provided was that all Appellants were taxpayers. The issue here is that "have the Appellants established standing to bring suit in an Article III court?"

国会根据 1965 年《中小学教育法》（该法案）的第一和第二篇，资助宗教学校的写作、算术及其他科目教学。上诉人提起诉讼，声称这些支出违反了宪法《第一修正案》的《确立条款》和《自由行使条款》。他们主张具备原告资格的唯一理由是所有上诉人都是纳税人。这里的问题是“上诉人是否具备在第三条规定的联邦法院提起诉讼的原告资格？”

The Supreme Court states that standing refers to the plaintiff(s) having a personal stake in the outcome of the case. In the taxpayer context, the Supreme Court outlines two requirements to show this personal stake.

最高法院指出，原告资格是指原告在案件结果中有个人利害关系。在纳税人的情况下，最高法院概述了两个要求来证明这种个人利害关系。

The first requirement is that he must establish a logical link between [taxpayer] status and the type of legislative enactment attacked. Second, he must show that the challenged enactment exceeds specific constitutional limitations upon the exercise of the taxing and spending power and not simply that the enactment is generally beyond the powers delegated to Congress by Article I, Section 8. Therefore, the Court ruled that Appellants had satisfied both nexuses and therefore had standing to sue as taxpayers.

第一个要求是，他必须在（纳税人）身份与受到攻击的立法制定类型之间建立逻辑联系。第二个要求是，他必须证明受到质疑的立法超出了对征税和支出权力行使的具体宪法限制，而不仅仅是该立法超出了第一条第八款授予国会的一般权力范围。因此，法院裁定上诉人满足了这两个关联要件，因此具备以纳税人身份起诉的原告资格。

🔑 Supreme Court Case: Taxpayers don't have standing to challenge government grants of property to religious institutions.

最高法院案例：纳税人无权质疑政府向宗教机构赠予财产的行为。

The federal government gave over a half million dollars of property to a religious college in Pennsylvania. Taxpayers brought a suit and claimed that they had standing since they were alleging a violation of the Establishment Clause. But the SC said no standing. The SC said that taxpayers have standing to challenge government expenditure of money as violating the Establishment Clause, but no standing to challenge government grants of property.

联邦政府向宾夕法尼亚州的一所宗教学院赠予了价值超过 50 万美元的财产。纳税人提起诉讼，声称他们具备原告资格，因为他们指控这一行为违反了政教分离条款。但最高法院表示他们不具备原告资格。最高法院称，纳税人有权质疑政府资金支出违反政教分离条款的行为，但无权质疑政府赠予财产的行为。

📌 Example 1:

President George W. Bush created an office of faith-based programs. It was meant to facilitate churches, synagogues, mosques directly receiving federal social service money. Taxpayers brought a challenge to this and said that they had standing, because they alleged a violation of the Establishment Clause. But the SC ruled that they had standing to challenge government expenditures pursuant to a statute as violating the Establishment Clause, but no standing to challenge expenditures from general executive revenue.

乔治·W·布什总统设立了基于信仰的项目办公室。该办公室旨在方便教堂、犹太教堂、清真寺直接获得联邦社会服务资金。纳税人对此提出质疑，并声称他们具备原告资格，因为他们指控这一行为违反了政教分离条款。但最高法院裁定，他们有权质疑根据法规进行的政府支出违反政教分离条款的行为，但无权质疑从政府一般行政收入中进行的支出。

📌 Example 2:

The State of Arizona adopted a law that allowed parents to get a tax credit if they gave money to a private school tuition organization. Almost all of this money went to religious schools. Taxpayers brought a suit, but the SC said that they lacked standing. The SC said that taxpayers have standing to challenge government expenditures, but not tax credits, as violating the Establishment Clause.

亚利桑那州通过了一项法律，允许父母在向私立学校学费组织捐款时获得税收抵免。几乎所有这些资金都流向了宗教学校。纳税人提起诉讼，但最高法院表示他们缺乏原告资格。最高法院称，纳税人有权质疑政府支出，但无权质疑税收抵免违反政教分离条款的行为。也就是说，使宗教机构受惠的州的税收抵免政策不能告。

2. Ripeness 成熟原则

Ripeness is the question of whether a federal court may grant pre-enforcement review of a statute or regulation.

成熟原则考虑的问题是联邦法院是否能在一个法规或者条例尚未实行之时（尚未对当事人发生具体影响之前），就先行对其进行审查的问题。

在这个成熟原则之下，除非争议的法规或条例已经发展成熟到适合做出司法裁决的阶段（满足下面两个条件的时候），法院才愿意介入（给予确认判决 declaratory judgment 和禁止令 Injunction）。这一原则存在的基本理由在于避免法院过早进行裁判，陷入抽象的行政政策争论，同时也保护行政机关在最后决定作出之前及行政行为对当事人发生具体影响之前，免受法院干涉。

a. The **hardship** that will be suffered without pre-enforcement review.

推迟审查将对当事人造成**困难**。

b. The **fitness** of the issues and records for judicial review. If it's a pure legal issue, it'd more likely to be fit.

争议的问题**适用于**法院的判决。如果是纯粹的法律问题，则更有可能适用。

💡 【MBE 考试提示】

For both the MBE and essays tip: Whenever you see a constitutional law question where it says there is a request for a declaratory judgement (确认判决, 宣告室判决), consider the possibility of a ripeness issue. 对于 MBE 考试和论述题的提示：每当你看到一道宪法问题，其中提到有请求确认判决（宣告性判决）时，要考虑是否存在成熟原则相关的问题。

🔑 Supreme Court Case: Abbott Laboratories v. Gardner 1967

最高法院案例：1967 年雅培实验室诉加德纳案

Congress amended the Federal Food, Drug and Cosmetic Act in 1962 to require manufacturers of prescription drugs to print the established name (generic name) of the drug prominently. The Commissioner of Food and Drugs published proposed regulations (in addition to the Act) which required all drug labels and drug advertisements to put the established name next to the proprietary name every time the proprietary name appeared. A group of 37 drug manufacturers (the Petitioners) challenged the regulations, alleging that the Commissioner exceeded his authority in making such a regulation. The government argued that the case was not ripe because the regulation had yet to be enforced. The case was finally brought up to the Supreme Court.

1962 年，国会修订了《联邦食品、药品和化妆品法案》，要求处方药制造商显著标注药品的通用名称（非专利名称）。食品药品监督管理局局长发布了拟议法规（除该法案外），要求所有药品标签和药品广告每次出现商品名时，都要在旁边标注通用名。一组 37 家药品制造商（请愿人）对这些法规提出质疑，声称局长制定这样的法规超出了其职权范围。政府辩称该案件尚未成熟，因为法规尚未实施。该案最终上诉至最高法院。

The issue here is that whether the issues ripe for judicial decision and would withholding the consideration result in hardship to the parties.

这里的问题是这些问题是否成熟到适合进行司法裁决，以及推迟审议是否会给当事人造成困难。

The Supreme Court held that the issues presented were ripe for judicial consideration, and withholding judicial consideration would result in hardship to the parties. The regulations would have a direct day-to-day impact on the operation of the companies, who either had to incur huge costs to comply with the regulations' requirements or risk prosecution. Moreover, the Court discussed the fitness of issue for pre-enforcement review. Both parties agreed that this issue was purely a legal issue, therefore it is more likely to be fit.

最高法院认为，提出的问题适合进行司法审议，并且推迟司法审议会给当事人造成困难。这些法规会对公司的日常运营产生直接影响，公司要么承担巨额成本以遵守法规要求，要么面临被起诉的风险。此外，法院还讨论了在法规实施前进行审查的问题是否合适。双方都认为这个问题纯粹是法律问题，因此更有可能适合进行审查。

Review Activity

A state adopted a law requiring that all cars sold within the state be painted with fire-retardant material. The law empowered a state agency to issue rules specifying the required treatment. A manufacturer of cars that sold its products in the state brought suit in federal court for a declaratory judgment as soon as the law was adopted, alleging that the statute violated the United States Constitution.

某州通过一项法律，要求该州内销售的所有汽车都必须喷涂防火材料。该法律授权一个州机构发布具体规定所需处理方式的规则。一家在该州销售产品的汽车制造商在该法律通过后立即向联邦法院提起诉讼，要求获得确认判决，声称该法规违反了美国宪法。

What should the court do?

法院应该怎么做？

- (A) Entertain the suit, because a federal question is involved.
受理该诉讼，因为涉及联邦问题。
- (B) Entertain the suit, because an action for declaratory relief is a proper method of deciding constitutional questions.
受理该诉讼，因为寻求确认性救济是裁决宪法问题的适当方式。
- (C) Abstain from the assertion of jurisdiction until a state court has the opportunity to construe the statute.
在州法院有机会解释该法规之前，暂不行使管辖权。
- (D) Dismiss the suit.
驳回该诉讼。

Analysis:

正确选项为 (D)。

尽管州法要求所有车辆都需配备防火涂层，但该要求的具体细则应由某一州政府机构制定，而目前该机构尚未出台相关具体规定。

在这种情况下，原告难以主张该州法条款符合成熟原则 (Ripeness) 的要求，因为可能对原告产生影响的防火涂层具体规定甚至还未制定完成。

因此，原告此时起诉属于时机过早，不符合成熟原则的规定，法院应当驳回此案 (dismiss the case)。

3. Mootness 诉由消失之事项、无实际意义

If events after the filing of a lawsuit end the plaintiff's injury, the case must be dismissed as **moot**.

如果在原告起诉之后发生了将原告之伤害终止之事由 / 事件，案件一定会基于诉讼已**无实际意义**而被驳回。

a.Exception 1: The wrong is capable of repetition but evading review because of its **inherently limited time duration**.

例外 1: 做错的事情有能力 (有可能) 不断的重复，但是每次都因为**有限的时间**而能够逃避审查。

Supreme Court Case: Roe v. Wade 1973

最高法院案例：1973 年罗伊诉韦德案

Roe filed a lawsuit in 1970 when she was pregnant. She wanted to have an abortion but she couldn't. She challenged the Texas statute for prohibiting all abortions. By the time the Supreme Court decided the case in January 1973, she was obviously no longer pregnant. The state of Texas moved to dismiss on mootness grounds, the Supreme Court said that there might be wrong capable of repetition that could always evade the review because she could get pregnant again in the future and seek an abortion, and it will always evade review because the time for human gestation is inherently shorter than the time for human litigation.

1970 年，怀孕的罗伊提起了诉讼。她想堕胎，但无法做到。她对德克萨斯州禁止一切堕胎的法令提出质疑。1973 年 1 月，最高法院对此案作出裁决时，她显然已不再怀孕。德克萨斯州以诉讼无效为由驳回了诉讼，最高法院说可能存在重复的错误总是可以逃避审查，因为她将来可能再次怀孕并寻求堕胎，而由于人类妊娠期本质上比人类诉讼的时间短，因此这些错误可以逃避审查。

b.Exception 2: Voluntary Cessation 例外 2: 自愿停止、中止

If the defendant voluntarily halts the offending conduct, but is free to resume it at any time, the case will not be dismissed as moot.

如果被告自愿地终止了 offending conduct，但是只要被告愿意他可以随时继续其行为，此时案件不能因为 Mootness 被驳回。

c.Exception 3: Class Action Suits 例外 3: 集体诉讼

A class action will not be dismissed if the named plaintiff's claim becomes moot so long as one member of the class has an ongoing injury.

在集体诉讼当中，只要任意一原告仍有正在发生的 injury，那么整个集体诉讼就不会因为 Mootness 而被驳回。

Review Activity

A 15-year-old sophomore high school student became pregnant, and the school board required her to be suspended for school until she gave birth to the baby. The girl did not want to be suspended, she still wanted to attend her regular class.

一名 15 岁的高二学生怀孕了，学校董事会要求她休学，直到她生下孩子。这个女孩不想被停学，她仍然想去正常上课。

She sued the school district in federal district court, demanding that she be allowed to attend her regular classes. Before her case came to trial, the girl gave birth to the child. Subsequently, the district ceased the suspension and reinstated her in her regular classes.

她向联邦地区法院起诉该学区，要求允许她正常上课。在案件审判之前，女孩生下了孩子。随后，该地区停止了对她的休学，并恢复了她的正常课程。

When her suit comes before the federal district court, what should the court do?

当她的诉讼提交到联邦地区法院时，法院应该怎么做？

- (A) Dismiss the action, because she is no longer pregnant.
驳回诉讼，因为她已不再怀孕。
- (B) Dismiss the action, because she is no longer required to attend the special classes.
驳回诉讼，因为她不再需要参加特殊课程。
- (C) Hear the case on the merits, because she may get pregnant again before she graduates from the high school.
就事论事，因为她可能在高中毕业前再次怀孕。
- (D) Hear the case on the merits, because it impacts the right to privacy, which is an important federal issue.
根据案情审理此案，因为它影响隐私权，而隐私权是一个重要的联邦问题。



Analysis:

正确选项为 (C)。

这是案件已无实际意义 (mootness) 考点中最常考的一类题目，完美契合了违法行为具有可重复性，但因其存续时间固有受限而无法接受审查的情形。争议选项可能是 (D)：尽管该选项看似有一定道理，但是否允许学生参加常规课程并不影响学生的隐私权，且本案也不涉及联邦法律问题，因此 (D) 并非正确选项。

4. The Political Question Doctrine 政治问题原则

The political question doctrine refers to constitutional violations that the federal courts will not adjudicate. 如果是政治问题，法院不予受理。

- a. The US shall guarantee to **each state a republican form of government** (Article 4, Section 4).
美国保证**各州实行共和政体**（《宪法》第 4 条，第 4 款）。



【MBE 考试提示】

在 MBE 考试中，只要看到质疑共和制政府形式（challenge republican form of government）的题目，结局都是以属于不可裁判的政治问题（dismiss as non-justifiable political questions）为由被驳回。

- b. Challenges to the **President's conduct of foreign policies**, e.g., war, treaty, etc.
对**总统外交政策**（如战争、条约等）的挑战。



Supreme Court Case: Goldwater v. Carter

最高法院案例：戈德华特诉卡特案

In 1970s, President Jimmy Carter rescinded a treaty with Taiwan to recognize China. An Arizona Senator Barry Goldwater brought a challenge to this. Since the Senate has to approve the making of the treaty, the Senate should also approve the rescission of a treaty. But Supreme Court dismissed the case because it would challenge the president's conduct of foreign policy.
亚利桑那州参议员巴里·戈德华特对此提出了挑战。既然参议院必须批准条约的制定，参议院也应该批准条约的废除。但最高法院驳回了此案，因为这将挑战总统的外交政策。

- c. Challenges to the **impeachment and removal process**. 对于**弹劾及免职程序**的挑战。



Supreme Court Case: Nixon (Walter Nixon) v. US 1993

最高法院案例：1993 年尼克松诉美国案

The Chief Judge for the United States District Court for the Southern District of Mississippi, Walter Nixon, was convicted of committing perjury before a grand jury but refused to resign from office even after he had been incarcerated. Nixon was subsequently impeached by the US House of Representatives, and the matter was referred to the Senate for a vote on Nixon's removal. The Senate appointed a committee to hear the evidence against Nixon and later report to the body as a whole. The Senate then heard the report of the committee and voted to remove Nixon from office. Nixon contended that this did not meet the constitutional requirement of Article I for the case to be “tried by the Senate.” The Supreme Court held that the courts may not review the impeachment and trial of a federal officer because the Constitution reserves that function to a coordinate political branch.
美国密西西比州南区地区法院的首席法官沃尔特·尼克松被判在大陪审团面前作伪证，但即使在被监禁后也拒绝辞职。尼克松随后被美国众议院弹劾，此事被提交给参议院投票决定是否罢免尼克松。参议院任命了一个委员会来听取对尼克松不利的证据，然后向参议院整体报告。参议院听取了委员会的报告，投票罢免了尼克松。尼克松认为，这不符合宪法第一条关于该案应“由参议院审理”的要求。最高法院认为，法院不得审查对联邦官员的弹劾和审判，因为宪法将这一职能保留给一个协调的政治部门。

- d. Challenges to **partisan gerrymandering**.
不公正选区划分的问题（目的是为其党派争取更多席位），类似于政治问题，不可告。

B. Supreme Court Review 最高法院复审

In order for the Supreme Court to hear a case, all **justiciability** requirements must be met.
为了让最高法院审理案件，必须满足所有**可诉性**要求。

1. Writ of Certiorari 调卷令

Virtually all cases come to the supreme court by Writ of Certiorari.
几乎所有案件都是通过调卷令提交给最高法院的。

- a. All cases from **state courts** come to the Supreme Court by writ of certiorari.
所有来自**州法院**的案件都通过调卷令提交给最高法院。
- b. All cases from **United States courts of appeals** come to the Supreme Court by writ of certiorari.
所有来自**美国上诉法院**的案件都通过调卷令提交给最高法院。

If you are attorney losing a case in the highest state court or a US federal court of appeals and you want the case be heard by Supreme Court, it's only by certiorari discretionary review.
如果你是一名律师，在最高州法院或美国联邦上诉法院输掉了一个案子，你想让最高法院审理这个案子，那就只能通过调卷令酌情审查。

- c. Appeals exist for decisions of **three-judge federal district courts**.
对由**三名法官组成的联邦地区法院**的判决存在上诉。

Under a federal statute, the case should be heard in a three-judge federal district court, and once it happens and appellate review is requested, the case skips the United States Court of Appeals, goes right through the three-judge federal district court to Supreme Court. Supreme Court review is by appeal, Supreme Court is obligated, required to take and decide that case.
根据联邦法规，案件应该在由三名法官组成的联邦地区法院审理，一旦案件发生并要求上诉审查，案件就会跳过美国上诉法院，直接通过由三名法官组成的联邦地区法院到最高法院。最高法院的复审是通过上诉进行的，最高法院有义务，也被要求对那个案件进行审理和裁决。

- d. The Supreme Court has original and exclusive jurisdiction for suits **between state governments**.
对于**两个州政府之间**的诉讼最高法院拥有最初并且排他的管辖权。

2. Final Judgment Rule 终局判决规则

Generally, the Supreme Court may hear cases only after there has been a final judgment of the highest state court, of a United States Court of Appeals, or of a three-judge federal district court.
一般来说，最高法院只审理已经经过最高级别州法院、美国上诉法院、三法官联邦地区法院审理后的案件。

3. Independent and Adequate State Law Ground 独立且充分的州法依据

For the Supreme Court to review a state court decision, there must not be an independent and adequate state law ground of decision. If a state court decision rests on two grounds, one state law and one federal law, if the Supreme Court's reversal of the federal law ground will not change the result in the case, the Supreme Court cannot hear it. 最高法院审理的之前由州法院做出决定的案件，不能存在一个单独并且充分的州法律同时作为依据。如果州法院的决定有双重依据，一个是联邦的，一个是州的，而且最高院基于联邦法作出的判决并不会改变最终判决的结果（因为依据州法仍然会使判决维持和原来相同的结果），那这类案件最高院不审理。

Example:

Plaintiffs sued a factory for pollution seeking for an injunction. They brought up two actions, one is under federal law, one is under state law (tort law). They won both cases. This means that they would get injunction based on either federal law or state law. Defendant appealed and lost as well. They wanted to bring the case to Supreme Court. Supreme Court refused to hear it because there is an independent and adequate state law ground.

原告起诉一家工厂污染环境，寻求禁令。他们提出了两个诉讼，一个是根据联邦法，一个是根据州法（侵权法）。这两起案件他们都赢了。这意味着他们将根据联邦法律或州法律获得禁令。被告上诉，也败诉了。他们想把这个案子提交到最高法院。最高法院拒绝审理此案，因为有独立且充分的州法律依据。

Review Activity

An ordinance of a city prohibits nursesey homes publicizing within five feet of the hospital entrances. A member of a private nursery home spreading propaganda is arrested for violating the ordinance, is fined \$100, and is convicted. She appeals her conviction, claiming that her constitutional rights were violated.

一个城市的法令禁止养老院在离医院入口五英尺的范围内宣传。一名传播宣传的私人托儿所成员因违反条例而被捕，被罚款 100 元，并被定罪。她对判决提出上诉，声称她的宪法权利受到了侵犯。

The case was heard by the state supreme court, which ruled that while the ordinance was permissible under the United States Constitution, it was unconstitutional under the state constitution because the fine money was designated to go to the city's only hospital, which was privately owned, rather than to the city. The city seeks to bring the case before the United States Supreme Court.

该案由州最高法院审理，最高法院裁定，虽然该法令在美国宪法下是允许的，但根据州宪法，它是违宪的，因为罚款被指定用于该市唯一一家私营医院，而不是用于该市。该市试图将此案提交美国最高法院审理。

Should the United States Supreme Court grant certiorari?

美国最高法院应该批准调卷令吗？

(A) No, because the case was decided on independent state grounds.

不应该，因为这个案子是由独立的州决定的。

(B) No, because the case is moot.

不应该，因为这个案子没有实际意义。

(C) No, because this is a political question.

不应该，因为这是一个政治问题。

(D) Yes, the Supreme Court should hear the case on its merits, because it involves an important federal question.

应该，最高法院应该根据案情审理此案，因为它涉及到一个重要的联邦问题。

Analysis:

正确选项为 (A)。

本题的设定完美符合州法院判决存在两个独立依据 (two independent grounds) 的情形。

If a state court decision rests on two grounds, one state law and one federal law, if the Supreme Court's reversal of the federal law ground will not change the result in the case, the Supreme Court cannot hear it.

如果州法院的判决基于两项依据，一项州法依据、一项联邦法依据，且最高法院推翻联邦法依据后并不会改变案件结果，则最高法院无权审理此案。

因为即便最高法院受理本案，并针对基于美国宪法的依据（based on US Constitution ground）作出裁判，也不会改变州法院基于州宪法的相关依据（based on State Constitution ground）作出的决定，对本案最终判决没有影响，因此最高法院不会受理此类案件。综上，本题选（A）。

C. Lower Federal Court Review 联邦下级法院复核

1. Federal Courts (and State Courts) May Not Hear Suits Against State Governments

联邦法院（和州法院）可能不会审理针对州政府的诉讼，即州政府不能当被告

a. The Principle of Sovereign Immunity 主权豁免原则 高频考点

① The Eleventh Amendment bars suits against states in federal court. That is, state governments generally cannot be named as defendants in federal court cases, whether the citizen is from the state or a different state and whether the lawsuit is for money or an injunction.

《第十一修正案》禁止在联邦法院对各州提起诉讼。也就是说，州政府通常不能作为联邦法院案件中的被告，无论提起诉讼的公民是本州居民还是其他州居民，也无论该诉讼是为索要赔偿还是为获得禁令。

② Sovereign immunity bars suits against states in state courts or federal agencies.

根据主权豁免原则，在州法院和联邦机构中，州政府不能做被告。

Supreme Court Case: Alden v. Maine 1999

最高法院案例：1999 年奥尔登诉缅因州案

Probation officers sued State of Maine in federal court in the first place for salaries under a federal law, it was dismissed by the federal court based on the Eleventh Amendment. The officers then brought suit in state court, but the court dismissed it as well saying that the state cannot be sued in their own state courts even on a federal claim. So, the probation officers have a right to their money under a federal statute, but there was no way they could sue.

缓刑官首先根据联邦法律向联邦法院起诉缅因州，要求支付工资，联邦法院根据《第十一修正案》驳回了这一诉讼。这些官员随后向州法院提起诉讼，但法院也驳回了这一诉讼，称即使是联邦索赔，州政府也不能在自己的州法院起诉。所以，根据联邦法规，缓刑官有权得到他们的钱，但他们无法起诉。

b. Exceptions 例外情形

States may be sued ONLY under the following circumstances:

只有在下列情况下才能起诉州政府：

① Waiver is permitted, that is, a state may and must **expressed consent to be sued**; 豁免是允许的，也就是说，一个州可以而且必须表示同意被起诉；

② States may be sued pursuant to federal laws adopted under **Section 5 of the 14th Amendment**. Congress cannot authorize suits against states under any other constitutional provisions or power. 国会基于《第十四修正案》第 5 条而通过的联邦法律（本意都是为了限制州和地方政府的权力），州政府如果违反，则其可能基于此成为被告。但如果州和地方政府违反的不是基于《第十四修正案》第 5 条而通过的法律，则其无法成为被告。

The whole 14th amendment was meant to be a limit on state sovereignty. Section 5 of the 14th Amendment says: "The Congress shall have power to enforce, by appropriate legislation, the provisions of this article." 整个《第十四修正案》都是为了限制各州的主权。《第十四修正案》第 5 条规定：“国会有权通过适当的立法实施本条的规定。”

Example:

Title 7 of the 1964 Civil Rights Act, which prohibits employment discrimination, specifically was adopted by Congress as to state and local governments pursuant to Section 5 of the 14th Amendment, and thus state governments can be sued directly for violating Title 7.

1964 年《民权法案》是国会通过的，第七条的目的是禁止州和地方政府进行就业歧视。如果州和地方政府违反了此处规定，那么可以因此被诉。

By comparison: Congress cannot override sovereign immunity using any other congressional power: The Federal Age Discrimination Employment Act was adopted by Congress under its Commerce Clause power, but not Section 5 of the 14th Amendment. Therefore, the state government cannot be sued for the violation.

相比之下：国会不能使用任何其他国会权力推翻主权豁免：《联邦年龄歧视就业法》是国会根据其商业条款权力通过的，而不是《第十四修正案》第 5 条。因此，州政府不能因违反规定而被起诉。

- ③ The **federal government may sue state governments**, that is,sovereign immunity is not a bar to the federal government suing a state government.

联邦政府可以起诉州政府，也就是说，主权豁免并不妨碍联邦政府对州政府提起诉讼。

- ④ **Bankruptcy proceedings.** The Eleventh Amendment does not apply to federal laws exercise pursuant to Congress bankruptcy powers so it does not bar actions of the United States Bankruptcy Courts.

破产程序。《第十一修正案》不适用于国会依据破产权实施的联邦法律，因此该修正案并不禁止美国破产法院采取相关行动。

Supreme Court Case: Tennessee Student Assistance Corporation v. Hood 2004

最高法院案件：2004 年田纳西州学生援助公司诉胡德案

Fact Pattern: Pamela Hood had an outstanding debt to the Tennessee Student Assistance Corporation, a loan-granting institution established by the state, when she filed for bankruptcy. The state objected to her request that the debt be forgiven ("discharged" in the terms of bankruptcy law) by the federal bankruptcy court, arguing that to discharge the debt would violate the state's sovereign immunity. Hood countered that the Federal Rules of Bankruptcy Procedure allow student loan debts to be discharged if the bankruptcy filer can demonstrate that they will suffer "undue hardship" if the debt is not forgiven, and that this congressional permission is a constitutional waiver of state sovereign immunity because it falls under the power granted to Congress by the Bankruptcy Clause (Article I, Section 8 of the U.S. Constitution). The bankruptcy court sided with Hood, finding that Congress had acted constitutionally in waiving the states' sovereign immunity. The Sixth Circuit Bankruptcy Appellate Panel affirmed, as did a normal panel of the Sixth Circuit.

事实背景：帕梅拉·胡德对田纳西州学生资助公司（一家由州设立的贷款发放机构）负有未偿债务。在申请破产时，胡德请求依据破产法条款免除该笔债务。该州向破产法院提出异议，主张免除债务会侵犯州主权豁免权。胡德反驳称《联邦破产程序规则》规定，如果破产申请人能证明“债务不免除将导致其遭受不合理的困难”，则学生贷款债务可被免除；而国会的这一规定构成对州主权豁免权的有效放弃，因为这一权力属于《美国宪法》第一条第八款破产条款赋予国会的权限。破产法院支持了胡德的主张，认定国会放弃各州主权豁免权的行为符合宪法。第六巡回法院破产上诉分庭及该巡回法院的合议庭均确认了这一结论。

Issue: Does the Bankruptcy Clause give Congress the power to waive a state's sovereign immunity in matters pertaining a federal bankruptcy court's forgiveness of debt owed to the state?

问题：破产条款是否赋予国会在联邦破产法院免除欠州债务的事项上放弃州主权豁免的权力？

Supreme Court : The Court declined to reach the question of whether the Bankruptcy Clause gives Congress the power to waive a state's sovereign immunity. Instead, the Court ruled that discharging a debt owed to a state in a bankruptcy procedure is different from a suit and therefore not barred by sovereign immunity. "A bankruptcy court is able to provide the debtor a fresh start in this manner ... because the court's jurisdiction is premised on the debtor and his estate, and not on the creditors," wrote the Court. That is, the discharge of debt by a bankruptcy court is not a personal suit against a state (which would violate sovereign immunity) but instead merely a modification of a debtor's estate that incidentally affects a state. As such, it is permissible even without Congressional waiver of sovereign immunity.

最高法院：联邦最高法院拒绝对《破产条款》是否赋予国会权力、要求州政府放弃其主权豁免权这一问题作出裁决。相反，法院裁定，在破产程序中清偿欠州的债务不同于诉讼，因此不受主权豁免的限制。“破产法庭能够以这种方式为债务人提供一个的开始……因为法院的管辖权是以债务人和他的财产为前提的，而不是债权人，”法院写道。也就是说，破产法院解除债务不是针对州政府的个人诉讼（这将侵犯主权豁免），而仅仅是对债务人遗产的修改，附带影响到州政府。因此，即使国会不放弃主权豁免，它也是允许的。

也就是说，在破产程序中，是由债务人直接向联邦破产法院提出申请的，多数情况下与州并无关联（并非直接起诉州）。但州可能会主张，这种允许债务人通过破产免除债务的做法损害了州的利益，相当于变相起诉州并判定州败诉（因为最终结果是债务人因破产而无需偿还欠州的款项）。因此此处会产生争议：破产程序是否可以、以及会如何影响州的主权豁免权。最高法院目前的观点仍是：破产程序会使州放弃其豁免权，因为这正是制宪者最初通过宪法第一条赋予国会相关权力的初衷。

之后在“中央弗吉尼亚社区学院诉卡茨案”中（本案中，中央弗吉尼亚社区学院确属州立学院，且是直接被告），法院直面了“制宪者是否通过赋予国会统一立法管理破产事务的权力，变相否定了州在该领域的主权豁免权”这一问题。最高法院给出了肯定的答案，认为“制宪者意在赋予破产条款广泛的权力，以落实全国性的破产制度……各州在（1787 年）制宪会议的方案中已同意，不会主张该豁免权”。

c. Suits against **state officers** are allowed even if the state government cannot be named as a defendant.

有些时候，州政府不能当被告，但是**州政府官员**是可以的。

- ① State officers may be sued for **injunctive relief**.

州政府官员可能会因**禁令救济**而被起诉。

- ② State officers may be sued for **money damages** to be paid out of their own pockets.

州政府官员可能会被起诉，要求从他们自己的口袋里支付**金钱损失**。

So, if you are a lawyer, and you want to have an injunction against the state, you don't sue the state, you instead find the officer who is responsible for carrying out that program and sue that person. If the officer is personally liable, there's no 11th Amendment to bar that. If the state decides to indemnify him, it's the state's choice, which in essence waiving the sovereign immunity. Remember, if the officer is personally liable, there is no sovereign immunity bar to suit.

因此，身为律师，如果你希望对州政府申请禁令救济，你应当另行寻找负责执行该项目的官员，并起诉该个人。若该官员需承担个人赔偿责任，《宪法》第十一修正案对此无管辖权（不得驳回诉讼）。若州政府决定为其提供赔偿，这属于州政府的自由裁量，实质上等同于放弃了主权豁免权。

- ③ State officers may not be sued if it is the state treasury that will be paying the retroactive damages.

如果是由州政府财政支付溯及既往的损害赔偿，州政府官员不得被起诉。

However, if the suit is really going after the government and the government is indeed liable for paying retroactive damages, the suit cannot go forward, it's barred by the 11th Amendment. Remember, indemnification is an exception. But apart from this, other suits which are in essence after the government, and the government may have to pay from state treasury, the suit is barred.

但如果诉讼实质是针对政府，且政府确实需要承担追溯性损害赔偿责任，那么该诉讼就无法推进，会被《宪法》第十一修正案禁止。需要注意的是，赔偿是例外情况。除此之外，其他本质上针对政府、且可能需要政府从州财政中掏钱赔付的诉讼，一律被禁止。

2. Abstention 放弃管辖权，弃权

Federal courts may not enjoin pending state proceedings, except when state prosecution is conducted in bad faith. 联邦法院不得中止州法院正在进行的诉讼程序，除非该州的起诉行为存在恶意。

Example:

A California statute barring all people in CA using Barbri bar review books. I, as a student using Barbri book, was prosecuted in CA state court and once I know that I was prosecuted, I intended to file a suit in federal court saying that the CA statute is in violation of US Constitution. I alleged a federal claim, all the justiciability requirements are met. But the federal court will not hear it because federal courts may not enjoin pending state proceedings.

加州有一项法规，禁止本州所有人使用 Barbri 律师考试复习资料。我作为一名使用 Barbri 资料的学生，在加州州法院被提起公诉；得知被起诉后，我打算向联邦法院提起诉讼，主张该加州法规违反了美国宪法。我提出的是联邦层面的诉请，且所有可司法性要件均已满足，但联邦法院不会受理此案，因为联邦法院不得禁止正在进行的州诉讼程序。

II. Federal Legislative Power 联邦立法权

Overview 综述

The core of federal legislative power lies in the scope of Congress's authority, which is explicitly granted and restricted by constitutional provisions. It is one of the key areas in the division of powers between the federal government and states. 联邦立法权的核心是国会的权限范围，同时受宪法条款的明确授予与限制，是联邦与州权力划分的关键领域之一。

Congress Power refers to the authorities granted to the U.S. Congress by the Constitution (mainly Article I, Section 8), including taxing, spending, and regulating commerce, while being restricted by provisions like the 10th Amendment. Congress has no federal police power and this power is reserved for states. Under Article I, Section 8, Congress may enact all laws that are "necessary and proper" to exercise its enumerated authority. Two key powers under this section are the taxing and spending power and the commerce power, which are widely used by Congress to legislate. The 10th Amendment further clarifies the division of powers between the federal government and states.

国会权力是指美国宪法（主要是第一条第八款）赋予国会的权限，涵盖征税、开支、规制商业等，同时受《第十修正案》等条款的限制。国会不享有联邦警察权，该权力保留给各州。根据宪法第一条第八款，国会可制定所有为行使其列举权力所“必要且适当”的法律。该条款项下的两项核心权力是征税与开支权和商业权，国会广泛借助这两项权力进行立法。《第十修正案》进一步明确了联邦政府与各州之间的权力划分。



Note:

About the relationship between Article I, Section 8 and the 10th Amendment, the framers of the Constitution wrote Article I, Section 8 to list and limit the powers of the U.S. Congress. However, they believed these limitations were not clear enough. To address this, the 10th Amendment was included in the Bill of Rights (ratified in 1791). The 10th Amendment states that all powers not specifically granted to the federal government by the Constitution are reserved for the states.

关于宪法第一条第八款与《第十修正案》的关系，制宪者制定宪法第一条第八款，是为了列举并限制美国国会的权力；但他们认为这些限制不够明确，因此 1791 年批准的《权利法案》中加入了《第十修正案》。该修正案规定：所有未被宪法明确授予联邦政府的权力，均保留给各州。

Regarding **Delegation of Power**, the enumerated powers in Article I, Section 8 are the specific authorities granted to Congress. In practice, Congress may delegate some of these powers to executive agencies (e.g., rule-making authority), but such delegation must be accompanied by clear guidelines to ensure it does not exceed Congress's constitutional authority.

关于**权力下放**，宪法第一条第八款中的列举权力是明确授予国会的具体权限。实践中，国会可将部分权力下放给行政机构（如制定规章的权力），但此类下放必须附带明确的指导规则，以确保不超出国会的宪法权限范围。

Clause 1: The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, imposts and Excises shall be uniform throughout the United States;

第 1 条：国会有权规定和征收税款、关税、进口税和消费税，偿还债务，为合众国的共同防御和一般福利提供经费，但一切关税、进口税和消费税在合众国全境一律统一；

Clause 2: To borrow Money on the credit of the United States;

第 2 条：以美国的信用借款；

Clause 3: To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

第 3 条：管理与外国、几个州之间以及印第安部落之间的贸易；

Clause 4: To establish an uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;

第 4 条：制定统一的归化规则和统一的破产法律；

Clause 5: To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;

第 5 条：铸造货币，规定货币和外国货币的价值，确定度量衡标准；

Clause 6: To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

第 6 条：对伪造合众国有价证券和流通硬币的处罚；

Clause 7: To establish Post Offices and post Roads;

第 7 条：设立邮局和邮路；

Clause 8: To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

第 8 条：促进科学和实用艺术的进步，在一定时期内保证作者和发明家对其各自的著作和发明的专有权；

Clause 9: To constitute Tribunals inferior to the supreme Court;

第 9 条：设立低于最高法院的法庭；

Clause 10: To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations;

第 10 条：界定和惩处在公海犯下的海盗行为和重罪以及违反国际法的罪行；

Clause 11: To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

第 11 条：宣战，颁发搜捕令和报复令，制定有关陆上和海上俘虏的规则；

Clause 12: To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

第 12 条：招募并维持陆军，但此项用途的拨款期限不得超过两年；

Clause 13: To provide and maintain a Navy;

第 13 条：配备并保持海军；

Clause 14: To make Rules for the Government and Regulation of the land and naval Forces;

第 14 条：制定政府规章和陆海部队规章；

Clause 15: To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

第 15 条：规定征召民兵执行联邦法律，镇压叛乱和击退入侵；

Clause 16: To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

第 16 条：规定民兵的组织、武装和纪律，并管理可能为合众国服务的民兵，并将军官的任命和根据国会规定的纪律训练民兵的权力分别保留给各州；

Clause 17: To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the Same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings;

第 17 条：在任何情况下，对某些州割让并经国会同意成为合众国政府所在地的地区（不超过十英里平方）行使专属立法权，并对经所在州立法机关同意购买的用于建造堡垒、弹药库、军火库、船坞和其他必要建筑物的所有地方行使同样的权力；

Clause 18: To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

第 18 条：制定一切必要和适当的法律，以行使上述权力，以及本宪法赋予合众国政府或其任何部门或官员的一切其他权力。

A. Congressional Power 国会权力

1. Express or Implied Congressional Power 明确的或默示的国会权利

Express Congressional Power refers to the authorities explicitly granted to Congress by the U.S. Constitution, primarily listed in Article I, Section 8, such as the power to tax, regulate interstate commerce, and declare war. **Implied Congressional Power**, derived from the Necessary and Proper Clause, allows Congress to exercise additional powers that are reasonably related to and essential for executing its enumerated express powers, as long as these implied powers do not violate constitutional restrictions.

明确的国会权力指由美国宪法明确赋予国会的权限，主要罗列于宪法第一条第八款，例如征税、规制州际商业以及宣战的权力。**默示的国会权力**源于必要且适当条款，允许国会行使那些与宪法列举的明确权力具有合理关联、且对行使该明确权力不可或缺的附加权限，前提是这些默示权力不违反宪法限制。

a. Congress Has NO Federal Police Power 国会没有联邦警察权 / 联邦治安权 高频考点

① General Rule 一般规则

Police power refers to the inherent and absolute power of a sovereign state to enact all necessary and proper laws for maintaining public safety, public order, public health, public morality, and social justice. It is an essential fundamental power that a government must possess.

治安权是指一个主权国家所享有的，为维持公共安全、公共秩序、公共卫生、公德和社会正义而制定所有必须和正当法律的内在和绝对权力。它是政府所必须的一项基本权力。

② Exceptions (MILD) 例外情形

The Tenth Amendment to the U.S. Constitution reserves the police power to state and local governments; however, in the four specific areas, this power is exercised by Congress.

美国宪法《第十修正案》将治安权保留给各州及地方政府，但在以下这四个特定领域，该项权力由国会行使。

- i. **Military** 军队；
- ii. **Indian reservation** (Native American) 印第安人保留地 (或美洲原住民保留地) ；
- iii. **Land** (Federal land and territories) 土地（联邦土地与属地）；
- iv. **District of Columbia** （华盛顿特区）

b. Necessary and Proper Clause 必要且适当条款

Article 1, Section 8 says Congress can adopt all laws that are necessary and proper to exercise its authority. This clause serves as a critical legal basis for Congress to legislate beyond its enumerated powers, while still being subject to constitutional constraints that align with the constitutional framework for the protection of individual liberties.

宪法第一条第八款规定，国会有权制定所有为行使其各项权力所必需且适当的法律。该条款是国会在列举权力之外进行立法的关键法律依据，同时其行使仍需遵守宪法限制，与宪法对个人自由的保护框架保持一致。

Example:

Article 1, Section 8 also says that Congress can raise an Army and a Navy, imagine if Congress would decide to create a national bake sale to help it raise an Army, Congress thought it would be a good way to raise Army and Navy. Although this is not clearly stipulated in Constitution, it is not prohibited by Constitution, which means that it's okay.

《美国宪法》第一条第八款同时规定，国会有权招募陆军和维持海军。假设国会决定通过全国烘焙义卖来筹措军费，国会可能认为这是一种有效的筹资方式。尽管宪法未明文规定此类手段，但由于其未被宪法禁止，根据必要与适当条款，该行为具有合宪性。

Supreme Court Case: McCulloch v. Maryland 1819

最高法院案例：1819 年麦卡洛克诉马里兰州案

Congress passed a legislation in 1816 to create the Second Bank of the United States. Consequently, some states passed laws designed to hinder the bank's operation, while others simply tried to tax it. In 1818, Maryland's state legislature passed a law levying a \$15,000 annual tax on any bank operating in Maryland that was not chartered by the state of Maryland; the only bank fitting that description was the Second Bank of the United States. McCulloch, the head of the Baltimore Branch of the Second Bank of the United States, refused to pay the tax. State of Maryland argued that "the Constitution is silent on the subject of banks." It was Maryland's contention that without specific constitutional authorization for the federal government to create a bank, any such creation would be rendered unconstitutional.

国会于 1816 年通过了一项立法，成立了美国第二银行。因此，一些州通过了旨在阻碍该银行运营的法律，而另一些州则试图对其征税。1818 年，马里兰州立法机关通过了一项法律，对任何在马里兰州经营的非马里兰州特许银行征收每年 1.5 万美元的税；唯一符合这种描述的银行是美国第二银行。麦卡洛克是美国第二银行巴尔的摩分行的负责人，他拒绝缴税。马里兰州辩称，宪法对银行问题保持沉默。马里兰州的论点是，在没有宪法明确授权联邦政府创建银行的情况下，任何此类创建都将被视为违宪。

The issue here is whether the action of the Congress was within the scope of Article 1, Section 8 (namely, the necessary and proper clause), since it's not enumerated clearly in the stipulation?

这里的问题是，国会的行动是否在第一条款第八款（即必要和适当条款）的范围内，因为它没有在规定中明确列举？

The Supreme Court addressed that necessary and proper Clause permits Congress to seek an objective while it exercised its enumerated powers as long as that objective is not forbidden by the Constitution.

最高法院指出，必要和适当条款允许国会在行使其列举的权力时寻求一个目标，只要该目标不被宪法禁止。

In liberally interpreting the Necessary and Proper Clause, the Court rejected Maryland's narrow interpretation of the clause that the word necessary in the clause meant that Congress could pass only laws that were absolutely essential in the execution of its enumerated powers. The Court also noted that the Necessary and Proper Clause is listed within the powers of Congress, not its limitations. Let the end be legitimate, let it be within the scope of the constitution, and all means which are appropriate, which are plainly adapted to that end, which are not prohibited, but consist with the letter and spirit of the constitution, are constitutional.

在解释必要和适当条款时，法院驳回了马里兰州对该条款的狭隘解释，即该条款中的必要一词意味着国会只能通过在其列举的权力时绝对必要的法律。法院还指出，必要和适当条款是在国会的权力范围内列出的，而不是它的限制。让目的合法，让目的在宪法范围内，所有适当的、明显适合于这一目的的、不被禁止的、但符合宪法文字和精神的手段都是符合宪法的。

Review Activity

The federal government has complete jurisdiction over certain parkland located within a state. To conserve the wildlife inhabiting that land, the federal government enacted a statute forbidding all hunting of animals in the federal park. That statute also forbids the hunting of animals that have left the federal park and have entered the state. A hunter has a state hunting license, authorizing him to hunt deer anywhere in the state. On land within the state located adjacent to the federal park, the hunter shot a deer he knew had recently left the federal land.

联邦政府对一个州内的某些公园拥有完全的管辖权。为了保护居住在那片土地上的野生动物，联邦政府颁布了一项法令，禁止在联邦公园内狩猎动物。该法令还禁止猎杀离开联邦公园进入该州的动物。猎人有州狩猎执照，授权他在州内任何地方猎鹿。在州内靠近联邦公园的土地上，猎人射杀了一只他知道最近离开联邦土地的鹿。

If the hunter is prosecuted for violating the federal hunting law, what is the strongest ground supporting the constitutionality of the federal law forbidding the hunting of wild animals that wander off of federal property?

如果猎人因违反联邦狩猎法而被起诉，那么联邦法律禁止捕猎在联邦财产外游荡的野生动物，支持这一法律符合宪法的最有力依据是什么？

(A) This law is a necessary and proper means of protecting United States property.
这项法律是保护美国财产的必要和适当的手段。

(B) The animals are moving in the stream of interstate commerce.
这些动物随着州际贸易的流动而移动。

(C) The police powers of the federal government encompass protection of wild animals.
联邦政府的警察权力包括保护野生动物。

(D) Shooting wild animals is a privilege, not a right.
射击野生动物是一种特权，而不是权利。

Analysis:

正确选项为 (A)。

国会一般不享有治安权 (Police Power)，但针对 MILD 这几个领域存在例外。其中“L”对应的是土地。因此选项 (A) 完全符合本题情况，因为国会可以主张其出台了必要且适当 (necessary and proper) 的法规，用于管理联邦财产。由于本题要求选择最优项，其他选项相较于 (A) 的说服力较弱，故答案选 (A)。

c. The Taxing/Spending Power and the Commerce Power 征税、开支及贸易的权力

① Taxing and Spending Power 征税和开支权力

Tax and spending power refers to Congress's authority, granted by Article I, Section 8 of the U.S. Constitution, to levy taxes (for raising revenue) and allocate federal funds. It is one of Congress's core enumerated powers. 征税与开支权是美国宪法第一条第八款赋予国会的核心列举权力之一，指国会拥有征收税款（以筹集财政收入）并分配联邦资金。

General welfare is not an independent power of Congress—it is a purpose that Congress can pursue only through the tax and spending power (e.g., using tax revenues to fund social programs that benefit the public) or via the narrow exceptions where Congress holds police power (e.g., MILD areas). Congress cannot regulate general welfare directly as a standalone power.

公共福利并非国会的独立权力，而是国会可通过征税与开支权（例如用税收收入资助惠及公众的社会项目）实现的目标，或通过国会享有治安权的有限例外领域（MILD）来推进。国会不能将规制公共福利作为一项独立权力直接行使。

Supreme Court Case: National Federation Independent Business v. Sebelius 2012

最高法院案例：2012 年全国联合会独立企业诉西贝利厄斯案

In this case, the Supreme Court upheld Congress's power to enact most provisions of Patient Protection and Affordable Care Act (ACA) also known as Obamacare, and the Health Care and Education Reconciliation Act (HCERA), including a requirement of most Americans to have health insurance by 2014 or they will have a tax penalty.

在这起案件中，最高法院支持国会制定《患者保护和平价医疗法案》（ACA）（也被称为奥巴马医改）以及《医疗保健和教育和解法案》（HCERA）的大部分条款的权力，其中包括要求大多数美国人在 2014 年之前拥有医疗保险，否则他们将面临税收罚款。

The Supreme Court, upheld by a vote of 5 to 4, held that the individual mandate to buy health insurance as a constitutional exercise of Congress's taxing power.

最高法院以 5:4 的投票结果支持了这一判决，认为个人强制购买医疗保险是对国会征税权力的宪法行使。

Review Activity

The Federal Food Safety Act provides for sporadic inspections of product in order to prevent illness among consumers. After several widespread outbreaks of illness involving escarole, a new and more accurate procedure for determining the bacteria was developed. The new procedure was used in a limited area on escarole shipped locally within a large escarole-producing state to determine its effectiveness. Subsequently, Congress enacted an additional provision to the Act, levying a one cent tax on each crate of escarole so inspected.

《联邦食品安全法》规定对产品进行不定期检查，以防止消费者患病。在几起涉及宽叶苦苣的大范围疾病暴发后，一种更精准的细菌检测新方法被研发出来。该新方法在一个宽叶苦苣主产州的局部区域，针对当地运输的宽叶苦苣进行了试用，以验证其有效性。随后，国会对该法案新增了一项条款，对每箱经此方式检查的宽叶苦苣征收 1 美分的税。

Is this provision constitutional?

这一条款符合宪法吗？

(A) Yes, under the Supremacy Clause.
符合，根据优先条款。

(B) Yes, because it is a proper exercise of congressional power to raise revenue.
符合，因为增加税收是国会权力的正当行使。

(C) No, because the escarole subject to the inspection is not being sold in interstate commerce.
不符合，因为要检查的小汽车不在州际贸易中出售。

(D) No, because it interferes with state sovereignty.
不符合，因为它干涉了国家主权。

Analysis:

正确选项为 (B)。

国会可以依据其征税权去要求收税，本道题即为这种情况，所以 (B) 为正确选项。

(A) 选项不对，因为本题和至上条款没有关系。

(D) 选项不对，因为本题和州主权也没有关系。

(C) 选项不对，因为并不是和跨州贸易不相关国会就不能行使别的权力去管控了，比如本题中，其就是依据征税权而要求收税的。

② The Commerce Power (Article 1, Section 8) 商业权力（《宪法》第一条第八款）

i. Congress can regulate commerce with Foreign nations and Indian tribes among the states.
国会拥有管理与外国、各州之间以及与印第安部落的商业活动。

Supreme Court Case: United States v. Lopez 1995

最高法院案例：1995 年美国诉洛佩兹案

In this case, the court ruled the Federal Gun Free School Zone Act unconstitutional. This Act made it a crime for anyone to hold a gun within 1000 feet of any school. The court thought this exceeded the scope of Congress's power to regulate commerce among the states.

在此案中，法院裁定《联邦无枪学区法》违宪。该法案规定，任何人在任何学校 1000 英尺内持有枪支都是犯罪行为。法院认为这超出了国会管理州际商业的权力范围。

ii. The Supreme Court said that Congress could act under the Commerce Clause in any of the following three situations:

最高法院表示，在以下三种情况下，国会可以根据商业条款采取行动：

- Congress may regulate the **channels** of interstate commerce. Channels include highways, waterways, Internet, etc.
国会可以管理跨州贸易的**渠道**。此类渠道包括公路，水道，互联网等。

- Congress may regulate the **instrumentalities** (eg. trucks, planes, Internet) of interstate commerce and **persons and things** in interstate commerce.
国会**有权**监管州际贸易的工具（如卡车、飞机、互联网）以及参与州际贸易的**个人与物品**。

Supreme Court Case 1: Gibbons v. Ogden 1824

最高法院案例 1：1824 年吉本斯诉奥格登案

The Supreme Court held that commerce includes all forms of intercourse, thus Congress can regulate electricity or radio waves because they can go across state lines. Congress can regulate stock and insurance if it goes across state lines. Congress can even regulate cattle or even people if they go across state lines.

最高法院认为，州际贸易涵盖各类往来活动；因此，国会**有权**管制电力或无线电波（注：该案发生时无此技术，原文表述存在时代错配），因其可跨州流通。若股票与保险业务跨州开展，国会亦可对其实施管制。国会甚至**有权**管制跨州流动的牲畜乃至人员。

Supreme Court Case 2: Caminetti v. US 1917

最高法院案例 2：1917 年卡米内蒂诉美国案

White Slave Traffic Act makes it a federal crime to take a woman across state lines for immoral purposes. An individual was convicted of taking a woman from Nevada to California for quote, "purpose, make her his mistress." After the individual was convicted, he took the case to Supreme Court, saying there is no allegation of prostitution or other commercial activity. Congress should not be able to regulate. But Supreme Court upheld the conviction.

《贩卖白奴法案》规定，为了不道德的目的带女性穿越州界是一项联邦犯罪。一名男子因将一名女子从内华达州带到加州而被定罪，原话是“目的是让她成为他的情妇”。在此人被定罪后，他将案件提交给最高法院，称没有卖淫或其他商业活动的指控。国会**不应该**有监管的权力。但最高法院维持了这一判决。

- Congress may regulate **economic activities** that have a substantial effect on interstate commerce and in this way a substantial effect can be based on cumulative impact. Note that in the area of non-economic activities, a substantial effect cannot be based on cumulative impact.
国会可以管理对跨州贸易有实质性影响的**经济活动**（此时可以运用累积影响去评估是否具有实质性影响）。对于非经济活动，实质性影响的计算不能基于累积影响。

Supreme Court Case: Wickard v. Filburn 1942

最高法院案例：1942 年威卡德诉菲尔本案

Congress adopted a law that regulated the amount of wheat that a farmer could grow for his or her own consumption. The Supreme Court held that Congress can regulate trivial local, intrastate activities that have an aggregate effect on interstate commerce via the commerce power, even if the effect is indirect. Court looked at the cumulative effect of that wheat on the national market. One of the primary purposes of the Act was to increase the market price of wheat and to that end to limit the volume thereof that could affect the market. Home-consumed wheat would have a substantial influence on price and market conditions.

国会通过了一项法律，**规制**农民为自给自足而种植的小麦数量。最高法院裁定：国会可**凭借**商业权，规制那些对州际商业存在累积影响的琐碎地方性州内活动，即便该影响是间接的。法院考量了这类小麦对全国市场的叠加效应：该法案的核心目的之一是提高小麦的市场价格，为此需限制流入市场的小麦总量；而农民自给的小麦会对价格与市场状况产生实质性影响。

Supreme Court Case: United States v. Morrison 2000

最高法院案例：2000 年美国诉莫里森案

It involves the civil damages provision of the Violence Against Women Act, this law says that women who suffered from gender-motivated violence could sue in federal court for remedy even if there is no criminal case. A woman was raped by some Virginia Tech football players, she sued in federal court under this Act (without a criminal case existed) and the case was brought up to the Supreme Court.

这涉及到《防止对妇女施暴法》的民事损害赔偿条款，该法规定，即使没有刑事案件，遭受性别暴力的妇女也可以向联邦法院起诉，要求赔偿。一名妇女被一些弗吉尼亚理工大学的足球运动员强奸，她根据该法案向联邦法院提起诉讼（没有刑事案件存在），案件被提交给最高法院。

The issue here is here whether Congress has the power to regulate this kind of violence through VAWA under Commerce Clause.

这里的问题是国会**是否**有权根据商业条款通过《防止对妇女施暴法》规范这种暴力行为。

The Supreme Court held that the acts of violence such as those that VAWA was meant to remedy had only an attenuated effect on interstate commerce but not a substantial one. And because Congress was regulating non-economic activity such as sexual assault, domestic violence through the VAWA, so the substantial effect cannot be based on cumulative impact. Therefore, Congress shouldn't have the power to regulate it under Commerce Clause, therefore VAWA was unconstitutional.

最高法院认为，《防止对妇女施暴法》旨在补救的暴力行为对州际贸易的影响只是减弱的，而不是实质性的。因为国会是通过《防止对妇女施暴法》规范非经济活动如性侵犯，家庭暴力，所以实质性的影响不能建立在累积影响的基础上。因此，国会**不应该**有权力根据商业条款对其进行监管，因此《防止对妇女施暴法》是违宪的。

Also, the Commerce Clause gives Congress power only to **regulate existing commercial activity**, it does NOT give Congress power to compel activities meaning **Congress cannot regulate inactivity**, even if failure to undertake the activity may affect interstate commerce.

商业条款仅授权国会**规制既存商业活动**，而无权强制创设新的交易行为。这意味着：即便特定不作为可能影响州际贸易，国会亦**不得规制消极行为**。

Supreme Court Case: Affordable Care Act (Obamacare).

最高法院案例：平价医疗法案（奥巴马医改）

The Act requires individuals to buy health insurance or pay a tax penalty. The federal government tried to defend the individual mandate on the ground that since everybody is consuming health care, Congress should be able to require, under Commerce Clause power, that people purchase insurance. But five justices didn't agree, they said that Congress was regulating people who did not purchase health insurance, which was regulating inactivity. But finally it got passed based on taxing power.

《平价医疗法案》规定，个人必须购买医疗保险，否则需缴纳税款罚金。联邦政府曾依据商业条款为该个人强制参保条款辩护，主张由于全民均会涉及医疗消费，国会应**有权**要求公民购买保险。但五位大法官提出异议，认为国会此举实质上是在规制不参保行为，已超出商业条款授权范围。最终，该条款基于征税权的合宪性获得通过。

d.The Tenth Amendment 《第十修正案》

The Tenth Amendment as a limit on Congressional powers states that all powers not granted to the United States, nor prohibited to the states, are reserved to the states or the people.

《第十修正案》作为对国会权力的限制条款规定：所有未授予给联邦、也未禁止各州行使的权力，由各州或由人民享有。

From this, following principles emerge:

由此得出以下原则：

- ① Congress **cannot compel state regulatory or legislative action**. Note that Congress can induce state government action by putting strings on grants, so long as the conditions are expressly stated and relate to the purpose of the spending program as long as they are not unduly coercive.
国会**无权强制各州采取监管或立法行动**。但需注意，国会可通过在拨款中附加条件的方式引导州政府行动，前提是这些条件有明确规定、与支出项目的目的相关，且不具有过度的强制性。**高频考点**

Supreme Court Case 1: New York v. United States 1992

最高法院案例 1：1992 年纽约诉美国案

Congress enacted the Low-Level Radioactive Waste Policy Amendments Act of 1985, which included a take title incentive. It said where a state that did not arrange for disposal of its waste would be required to take ownership of the waste. Under the take title provision, states would be liable for damages incurred by the waste owner or as a result of failure to have their own waste disposal site. New York claimed the Act violated the Tenth Amendment by invading the sovereignty of the state.
国会于 1985 年颁布了《低放射性废物政策修正法案》，其中包括一项所有权激励措施。它说，没有安排处理其废物的国家将被要求拥有废物的所有权。根据所有权规定，各州将对废物所有者造成的损害或由于没有自己的废物处理场而造成的损害负责。纽约州声称该法案侵犯了该州主权，违反了宪法《第十修正案》。

The Supreme Court held that the take title provision gave a state two options. Either the state could (i) take title to the waste and risk whatever liability that followed, or (ii) regulate the disposal according to the congressional mandate. Either way, the state would be forced to implement the federal regulatory scheme and would be agents of the federal government.
最高法院认为，所有权条款给了各州两种选择。它们可以 (i) 取得废物的所有权并承担随之而来的任何责任，或 (ii) 根据国会的授权管理处置。无论哪种方式，州政府都将被迫执行联邦监管计划，并成为联邦政府的代理人。

Supreme Court Case 2: National Federation of Independent Business v. Sebelius 2012

最高法院案例 2：2012 年全国独立企业联合会诉西贝利厄斯案

One part of Obamacare said that states receiving federal Medicaid money had to set Medicaid levels at 133% above the federal poverty level or they would lose all federal Medicaid funds. The Supreme Court found this unconstitutional since the states are so dependent on federal Medicaid money and this move is dragooning the states, it's like a gun to the head of states. Justice said it's so coercive that it violates the 10th Amendment.
奥巴马医改的一部分规定，接受联邦医疗补助资金的州必须将医疗补助水平设定在高于联邦贫困水平 133% 的水平，否则他们将失去所有联邦医疗补助资金。最高法院认为这是违宪的，因为各州如此依赖联邦医疗补助计划的资金，而这一举动是拖住各州，就像拿枪指着各州元首。法官说这是强制性的，违反了《第十修正案》。

Example:

If federal government wants the drinking age to be 21 years old, it can say to all states that any state that wants to keep the 5% federal fund on highways has to set their drinking age to 21; if not, the state would lose this 5% federal fund. This is constitutional, since the conditions are expressly stated and it's not unduly coercive.
如果联邦政府希望将饮酒年龄定为 21 岁，它可以对所有州说，任何想要保留 5% 联邦高速公路基金的州都必须将饮酒年龄定为 21 岁；否则，该州将失去这 5% 的联邦基金。这是符合宪法的，因为条件是明确规定的，没有过度的强制性。

- ② Congress **may prohibit harmful commercial activities by state governments**.
国会可以**制止州政府对商业活动有害的行为**。

Supreme Court Case: Reno v. Condon 2000

最高法院案例：2000 年雷诺诉康登案

The DPPA establishes penalties for disclosure or resale of personal information contained in state motor vehicle records. These penalties apply to individuals and state agencies. The Respondent, South Carolina's Attorney General Charlie Condon (Respondent), argued that by requiring States to abide by the federal guidelines, Congress has overstepped the limitations of the Tenth Amendment.
《驾驶员隐私保护法》规定了对披露或转售州机动车辆记录中包含的个人信息处罚。这些处罚适用于个人和各州政府机构。被上诉人南卡罗来纳州总检察长查理·康登（被上诉人）认为，国会要求各州遵守联邦指导方针的做法已经超越了宪法《第十修正案》的限制。

The issue here is that may Congress require State to comply with the DPPA.
这里的问题是，国会是否可以要求各州遵守政治行动纲领。

The Supreme Court held that the DPPA does not require the states to regulate their own citizens, neither does it require the South Carolina legislature to enact any laws or assist in the enforcement of federal statutes regulating private citizens. As the DPPA only restricts state government action to control the massive leak of driver's personal information, it cannot be said to commandeer state government in violation of the Tenth Amendment.
最高法院认为，《驾驶员隐私保护法》没有要求各州监管自己的公民，也没有要求南卡罗来纳州立法机构制定任何法律或协助执行监管私人公民的联邦法规。由于《驾驶员隐私保护法》只是限制州政府控制司机个人信息大规模泄露的行动，因此不能说它违反了《第十修正案》而征用州政府。

e. The Fourteenth Amendment Section 5 《第十四修正案》第 5 条

Congress's power under Section 5 of the 14th Amendment. Section 5 authorizes Congress to enact laws to enforce the Fourteenth Amendment. But, Congress may not create new rights or expand the scope of rights. Congress may act only to prevent or remedy violations of rights recognized by the courts and such laws must be proportionate and congruent to remedying constitutional violations.
《第十四修正案》第 5 款授权国会制定法律以实施该修正案，但国会无权创设新权利或扩大权利范围。国会仅能采取行动预防或救济法院已认可的权利受侵害的情形；且此类法律须与宪法权利受侵害的救济具有相称性与适当性。

Supreme Court Case: City of Boerne v. Flores 1997

最高法院案例：1997 年布尔恩市诉弗洛雷斯案

In 1990, Congress very narrowly interpreted what's protected by the Free Exercise Clause of the First Amendment. In 1993, Congress passed and President Clinton signed the Religious Freedom Restoration Act. It sought to restore religious freedom by statute to what had previously been under the Constitution.
1990 年，国会非常狭隘地解释了宪法《第一修正案》的自由行使条款所保护的内容。1993 年，国会通过并由克林顿总统签署了《恢复宗教自由法案》。它试图以法律的形式恢复宗教自由，恢复以前宪法规定的宗教自由。

The court said in the case this was unconstitutional as applied to state and local government. Congress has adopted pursuant to Section 5 of the 14th Amendment. The Supreme Court said that Congress here was creating new rights, expanding the scope of rights. However, all that Congress can do is to act to prevent or remedy violation of rights already recognized by the courts. As a result, this Religious Act was found unconstitutional as applied to state and local governments.
法院在该案中表示，这一规定适用于州和地方政府是违宪的。国会根据《第十四修正案》第 5 条通过。最高法院说，国会在这里创造了新的权利，扩大了权利的范围。然而，国会所能做的只是采取行动，防止或补救对法院已经承认的权利的侵犯。结果，这项宗教法案在适用于州和地方政府时被认定违宪。

B. Delegation of Powers 权力下放

Delegation of Powers refers to the constitutional principle governing how Congress may transfer its legislative authority to executive or administrative bodies, while also addressing limits on congressional actions (like invalid vetoes) that conflict with constitutional procedural requirements.

权力下放是一项宪法原则，规范国会可将其立法权委托给行政或行政机构的规则，同时涉及对国会与宪法程序要求相冲突的行为（如违宪的否决权）的限制。

1. **No limit** exists on Congress's ability to **delegate legislative power**.

对于国会将其立法权进行委托的能力没有限制。



【MBE 考试提示】

Since 1935, not one federal law has been declared unconstitutional as an excessive delegation of legislative power. So, in an MBE question, never choose an answer saying that “a federal law is unconstitutional on the ground that it's an excessive delegation of legislative power.” Because no matter how broad the power is, courts have been always upholding the delegation.

自 1935 年以来，尚无任何联邦法律因立法权过度委托而被宣告违宪。因此，在 MBE 题目中，绝不要选择“某联邦法律因立法权过度委托而违宪”这一选项。因为无论委托的权力范围多宽泛，法院始终会支持此类委托行为。

2. **Legislative vetos** and **line-item vetos** are unconstitutional. For Congress to act, there always must be bicameralism (passed by both the House and the Senate) and presentment (giving the bill to the President to sign or veto). The President must sign or veto the bill in its entirety.

立法否决权和单项否决权均属违宪。国会要采取行动，必须始终遵循两院制原则（法案需经众议院和参议院通过）和呈递程序（将法案送交总统签署或否决）。总统必须对法案进行整体签署或否决。即通过只能全通过 / 全不通过，不能有中间情况。

a. Legislative veto attempts to overturn an executive action without bicameralism and/or presentment.

立法否决权，试图在不经两院制审议和 / 或总统签署程序的情况下，推翻行政部门的行动。举个例子，若仅众议院通过一项措施来推翻行政部门的行动（未获得参议院批准），或是该措施跳过了呈递给总统签署或否决的步骤，任何此类用于否决行政行动的不完整立法程序，都属于立法否决权。

b. A line-item veto is where the president attempts to veto part of the bill while signing the rest into law.

单项否决权，是指总统试图否决法案的部分条款，同时将其余条款签署成为法律的权力。

3. Congress may **not** delegate **executive power** to itself or its officers.

不能将行政权力委托给自己或自己的官员。



Review Activity

Congress passed a statute requiring energy consumption be reduced by a specified percentage, to be set by a presidential executive order. The statute provided specific standards that the President must use in setting the percentage, and detailed procedures to be followed.

国会通过了一项法规，要求将能源消耗减少一个特定的百分比，由总统行政命令设定。该法规规定了总统在确定百分比时必须使用的具体标准，以及应遵循的详细程序。

Is this statute likely constitutional?

这个法规可能符合宪法吗？

(A) Yes, because it creates a limited administrative power to implement the statute.

是的，因为它创造了一个有限的行政权力来执行法规。

(B) Yes, because inherent executive powers permit such action even without statutory authorization.

是的，因为固有的行政权力允许这样的行动，即使没有法定授权。

(C) No, because it is an undue delegation of legislative power to the executive branch.

不，因为这是将立法权不适当地授权给行政部门。

(D) No, because it violates the Due Process Clause of the Fifth Amendment.

不，因为它违反了《第五修正案》的正当程序条款。



Analysis:

正确选项为（A）。

国会可以委托其立法权 (legislative power)，对此并无限制；因此本题中，国会将自身立法权委托给总统，由总统以行政命令的方式公布，这一做法是合法的。

本题一定要注意不能选（C），因为在 MBE 题目中，切勿选择声称某联邦法律因立法权过度委托而违宪 (a federal law is unconstitutional on the ground that it's an excessive delegation of legislative power) 的答案。原因在于：无论委托的权力范围多么宽泛，法院始终会支持这类立法权委托行为。

III. The Federal Executive Power 联邦行政权

Overview 综述

This section covers **The Federal Executive Power**, which encompasses the President's authority across both foreign policy and domestic affairs—with key intersections with the **constitutional framework for protecting individual liberties** (a foundational MBE topic).

本部分介绍**联邦行政权**，涵盖总统在外交政策与国内事务中的权限——同时与**宪法对个人自由的保护框架**紧密关联。

In **foreign policy** (tested at least once yearly), core powers include negotiating **treaties** (requiring Senate approval) and **executive agreements** (binding without legislative consent). Here, the President holds broad discretion: they have significant authority to decide who may enter U.S. territory (though this power is not absolute—courts may review if it violates rights like equal protection under the 14th Amendment). As **Commander-in-Chief**, the President also has wide power to deploy American troops abroad, but military actions that infringe on citizens' liberties (e.g., due process in detainee cases) are subject to constitutional scrutiny. Limits on recognition power (e.g., avoiding actions that undermine individual rights) also tie to this framework.

在**外交政策**（每年至少考查一题）领域，核心权力包括缔结**条约**（需参议院批准）与**行政协定**（无需立法机构同意即可生效）。在此范畴内，总统拥有广泛裁量权：其在决定谁可进入美国领土的问题上享有很大决策权，但该权力并非绝对，如果决策违反第十四修正案的平等保护等权利，法院可对其进行审查。作为**三军统帅**，总统也拥有在海外动用美军的广泛权力，但侵害公民自由的军事行动（如被拘留者案件中的正当程序问题）需接受宪法审查。承认权的限制（如避免损害个人权利的行为）同样与这一保护框架相关。

For **domestic affairs**, the President's powers include **appointment and removal of officials** (which shapes agencies' enforcement of liberty-protective laws), while **impeachment and removal** serves as a check on executive conduct that threatens rights. The President benefits from **immunity** (shielding them from civil suits for official acts, to avoid distracting from duties) and **executive privilege** (protecting confidential communications—but limited if it blocks access to evidence in criminal cases, balancing separation of powers with due process). Notably, the President's power to pardon federal offenses is broad, but cannot undo state convictions (preserving states' role in enforcing their own laws, a layer of liberty protection via federalism). Finally, the **Take Care Clause** requires the President to faithfully execute laws—including those that safeguard individual liberties (e.g., civil rights statutes), with failure to do so potentially violating the framework.

在**国内事务**方面，总统的权力包括**官员的委任与罢免权**（这会影响行政机构对保护自由的法律的执行），而**弹劾与罢免程序**是对威胁公民权利的行政行为的制衡机制。总统享有**豁免权**（使其免受针对公务行为的民事诉讼，避免职责被干扰）与**行政特权**（保护机密沟通，但如果阻碍刑事案件中的证据获取，则会受到限制，以此平衡三权分立与正当程序）。值得注意的是，总统赦免联邦罪行的权力虽广泛，但无法撤销州法院的定罪（这保留了各州执行本州法律的职能，是通过联邦制实现的自由保护层级）。最后，“保证法律的严格实施条款”要求总统忠实执行法律，包括那些保障个人自由的法律（如民权法案），若未履行该义务，可能违反这一自由保护框架。

A. Foreign Policy 外交政策

1. Treaties 条约

Treaties are agreements between the **United States** and a **foreign country** that are **negotiated by the President** and are effective when **ratified by the Senate**.

条约是美国与**外国**之间达成的各项协议，由**总统进行谈判**，**经参议院批准**后才能生效。

- a. Treaties prevail over conflicting state laws;
条约和州法冲突，条约胜；
- b. If a treaty conflicts with a federal statute, the one adopted last in time controls;
条约和联邦法冲突，新法胜；
- c. If a treaty conflicts with the United States Constitution, it is invalid.
条约和宪法冲突，宪法胜。

2. Executive Agreements 行政协定

An executive agreement is an agreement between the United States and a foreign country that is effective when signed by the President and the head of the foreign nation.

行政协定是美国与外国之间达成的协定，由总统与外国元首签署后即生效，不需要参议院通过。

💡【MBE 考试提示】

In an MBE question, if the title is a treaty, it has to be approved by the Senate. But if it's an executive agreement, there is no Senate approval.

在 MBE 问题中，如果标题是一个条约，它必须得到参议院的批准。但如果是行政协定，则无需参议院的批准。

- a.Executive agreements can be used **for any purpose**. Everything that a T reaty can do can be done by an executive agreement.
行政协定可以用于**任何目的**。条约所能做的一切都可以通过执行协定来完成。
- b.Executive agreements prevail over conflicting state laws, but never over conflicting federal laws or the Constitution.
行政协定的效力优先于与之冲突的州法律，但绝不能凌驾于相抵触的联邦法律或宪法条款之上。

Treaties and Executive Agreements
条约与行政协议

	Is Senate Approval Required? 是否需要参议院通过?	Conflicts with State Law 与州法冲突时	Conflicts with Federal Statute 与联邦成文法冲突时	Conflicts with Const. 与宪法冲突时
Treaties 条约	Yes	Treaty Controls 条约优先	Whichever Was Adopted Last in Time Controls 后通过者优先	Const. Controls 宪法优先
Executive Agreements 行政协议	No	Executive Agreement Controls 行政协议优先	Federal Statute Controls 联邦成文法优先	Const. Controls 宪法优先

3. Limits on the Recognition Power 对于承认权的限制

It's unconstitutional for Congress by statute to designate the **capital of a foreign country**.
国会通过法令指定**外国首都**是违宪的。

🔑 Supreme Court Case:

最高法院案例：

Congress adopted a statute that said if a US citizen had a child born in Jerusalem, the US citizen could have the child's passport designate the birthplace as Jerusalem, Israel. When the statute was enacted, US has not declared that they deemed Jerusalem as part of Israel. The Supreme Court declared the federal law unconstitutional, the court said, the power to recognize foreign governments is solely with the president. By Congress recognizing the capital of a country, Congress violates separation of powers.

国会曾通过法案规定，若美国公民在耶路撒冷生育子女，该公民可要求将子女护照上的出生地标注为"以色列·耶路撒冷"。但该法案制定时，美国政府尚未正式承认耶路撒冷属于以色列。联邦最高法院最终判决该联邦法律违宪，裁定：对外国政府的承认权专属总统行使。国会通过立法行为认定他国首都地位，构成对三权分立原则的违反。

4. Power to Determine Who to Allow into the U.S. Soil 决定谁能准入美国国境的权力

The President has broad (though not unlimited) power to determine who may be admitted into the United States, as this authority stems from executive power over foreign affairs. However, this power is subject to constitutional limits. For example, it cannot violate the Equal Protection Clause of the 14th Amendment. 总统拥有广泛（但并非不受限制）的权力来决定谁可获准进入美国，这一权力源于其对外交事务的行政权。不过，该权力受宪法约束。例如，其不得违反第十四修正案的平等保护条款。

🔑 Supreme Court Case: Trump v. Hawaii 2018

最高法院案例：2018 年特朗普诉夏威夷案

Trump issued a travel ban preventing immigration from eight designated countries. Trump had previously said that he wanted to have a Muslim ban on immigration in US. Notwithstanding this, the Supreme Court 5-4 upheld Trump's travel ban. Justices said that President has broad powers to determine who to allow in or not allow in US. The court said that such actions had only to be reasonable. The actual purpose would not matter. The court found Trump's action reasonable, thus constitutional. 特朗普发布了一项旅行禁令，禁止来自八个指定国家的移民。特朗普此前曾表示，他希望禁止穆斯林移民美国。尽管如此，最高法院还是以 5 比 4 支持了特朗普的旅行禁令。法官们表示，总统有广泛的权力来决定谁可以进入美国，谁不可以进入美国。法院表示，这种行为必须是合理的。实际目的并不重要。法院认为特朗普的行为是合理的，因此符合宪法。

5. Power to Use American Troops Abroad 在海外动用美军的权力

The President, as Commander-in-Chief, has broad power to deploy American troops in foreign countries (this authority is rooted in executive war powers). 美国总统作为三军统帅，拥有在海外部署美军的广泛权力（这一权限源于行政战争权）。

However, this power is subject to constitutional checks: Congress retains the power to declare war and control military funding, which balances the President's military authority. Additionally, the President's use of troops cannot violate citizens' constitutional rights. 但该权力受宪法制衡：国会保留宣战权与军事拨款控制权，以此平衡总统的军事权力；同时，总统动用军队的行为不得侵犯公民的宪法权利。

💡 【MBE 考试提示】

Note this key point about presidential troop deployment: For decades, the Supreme Court has never ruled that a president's conduct in this area is unconstitutional. 关于总统部署军队，需注意这一核心考点：数十年来，最高法院从未裁定总统在该领域的行为违宪。

This is a frequent MBE topic, with a common fact pattern: The president deploys troops abroad in a seemingly extreme manner. A challenge is raised, arguing the president is impermissibly waging war without a congressional declaration of war—and a lawsuit is filed claiming the action is unconstitutional. 这是 MBE 的一个高频考点，常见题干情境为：总统以看似激进的方式在海外部署军队，有人提出质疑，主张总统在未经国会宣战的情况下擅自发动战争属于越权行为，并就此提起诉讼，主张该行为违宪。

The best answer (if available) is "The case is dismissed as a political question, because it challenges the President's conduct of foreign policy." If this option is not present, always choose the answer that favors the President prevailing. 最优答案（若选项存在）往往是“此案因属于政治问题而被驳回，因为它挑战了总统的外交政策行为。”如果该选项未出现，则始终选择支持总统胜诉的答案。

B. Domestic Affairs 国内事务

1. The Appointment and Removal Power 委任和罢免权

a. The Appointment Power 委任权

- ① The President appoints ambassadors, federal judges and officers of the United States, although the Senate must approve the nomination. 总统任命大使、联邦法院法官和官员，但是必须要参议院同意此提名。注意：任命权仍然属于总统，参议院只是起到审批的作用。
- ② Congress may vest the appointment of inferior officers in the President, the heads of departments or the lower federal courts. 国会可以将任命下级官员的权力授予总统、某部门的负责人或者是基层联邦法院。

📖 Note:

Congress may not give itself or its officers the appointment power. 也就是说，国会不能将任命权授予自己或其员工。

💡 【MBE 考试提示 1】

This is often tested on MBE. It usually involves a federal statute where Congress says it's creating a new agency. It's going to have some members of the agency appointed by the President. Some are appointed by the speaker of the House, and some by President's pro term of the Senate. This is unconstitutional, since Congress cannot appointment power to itself or its officers. 这是 MBE 考试的常见考点。它通常涉及一项联邦法规，国会表示它正在创建一个新的机构。该机构的一些成员将由总统任命。有些是由众议院议长任命的，有些是由参议院总统任命的。这是违宪的，因为国会不能为自己或其官员任命权力。

💡 【MBE 考试提示 2】

The Supreme Court has never drawn a clear legal distinction between inferior officers and principal officers (often referred to simply as "officers"). The distinction typically relies on common sense in MBE questions. However, two key rules are settled: 最高法院从未对下级官员与高级官员（通常简称“官员”）作出明确的法律区分。在 MBE 题目中，这一区分通常依靠常识判断。但以下两条核心规则是明确的：

- A **principal officer** (or "officer") is an official appointed by the President (with potential Senate confirmation, per the Appointments Clause) and can only be removed from office by the President. **高级官员**是由总统任命的官员（根据《任命条款》，可能需参议院批准），且只有总统有权将其免职。
- An **inferior officer** is an official who may be removed by a principal officer (rather than the President directly). **下级官员**是可由高级官员（而非总统直接）免职的官员。

📌 Example:

Near the end of Bush presidency, the attorney general can fire United States attorneys. That makes a United States attorney an inferior officer. An undersecretary of state can be fired by the secretary of state, which means undersecretary is an inferior officer. When it comes to the inferior officers, they could be appointed by the President, or they can be appointed by the head of the office, or it can give it to the lower federal courts. 在布什总统任期即将结束时，司法部长可以解雇联邦检察官。这让联邦检察官成了低级警官。副国务卿可以被国务卿解雇，这意味着副国务卿是一个下级官员。当涉及到下级官员时，他们可以由总统任命，也可以由办公室负责人任命，或者可以将其交给下级联邦法院。

- ③ The President may not make **recess appointments** during intrasession recesses that are less than 10 days.
总统不得在会期内（国会未休会的短暂休会）时长不足 10 天的休会期间进行**休会任命**。

Recess appointment: a recess appointment is an appointment by the President of a federal official when the U.S. Senate is in recess.
休会任命是指美国总统在美国参议院休会期间对联邦官员的任命。在参议院休会期间，由总统对联邦官员的任命。

Review Activity:

A new federal statute establishes a five-member commission on cultural heritage sites. The statute directs the commission to develop regulations to protect such sites on federal public lands and to implement the regulations through specified fact-finding and adjudicatory functions. The commission is not under the supervision or control of any federal agency.

一项新的联邦法规建立了一个由五人组成的文化遗产委员会。该法规指示委员会制定法规，保护联邦公共土地上的这些地点，并通过具体的事实调查和裁决职能来实施这些法规。该委员会不受任何联邦机构的监督或控制。

Which, if any, of the following methods of appointing the commission members would be constitutional?
下列委任委员会成员的方法，如有的话，哪一种符合宪法的？

- (A) Members are appointed by a specially designated panel of federal judges.
成员由一个特别指定的联邦法官小组任命。
- (B) Members are appointed by the Speaker of the House of Representatives, with the advice and consent of both houses of Congress.
议员由众议院议长任命，并征得国会两院的意见和同意。
- (C) Members are appointed by the President, with the advice and consent of the Senate.
议员由总统任命，并征得参议院的意见和同意。
- (D) None of these appointment methods would be constitutional.
这些任命方式都不符合宪法。

Analysis:

正确选项 (C)。

题干告知“该委员会不受任何联邦机构的监督或管控”，这说明该委员会的人员显然是高级官员（principal officer），而非级别更低的官员（inferior officer）。对于高级官员而言，应由总统任命，但需获得参议院的同意（用 consent 或 approval 字眼均可）；既然需要参议院的同意，那么同时征求其意见（advice）自然也是可行的。因此选择 (C)。（A）和（B）选项的问题在于，它们将该委员会的官员认定为下级官员（inferior officer），这一判断是错误的。

b. The Removal Power 罢免权

Unless removal is limited by statute, **the President may fire any executive branch official**. Congress may, by statute, limit removal, but only if both of two requirements are shown:
一般而言，**总统对所有的行政官员都有罢免权**。而国会，只有在以下两个条件都满足的情况下，才能对总统的罢免权进行限制：

- ① For Congress to limit removal, it must be an office where independent from the President is desirable, and
国会意图干预的职位最好是和总统的职权相独立，以及
- ② Congress cannot prohibit all removals, but only to where there is good cause shown.
国会的干预必须有很好的理由。

Example:

In 1973, President Richard Nixon ordered the firing of then-special prosecutor Archibald Cox. Because there is no limit for Congress to stop, President had the authority for the firing. The Supreme Court said that Congress by statute, can limit the removal of the independent counsel. The court has said the independent counsel exists to investigate alleged wrongdoing by the President or high-level executive officials. Obviously, anyone who is ideally doing this job should be independent of the President. On the contrast, the Congress cannot limit removal of the President's cabinet. The cabinet is there to carry out the President's policies and should not be independent of the President.

1973 年，理查德·尼克松总统下令解雇时任特别检察官阿奇博尔德·考克斯。由于当时国会未设立限制条款，总统行使了此项免职权。联邦最高法院后续裁定：国会可通过立法限制对独立检察官的免职。法院阐明，独立检察官的设立旨在调查总统或高层行政官员的不当行为，因此理想状态下履职者必须独立于总统。与之相反，国会无权限制总统对其内阁成员的免职权——内阁的职能是执行总统政策，故不应独立于总统。

Review Activity

In response to a nationwide increase in drug-related crime, Congress passed a statute creating a new agency responsible for enforcing federal drug laws. The statute authorizes the President to appoint the agency's director with the advice and consent of the Senate and prohibits the President from removing the director without the Senate's consent. The President appointed a director, and the Senate confirmed the appointment.

为了应对全国范围内与毒品有关的犯罪的增加，国会通过了一项法令，成立了一个负责执行联邦毒品法的新机构。该法规授权总统在参议院的建议和同意下任命该机构的主任，并禁止总统在未经参议院同意的情况下罢免该主任。总统任命了一名董事，参议院批准了这一任命。

Recently, the President has become dissatisfied with the director's strict approach to drug-law enforcement and wishes to remove the director. Because a majority of senators favor strict drug-law enforcement, the Senate has refused to consent to the director's removal.

最近，总统对局长在禁毒执法方面的严格做法感到不满，并希望解除局长的职务。由于大多数参议员支持严格的禁毒执法，参议院拒绝同意解除局长的职务。

May the President constitutionally remove the director without the Senate's consent?
总统可以在没有参议院同意的情况下根据宪法罢免局长吗？

- (A) No, because Congress created the director position and may properly impose conditions for the director's appointment and removal.
不能，因为国会设立了局长一职，可以适当地对局长的任免施加条件。
- (B) No, because the President's removal of principal officers of the United States is subject to the advice and consent of the Senate.
不能，因为总统解除美国主要官员的职务须经参议院的建议和同意。
- (C) Yes, because congressional participation in the decision to remove a presidential appointee violates the separation of powers.
可以，因为国会参与撤销总统任命的决定违反了三权分立。
- (D) Yes, because Congress cannot limit the ability of the President to remove any employee of the executive branch. 可以，因为国会不能限制总统罢免行政部门任何雇员的权力。

Analysis:

正确选项 (C)。

一般而言，总统对于联邦政府官员有完全的罢免权，国会只有在满足非常严格的情况下才能进行限制，而本题的情况并不满足这些严格的情况。所以，题干所述的情况下，国会不能限制总统罢免联邦官员的决定。而美国宪法保护总统拥有罢免权的原因，在于保证总统对行政分支的控制，不被别的分支（尤其是立法分支）所干预，也就是为了保证三权分立。因此选择 (C)。

2. Impeachment and Removal 弹劾及罢免

The President, the Vice President, federal judges and officers of the United States can be impeached and removed from the office for treason, bribery, or for high crimes and misdemeanors.

美国总统、副总统、联邦法官和官员可以因叛国罪、贿赂或重罪和轻罪而被弹劾和免职。

a. Impeach and Removal Procedure 弹劾和罢免程序

The Constitution says that the House of Representatives has the sole power to impeach. If the House impeaches someone, then there's a trial in the Senate. Only if the Senate convicts is the person removed from office.

宪法规定，众议院拥有弹劾的唯一权力。如果众议院弹劾某人，那么参议院就会进行审判。只有参议院判定有罪，此人才会被免职。

Example:

Andrew Johnson and Bill Clinton were both impeached by the House of Representatives, but neither was convicted in the Senate, so both finished the terms.

安德鲁·约翰逊和比尔·克林顿均被众议院弹劾，但二人皆未在参议院被定罪，因此都完成了各自的总统任期。

b. Impeachment by the House (Investigative/Accusatory Step) 众议院弹劾（调查 / 指控阶段）

Impeachment by the House does not remove a person from office and this vote only serves as a formal indictment (charging the official with misconduct). Removal requires a separate conviction vote in the Senate.

众议院的弹劾并不能解除一个人的职务，这一投票仅相当于正式起诉（指控官员存在不当行为）。职务解除需要参议院单独进行定罪投票。

c. Voting Requirements for Impeachment 弹劾的投票要求

Impeachment by the House of Representatives requires a majority vote ($\geq 50\% + 1$ of House members); conviction in the Senate (which actually removes the official from office) requires a $2/3$ supermajority vote.

众议院弹劾需要多数投票（即众议院议员 $\geq 50\% + 1$ 的支持）；参议院定罪（这一步才会实际解除官员职务）需要 $2/3$ 的绝对多数投票（即出席参议员中约 67% 的支持）。

3. President's Absolute Immunity 总统的绝对豁免权

The President has **absolute immunity to civil suits** for money damages for any actions while in office. However, the President does not have immunity for actions that occurred prior to taking office.

总统在任期间因任何行为而引发的民事损害赔偿诉讼享有绝对豁免权，但就其就职前发生的违法行为不享有豁免权。

Supreme Court Case 1: Clinton v. Jones

最高法院案例 1：克林顿诉琼斯案

Jones sued Clinton for sexual harassment that allegedly occurred when he was the governor of Arkansas. Clinton asked to dismiss the case based on absolute presidential immunity and was rejected because it occurred before he assumed the office. The Supreme Court said that this immunity exists to protect the exercise of discretion when in office.

琼斯控告克林顿在担任阿肯色州州长期间对她进行性骚扰。克林顿要求以绝对的总统豁免权为由驳回此案，但由于该案发生在他就任总统之前，因此被驳回。最高法院表示，这种豁免的存在是为了保护在任时行使自由裁量权。

Supreme Court Case 2: Nixon v. Fitzgerald 1982

最高法院案例 2：1982 年尼克松诉菲茨杰拉德案

Ernie Fitzgerald was an analyst in the Defense Department, he testified before Congress about cost overruns in building the C-5 transport plane. President Nixon was furious about him for embarrassing the Defense Department and fired him. Fitzgerald sued Nixon for violating his rights to free speech and for redress of grievances.

厄尼·菲茨杰拉德是国防部的一名分析师，他在国会作证说，建造 C-5 运输机的成本超支。尼克松总统对他让国防部难堪感到愤怒，并解雇了他。菲茨杰拉德起诉尼克松侵犯了宪法《第一修正案》规定的言论自由和向国会请愿申诉的权利。

The Supreme Court ordered his suit dismissed because the President has absolute immunity.

最高法院下令驳回他的诉讼，因为总统有绝对豁免权。

4. Executive Privileges 行政特权

The President has executive privilege for presidential paper and conversations, but such privilege must yield to other important government interests.

总统对于与总统职务相关的文件和谈话内容都有行政特权（可以不予透露），但是这种特权必须让步于更重要的政府利益。

The **goal** of the executive privilege is to keep secret conversations with or memoranda from advisors.

行政特权的目的是保密与顾问的谈话或备忘录。

Supreme Court Case: United States v. Nixon 1974

最高法院案例：1974 年美国诉尼克松案

The Watergate special prosecutor subpoenaed tapes of White House conversations to use as part of the prosecution of individuals that had been part of the Watergate cover-up. President Nixon asserted executive privilege, the Supreme Court recognized the executive power, but said that privilege is not absolute. The Supreme Court said that it must yield to when there is an overriding need for the info. The Supreme Court said the need for evidence in a criminal trial outweighs executive privilege. Thus, Nixon was ordered to produce the tapes.

水门事件特别检察官传唤了白宫谈话的录音带，作为起诉参与掩盖水门事件的个人的一部分。尼克松总统主张行政特权，最高法院承认行政权力，但说特权不是绝对的。最高法院表示，当有压倒一切的信息需要时，它必须让步。最高法院表示，刑事审判中对证据的需求超过了行政特权。因此，尼克松被要求出示录音带。

5. Financial Information 财务信息

There is no protection from disclosure of financial information concerning the President from state grand jury subpoenas. But if it's a congressional subpoena, courts must balance the competing interests.

州大陪审团的传票要求披露总统的财务信息时，不存在豁免保护。但如果是国会传票，法院必须对相互冲突的利益进行权衡。

Supreme Court Case1: Trump v. Vance 2020

最高法院案例 1：2020 年特朗普诉万斯案

This case involved a state grand jury in New York that subpoenaed financial records from President Trump's accountant in connection with whether or not there was a violation of New York Campaign Finance Laws in 2016. The Supreme Court rejected any special protection for the President. The Court said that the law has the right to every person's evidence, that the President and his financial information is subject to state grand jury as anybody else.

此案涉及纽约州的一个州大陪审团，该陪审团传唤了特朗普总统的会计师的财务记录，以确定 2016 年是否违反了纽约州竞选财务法。最高法院驳回了对总统的任何特殊保护。法院表示，法律有权获得每个人的证据，总统和他的财务信息和其他人一样，都要接受州大陪审团的调查。

Supreme Court Case 2: Trump v. Mazars USA 2020

最高法院案例 2：2020 年特朗普诉 Mazars USA 案

This case involved two congressional committees that was subpoenaing President Trump's financial records from his accountant from a bank. Here, the Court said that when it's Congress through a committee subpoenaing financial information to the President, there has to be a balance of competing interests. And the Court said that it's necessary for the judiciary to look to such factors as how important is the information to Congress, how broad or narrow is the subpoena, are there other sources of the information, how burdensome with compliance would the subpoena be, etc.

该案件涉及两个国会委员会，他们从银行的会计师那里传唤了特朗普总统的财务记录。在这里，法院表示，当国会通过一个委员会向总统传唤财务信息时，必须平衡相互竞争的利益。法院说，司法部门有必要考虑这些因素，如信息对国会有多重要，传票的范围有多广或有多窄，是否有其他信息来源，传票的合规负担有多重，等等。

6. The Power of Pardon 刑事赦免权

The President has the power to pardon anyone accused or convicted of federal crimes, except where the person to be pardoned has been impeached by the House of Representatives; that person can never be pardoned for the underlying crimes that led to the impeachment. The power does not apply to civil liability.

总统有权赦免被指控或者犯下了联邦罪行的人，但是如果此人已经因其罪行被众议院弹劾了，则此人的此罪行不可被赦免。这种豁免权不可适用于民事案件。

Example:

Bill Clinton could never be pardoned for which he was impeached. Had the House of Representatives voted articles of impeachment against Richard Nixon, which they didn't because he resigned, he could never have been pardoned for the offenses that led to the impeachment.

比尔·克林顿因被弹劾而永远不会被赦免。如果众议院对理查德·尼克松的弹劾条款进行投票，他们没有投票，因为他辞职了，他永远不会因为导致弹劾的罪行而得到赦免。

【MBE 考试提示】

Two critical rules about the President's pardon power (frequently tested):

关于总统赦免权的两条核心规则（经常被考到）:

- The President may grant pardons only for federal criminal liability. Pardon authority does not extend to state criminal liability (state crimes are governed by state pardon processes, e.g., state governors' authority).
总统仅能赦免联邦刑事犯罪责任。赦免权不适用于州刑事犯罪责任（州犯罪的赦免由州层面程序负责，例如州长的权力）。
- The President's pardon power applies only to criminal liability (federal) . It does not cover civil liability (whether federal or state, e.g., civil lawsuits for damages).
总统的赦免权仅适用于刑事责任（联邦层面）。它不涵盖民事责任（无论联邦还是州层面的民事责任，例如要求赔偿损失的民事诉讼）。

7. Take Care Clause 保证法律的严格实施

The Take Care Clause requires the President to take care that the laws be faithfully executed.

忠行条款要求总统确保法律得到忠实执行。

Example:

A federal statute provides that the President must expend all funds appropriated by Congress, and that appropriated funds must be used only for the purposes named in the relevant appropriations act. An appropriations statute directs that \$300 million be spent on planting wildflowers along public highways. Considering the statute to be a waste of money, the President has announced two decisions. First, he will spend half of the money to train troops. Second, he will retain the remaining funds in the federal treasury and not spend them at all. Neither decision is constitutional, because they both violate the take care clause.

一项联邦法规规定，总统必须支出国会拨款的所有资金，而拨款的资金必须仅用于相关拨款法案中指定的目的。一项拨款法规规定，要花 3 亿美元在公共高速公路沿线种植野花。考虑到该法令是浪费金钱，总统宣布了两项决定。首先，他将把一半的资金用于训练军队。其次，他将把剩余的资金保留在联邦财政部，根本不花。这两项决定都不符合宪法，因为它们都违反了注意条款。

IV. Federalism 联邦制，联邦主义

Overview 综述

Federalism is the foundational system of U.S. governance, established by the Constitution to divide sovereign power between a single national (federal) government and 50 individual state governments—rather than concentrating authority in one level. This division means each level has its own distinct powers: for example, the federal government controls national defense, currency, and interstate commerce (per the Constitution), while states oversee areas like education, local law enforcement, and intrastate commerce. A key feature of this system is that both levels are directly accountable to the people (via separate elections) and their powers are protected by the Constitution, creating a balance between national unity and state-level diversity.

联邦制是美国治理的基础体系，由宪法确立，核心是将主权力分配给单一的联邦（中央）政府与 50 个独立的州政府——而非将权力集中于某一级。这种分权意味着两级政府各有专属权力：例如联邦政府负责国防、货币发行、州际贸易（宪法明确授权），而州则管辖教育、地方执法、州内贸易等事务。该体系的关键特点是，两级政府都直接对民众负责（通过各自的选举），且其权力受宪法保护，以此在国家统一性与州层面多样性之间实现平衡。

Preemption is a core rule that resolves conflicts between federal and state law: when the federal government regulates a national issue (e.g., environmental standards for air pollution, federal immigration policy), its laws take legal priority over any conflicting state or local laws. This principle ensures consistency in policy areas that require a unified national approach—for instance, a state cannot set looser air quality rules than federal standards, as federal law preempts the state's conflicting regulation.

优先原则是解决联邦与州法律冲突的核心规则：当联邦政府规范全国性事务（如空气污染的环境标准、联邦移民政策）时，其法律效力优先于任何与之冲突的州或地方法律。这一原则确保了需要全国统一政策的领域规则一致，比如某州不能设定比联邦标准更宽松的空气质量规则，因为联邦法律会优先于该州的冲突性法规。

The **Dormant Commerce Clause** is an implied constitutional rule (derived from the federal power to regulate interstate commerce) that bars states from passing laws that unduly burden or discriminate against out-of-state businesses or trade, even if the federal government has not enacted its own regulation. For example, a state cannot tax out-of-state goods at a higher rate than in-state products, as this would burden interstate commerce. Meanwhile, Article 4's Privileges and Immunities Clause prohibits states from treating out-of-state citizens unfairly in fundamental rights (e.g., the right to seek employment, access to state courts), ensuring that a citizen of New York has the same basic rights when in California as a California resident.

休眠商业条款是一项隐含的宪法规则（源于联邦的州际贸易监管权），禁止州制定过度负担或歧视外州企业 / 贸易的法律，即便联邦政府尚未出台相关法规。例如某州不能对外州商品征收比州内商品更高的税，这会加重州际贸易的负担。而宪法第 4 条的特权与豁免条款禁止州在基本权利（如就业权、州法院准入权）上不公平对待外州公民，确保纽约公民在加利福尼亚州能享有与加州居民同等的基本权利。

When states impose **taxes on interstate commerce** (e.g., a state taxing a company that ships goods across its borders), they must follow strict constitutional limits: taxes cannot target out-of-state businesses, must be proportionate to the amount of business the company conducts within the state, and cannot result in double taxation (where the same activity is taxed by multiple states). These rules prevent states from using taxation to disadvantage out-of-state businesses or hinder the flow of goods and services across the country.

当州**对州际贸易征税**（例如某州对跨州运输商品的企业征税）时，需遵守严格的宪法限制：税收不得针对外州企业，必须与该企业在本州内的业务规模成比例，且不得造成双重征税（同一活动被多个州征税）。这些规则避免州利用税收歧视外州企业，或阻碍商品与服务在全国范围内的流动。

A. Preemption 优先权

1. What is preemption? 什么是优先权?

- a. Article 6 of the Constitution contains what is known as the Supremacy Clause (最高条款, 至上条款). This clause says that the Constitution and the laws and treaties made pursuant to it, are the supreme law of the land. 美国宪法第六条第二项的规定, 宣布该宪法和依该宪法所制定的法律、已经缔结或即将缔结的一切条约, 都是全国最高法律, 对与之冲突的州宪法或法律享有优先权。
- b. The bottom line is: valid federal law overrides or preempts inconsistent state law. 底线是, 有效的联邦法律和不一致的州法律冲突的时候, 联邦法有优先权。

2. Preemption Can be Found in Three Separate Ways 优先权可以通过三种不同的方式找到

a. Express Preemption 明示优先权

When Congress has authority to act, it can state that its power is exclusive in a field; if a federal statute says that a federal law is exclusive in a field, then state and local laws are preempted. 如果联邦法中明确表明其规定为独家的, 那么在此领域中联邦法相较于州和地方法律有优先权。

Example:

The Federal Meat Labeling Act says that only US Department of Agriculture can prescribe grades and labels for meat. Thus, states can have no beef over their inability to regulate meat labeling, because of express preemption. 《联邦肉类标签法》规定, 只有美国农业部才能规定肉类的等级和标签。因此, 由于明确的优先购买权, 各州无法对肉类标签进行监管, 因此无法追究责任。

b. Implied Preemption 默示优先权

Even if a federal statute is silent about preemption, implied preemption can be found in any of the following ways: 即便联邦成文法未明确提及优先规则, 默示优先也可通过以下任一情形成立:

- ① If federal law and state law are **mutually exclusive**, then the state law was deemed preempted. Also known as **conflict preemption**. 如果联邦法与州法**相互排斥**, 则州法被认定为受联邦法优先(即州法不生效)。此情形也被称为**冲突优先**。

Example:

A federal agency adopted a rule that all maple syrup bottles sold in US had to have labels stating their ingredients. Wisconsin actually adopted a law that said no maple syrup bottles sold in that state could have labels stating their ingredients. So these two laws are mutually exclusive. So the state law was deemed preempted. 某联邦机构通过一项规则, 要求所有在美国销售的枫糖浆瓶必须贴注成分标签; 而威斯康星州通过一项法律, 禁止该州销售的枫糖浆瓶贴注成分标签。这两项法律相互排斥, 因此该州法被认定为受联邦法优先原则约束而失去效力。

【MBE 考试提示】

States may set environmental standards stricter than federal law unless Congress clearly prohibits this. For example, California can set air quality standards stricter than the Federal Clean Air Act; Colorado can set water quality standards stricter than the Federal Water Pollution Control Act, unless Congress clearly forbids it. 近年来 MBE 中考到的都是关于环境法, 在国会没有明确反对的情况下, 州可以制定这方面更严格的规定。也就是说, 加州可以制定比《联邦清洁空气法》更严格的空气质量标准; 除非国会明确禁止, 否则科州可以制定比《联邦水污染控制法》更严格的水质标准。

- ② If state law **impedes** the achievement of a federal objective, federal law preempts state law. Also known as **object preemption**. 如果州法**阻碍**了联邦目标的实现, 则联邦法优先于州法。此情形也被称为**目标优先**。

Example:

Florida adopted a law stating that any individual who filed an unfair labor grievance (in labor law, a grievance refers to a complaint filed by an employee or their union representative regarding violations of a collective bargaining agreement, such as working conditions, with the relevant authority) with the National Labor Relations Board (NLRB) would be ineligible to collect unemployment benefits in the state of Florida. 佛罗里达州通过一项法律, 规定: 任何向国家劳工关系委员会(NLRB)提出不公平劳动申诉(劳动法中, “申诉”指雇员或其所属工会代表, 就工作条件等违反集体劳动合同的情形, 向主管机构提出的异议)的个人, 均无资格在佛罗里达州领取失业救济金。

The U.S. Supreme Court held that when Congress enacted the National Labor Relations Act (NLRA) and established the NLRB, its intent was to encourage individuals to file such grievances with the Board. By punishing those who filed these grievances, Florida's law operated to impede the fulfillment of the federal objective underlying the NLRA. Therefore, the state law was deemed preempted by federal law. 美国最高法院裁定: 国会制定《国家劳工关系法》并设立该委员会时, 其立法目的是鼓励民众向委员会提交此类申诉。而佛罗里达州的这项法律, 通过惩罚提出申诉的人, 实质上阻碍了《国家劳工关系法》所承载的联邦目标的实现。因此, 该州法律被认定受联邦法律优先原则约束而失去效力。

- ③ If Congress evidences **a clear intent** to preempt state law, federal law preempts state law. 如果国会有很**清晰的意图**要优先适用联邦法而不是州法, 则联邦法优先适用。

【MBE 考试提示】

The Supreme Court said that Congress has evidenced a clear intent that immigration law be exclusively federal. Thus, attempts by state and local governments to regulate immigration have been deemed preempted. 最高法院表示, 国会已明确表明移民法属于联邦专属权力范畴。因此, 州和地方政府试图监管移民事务的行为已被认定为(因与联邦法律冲突而)无效。

Supreme Court Case Arizona v. United States 2012

最高法院案例: 2012 年最高法院亚利桑那州诉美国案

The court found that Arizona's law, SB1070, which was meant to restrict immigration, was preempted by federal law. Congress had evidenced the desire that federal immigration law wholly occupied the field. 法院裁定: 亚利桑那州旨在规制移民事务的 SB 1070 法案, 受联邦法律的优先原则约束(即失去效力)。国会已明确表明立法意图: 移民事务属于联邦移民法的专属管辖领域, 即联邦对移民事务享有排他性的监管权。

c. Tax or Regulate on Federal Government Activity 对联邦政府活动征税或规制

State may not tax or regulate federal government activity if they are putting a substantial burden on federal activity. This is also called inter-governmental immunity, which means the federal government is immune from unwanted state taxation or regulation. 如果州的征税或规制行为会对联邦政府活动造成实质性负担, 则州不得对联邦政府活动进行征税或规制。这一规则也被称为政府间豁免权, 即联邦政府享有免受州不必要的征税或规制的豁免权。

Supreme Court Case: McCulloch v. State of Maryland

最高法院案例: 麦卡洛克诉马里兰州

The Supreme Court declared unconstitutional a state tax on the Bank of the United States. The power to tax is the power to destroy. If states could tax the US government, they could tax it out of existence. 最高法院宣布对美国银行征收州税违宪。有人曾说过征税的权力就是毁灭的权力。如果各州可以向美国政府征税, 那么它们就可以通过征税使美国政府不复存在。

Fact Pattern 1: If it involves a mom-and-pop store, privately owned, that operates on federal land. Can the state tax that store, require the state collect state taxes? Yes, since any tax liability would be borne by the private owners, but not be paid by the federal treasury, it's okay.

情境 1: 如果涉及到一家夫妻店，私人所有，在联邦土地上经营。该州可以要求店主缴纳州税吗？是的，因为任何纳税义务都将由私人所有者承担，而不是由联邦财政部支付，所以没关系。

Fact Pattern 2: Imagine there's a store on an army base, it's completely owned and operated by federal government, can the state tax that store and require it to pay state tax? No.

情境 2: 想象一下，在一个军事基地有一家商店，它完全由联邦政府拥有和经营，所在州可以对这家商店征税并要求它缴纳州税吗？答案是否。



【MBE 考试提示】

An important principle that is often tested on MBE: It's unconstitutional to pay a state tax out of the federal treasury. 这是 MBE 中常考的一个重要原则：用联邦财政资金缴纳州税属于违宪行为。



Review Activity

The federal government hired a private contractor to repair and maintain the roads in a national park located wholly within a state. In a written agreement, the government agreed to pay the contractor an annual fixed fee and to reimburse the contractor for all expenses associated with the work. The agreement provided that the contractor must pay for all materials and expenses from a special bank account into which the government would deposit required payments and reimbursements.

联邦政府雇佣了一个私人承包商来维修和维护一个完全位于一个州内的国家公园的道路。在一份书面协议中，政府同意每年向承包商支付固定费用，并偿还承包商与这项工作有关的所有费用。该协议规定，承包商必须从一个专用银行账户支付所有材料和费用，政府将把所需的付款和报销存入该账户。

The state collected a generally applicable sales tax from the contractor on materials purchased for the work with money from the special bank account.

州政府对承包商用专用银行账户的钱为工程购买的材料征收普遍适用的销售税。

Was the state's imposition of the sales tax constitutional in this situation?

在这种情况下，该州征收销售税符合宪法吗？

(A) No, because the federal government is immune from any taxes levied by a state.

不符合，因为联邦政府不受各州征收的任何税款的影响。

(B) No, because the tax was paid from an account directly funded with federal money and the entire economic cost of the tax was borne by the federal government.

不符合，因为税收是由联邦资金直接资助的账户支付的，税收的全部经济成本由联邦政府承担。

(C) Yes, because payment of the tax did not unduly interfere with the contractor's performance of the work and was not an undue burden on a federal function.

符合，因为纳税并没有不当地干扰承包商的工作表现，也没有对联邦职能造成不适当的负担。

(D) Yes, because the tax did not discriminate against the federal government or its contractors, and the materials were purchased by the contractor rather than by the federal government.

符合，因为这项税没有歧视联邦政府或其承包商，而且材料是由承包商而不是联邦政府购买的。



Analysis:

正确选项为 (D)。

当一个州的税收并非仅针对联邦政府或其财产征收，而是一视同仁地普遍征收（非歧视性征税），且相关支出并非由政府直接承担时，该州的这项税收是合法有效的。

B. Dormant Commerce Clause & Privileges and Immunities Clause of Article 4
第 4 条休眠商业条款及特权与豁免条款

1. Definition 定义

a. Dormant Commerce Clause 休眠商业条款

The dormant commerce clause (sometimes called on the bar: Negative implications of the commerce clause) is the principal that State or local laws are **unconstitutional** if they **place an undue burden on interstate commerce**.

休眠商业条款（有时也被称为“限制规则”，即商业条款的消极隐含效力）规定：如果州或地方法律给州际贸易施加了过度负担，则该法律违反宪法。



Supreme Court Case 1: Philadelphia v. New Jersey

最高法院案例 1：费城诉新泽西州案

New Jersey adopted a state law saying that no out-of-state garbage could be buried in New Jersey landfills. The law was blatantly discriminatory against out-of-staters, and was found to violate the Dormant Commerce Clause. 新泽西州颁布一项州法律，禁止将外州垃圾填埋于该州的垃圾填埋场。该法律明显歧视外州主体及个人，最终被裁定违反休眠商业条款。



Supreme Court Case 2: Granholm v. Heald

最高法院案例 2：格兰霍姆诉希尔德案

Michigan adopted a law that said that in-state wineries could ship wine directly through the mail to consumers but the out-of-state wineries could not. It's in violation of Dormant Commerce Clause.

密歇根州颁布一项州法律，允许本州酒庄通过邮寄方式直接向该州消费者配送葡萄酒，却禁止外州酒庄进行同样的配送。该法律被裁定违反休眠商业条款。



【MBE 考试提示】

区分商业条款还是休眠商业条款的核心是明确题目中的行为主体（actor）：

- If the actor is Congress (the federal legislative body), the question centers on the scope of Congress's power under the Commerce Clause (i.e., Congress's authority to regulate interstate commerce directly). 如果行为主体是国会（联邦立法机构），题目考查的是商业条款下国会的权力范围。
- If the actor is a state or local government, the question will address whether the state/local action violates the Dormant Commerce Clause (a judicially implied rule barring state/local laws that unduly burden or discriminate against interstate commerce). 如果行为主体是州或地方政府，题目考查的是该州 / 地方政府的行为是否违反休眠商业条款。

简言之：商业条款是一项积极授权规则（positive grant of power），它明确赋予国会规制州际贸易的权力；休眠商业条款是商业条款的消极隐含规则（negative implication）：它并非宪法明文规定的条款，而是由法院通过解释商业条款推导而来，用于限制州 / 地方政府干扰州际贸易，包括施加过度负担或歧视性措施。

b. Privileges and Immunities Clause of Article 4 第 4 条特权与豁免条款

The Privileges and Immunities Clause of Article 4 provides that no state or municipality may deny out-of-state citizens the same privileges and immunities it grants to its own residents—unless the state can show a substantial, legitimate justification for the discrimination.

宪法第 4 条的特权与豁免条款规定：州或市政当局不得拒绝向外州公民提供其赋予本州居民的同等特权与豁免权，除非该州能证明这种歧视存在实质、合法的正当理由。

c. Privileges or Immunities Clause of the 14th Amendment 《第十四修正案》特权或豁免条款

The Privileges or Immunities Clause of the 14th Amendment is primarily interpreted to protect an individual's fundamental right to travel freely between states , including the right to enter, reside in, and engage in lawful activities in any state.

《第十四修正案》的特权或豁免条款，其核心解释是保障个人在各州之间自由迁徙的基本权利，包括进入任一州、在该州居住，以及在该州从事合法活动的权利。

Supreme Court Case: Saenz v. Roe

最高法院案例：萨恩斯诉罗伊案

It involves from a California law that said, if a person moved from another state into California and was going to receive welfare benefits, welfare benefits for the first year, at the level of the state where the person moved from. 此案涉及加利福尼亚州的一项法律：若某人从其他州迁居至加州并申请领取福利金，则其迁居后首年可领取的福利金标准，需按其原迁居州的福利水平执行。

Supreme Court declared it unconstitutional. The court said freedom of travel is a fundamental right protected under the Privileges or Immunity Clause of 14th Amendment, Supreme Court said the CA law will chill interstate travel and migration.

最高法院裁定该法律违宪，理由是：迁徙自由是受第十四修正案特权或豁免条款保护的基本权利，而加州的这项法律会抑制州际间的迁徙活动。



Note:

*The Privileges or Immunities Clause of the 14th Amendment will always be an incorrect answer choice, unless the question specifically involves the **right to travel** (between states).*

除非题目涉及（州际间的）迁徙权，否则选择第十四修正案的特权或豁免条款作为答案绝对是错误的。因为过去 20 年间，最高法院从未将该条款适用于其他领域；**迁徙权**是这么多年来，法院唯一依据该条款推翻某部法律的适用场景。



【MBE 考试提示】

When tackling questions involving the Dormant Commerce Clause and the Privileges and Immunities Clause of Article 4, start with this core question: **Does the state law discriminate against out-of-state citizens?** This is the key inquiry that will guide the likely outcome.

当遇到涉及休眠商业条款与宪法第 4 条特权与豁免条款的题目时，解题的切入点是：**分析该州法律是否存在对外州公民的歧视？**这是判断题目最终结论的核心问题。

2. Discrimination against Out-of-Staters 对外州人员的歧视

When a law does not discriminate against out-of-state residents, the specific applicable rules are as follows:

当法律未歧视外州居民时，具体适用规则如下：

a. The Privileges and Immunities Clause of Article 4 does not apply here—this provision only takes effect when there is discrimination against out-of-state citizens.

宪法第 4 条的特权与豁免条款在此情形下并不适用，因为该条款仅在存在对外州公民的歧视时才会被触发。

b. If the law imposes a burden on interstate commerce, it will violate the Dormant Commerce Clause if the burden it creates outweighs the legitimate local benefits it serves.

如果该法律给州际贸易施加了负担，且这种负担超过了其带来的合法地方利益，则该法律违反休眠商业条款。



Example:

A landmark case arose in Illinois: the state enacted a rule requiring all trucks operating within Illinois to use curved mud flaps (instead of straight ones). The U.S. Supreme Court ruled this law unconstitutional, reasoning that it imposed an undue burden on interstate commerce: trucks equipped with straight mud flaps would either have to divert around Illinois entirely, or stop to replace their mud flaps before entering the state.

伊利诺伊州曾出现一起标志性案例：该州出台规定，要求所有在伊利诺伊州境内行驶的卡车，必须安装弧形挡泥板（而非直形挡泥板）。美国最高法院裁定该法律违宪，理由是其给州际贸易施加了过度负担：装有直形挡泥板的卡车，要么只能绕行伊利诺伊州，要么需在进入该州前停车更换挡泥板。

3. No Discrimination against Out-of-Staters 不歧视外州人

When a law discriminates against out-of-state residents, the applicable rules are as follows:

当法律歧视外州居民时，适用规则如下：

a. General Rule 一般规则

If the law discriminates against interstate commerce, it **violates the Dormant Commerce Clause, unless** the discrimination is necessary to achieve an important government purpose, and the government can show that no non-discriminatory alternative can accomplish that purpose.

如果州法对州际贸易存在歧视，则其**违反休眠商业条款**；除非该歧视是实现重要政府目的所必需的，且政府能证明不存在非歧视性的替代方案可达成该目的。

Supreme Court Case: Maine v. Taylor

最高法院案例：缅因州诉泰勒案

Maine enacted a law prohibiting the import of out-of-state bait fish, on the grounds that these fish might carry parasites endangering Maine's indigenous endangered species. The Supreme Court upheld this discriminatory law, recognizing the state's compelling interest in preserving natural resources.

缅因州通过一项法律，禁止进口外州诱饵鱼，理由是这些鱼可能携带寄生虫，危及该州本土濒危物种。最高法院支持了这项歧视性法律，认可该州保护自然资源的重大利益。



Note:

Favoring in-state residents or businesses at the expense of out-of-staters (often called a "protectionist purpose") will never be considered sufficiently important to justify a discriminatory law.

以牺牲外州居民或企业为代价扶持本州居民 / 企业（常被称为“保护主义目的”），永远不会被认定为足够重要的理由，无法为歧视性法律提供正当性。

b. Exceptions 例外情况

There are exceptions where a law that would otherwise violate the Dormant Commerce Clause will be upheld:

存在例外情形时，原本违反休眠商业条款的法律会被支持：

① Approval by Congress 国会批准

If Congress approves the law, it is permissible.

如果国会批准该法律，则合法。

② Market Participation Exception 市场参与例外

A state or local government may prioritize its own citizens when distributing benefits from government programs or transacting with government-owned businesses.

当州 / 地方政府分配政府项目福利，或与政府所有企业交易时，可优先考虑本州公民。

Example 1:

The University of California may charge lower tuition to in-state students and higher tuition to out-of-state students. The university is considered a government benefit program, so the state can favor in-state residents (who have long paid taxes to support the program) over non-taxpaying out-of-staters. However, if California enacted a law requiring private colleges to charge lower tuition to in-staters, this would violate the Dormant Commerce Clause.

加州大学可向州内学生收取较低学费，向外州学生收取较高学费。加州大学被认定为政府福利项目，因此该州可优先考虑长期纳税支持项目的州内居民，而非未纳税的外州居民。但如果加州立法要求私立大学向州内学生收取更低学费，则会违反休眠商业条款。

Example 2:

South Dakota has a state-owned cement factory that charges lower prices to in-staters and higher prices to out-of-staters. The Supreme Court upheld this practice, as the factory is government-owned and operated (a government program). In contrast, a law allowing private cement factories to do the same would violate the Dormant Commerce Clause.

南达科他州有一家国有水泥厂，向州内居民收取低价、向外州居民收取高价。最高法院支持这一做法，因为该工厂是政府所有并运营的（属于政府项目）。反之，若法律允许私营水泥厂实施同样定价，则会违反休眠商业条款。

c. Discrimination against Ability to Earn a Living 对谋生能力存在歧视

If a law discriminates against out-of-staters in their ability to earn a living (fundamental rights or important economic activities), it violates the Privileges and Immunities Clause of Article 4, unless the discrimination is necessary to achieve an important government purpose.

如果法律在谋生能力（涉及基本权利或重要经济活动）方面歧视外州居民，则违反宪法第 4 条特权与豁免条款；除非该歧视是实现重要政府目的所必需的。

Example 1:

In South Carolina, there is a state law that said if a person wanted a commercial shrimp fishing license and the person was an in-stater, a \$25 fee; and for the out-of-stater, a \$2,500 fee. Supreme Court said that the law discriminates the out-of-staters in terms of their ability to earn a living through commercial shrimp fishing.

南卡罗来纳州出台一项法律规定：州内居民申请商业捕虾许可证需缴费 25 美元，外州居民则需 2500 美元。最高法院认定，该法律在通过商业捕虾谋生的能力方面歧视了外州居民。

Example 2:

蒙大拿州一项法律规定：州内居民申请麋鹿狩猎许可证只需小额费用，外州居民则需缴纳高额费用。一名外州居民依据宪法第 4 条特权与豁免条款质疑该法律，但最高法院驳回了质疑，称麋鹿狩猎仅属于爱好而非谋生活动。

【MBE 考试提示】

Corporations and aliens cannot invoke the Privileges and Immunities Clause. Thus, in MBE questions: 公司和外国人不能援引特权与豁免条款。因此在 MBE 题目中

- If a corporation challenges a discriminatory state law, only the Dormant Commerce Clause applies.
如果公司质疑歧视性州法，仅适用休眠商业条款。
- If a U.S. citizen challenges a discriminatory state law, both the Dormant Commerce Clause and Article 4's Privileges and Immunities Clause must be considered.
如果美国公民质疑歧视性州法，则需同时考虑休眠商业条款和第 4 条特权与豁免条款。

Dormant Commerce Clause / Privileges and Immunities Clause of Article IV
休眠贸易条款 / 第 4 条特权和豁免条款

Core Question: Does This State of Local Government's Action Discriminate Against Out-of-Staters?

核心问题：这个州或地方政府的行为是否歧视州外居民？

YES(是)

Violates the Dormant Commerce Clause if it places a burden on interstate commerce unless it is necessary to achieve an important government purpose. Two exceptions:

- a) Congressional approval of discrimination.
- b) Market participant exception.

如果该行为对州际贸易造成负担，则违反休眠贸易条款，除非有必要实现一个重要的政府目的。

两种例外情况：

- a) 国会批准歧视。
- b) 市场参与者例外。

NO(否)

If the government is burdening interstate commerce, balance the benefit to the state against the burden on interstate commerce (if the benefit exceeds the burden, the law is upheld; if the burden exceeds the benefit, the law is struck down).

如果该行为给州际贸易带来负担，则应权衡政府的利益与州际贸易的负担（如果收益超过负担，则法律成立；如果负担超过收益，则法律被认定无效）。

Violates the Privileges and Immunities Clause of Article IV if it discriminates against individuals with regard to important economic activities of fundamental rights unless it is necessary to achieve an important government purpose. 除非是为了达到重要的政府目的，否则在重要的经济活动或基本权利方面歧视个人，违反了第四条的特权和豁免条款。

Privileges and Immunities Clause of Article IV is inapplicable. 不适用第四条的特权和豁免条款。

Comparison of the Dormant Commerce Clause and the Privileges and Immunities Clause of Article IV
休眠贸易条款与第四条特权和豁免条款的对比

Dormant Commerce Clause
休眠贸易条款

- Does not require discrimination against out-of-staters in order to apply
适用无需以“歧视外州居民”为前提
- Requires a burden on interstate commerce
需要对州际贸易造成负担
- Corporations and allens can sue under it
公司和外国人可以依据该法提起诉讼
- Exceptions: Congressional approval and the market participant exception
例外：国会批准和市场参与者例外

Privileges and Immunities Clause
特权和豁免条款

- Requires discrimination against out-of-staters in order to apply
适用需以“歧视外州居民”为前提
- Requires discrimination with regard to fundamental rights or important economic activities
要求在基本权利或重要经济活动方面进行歧视
- Corporations and allens cannot sue under it
公司和外国人不能根据该法提起诉讼
- No exceptions
没有例外

Review Activity

A state law requires every motor carrier hauling goods on the state's highways to register with and obtain a permit from the state's transportation commission. The purpose of this requirement is to facilitate application of the state's valid police, welfare, and safety regulations to carriers using the state's highways. The fee for registration is nominal, and the commission has no discretion to deny a permit to a carrier that properly registers and pays the registration fee.

一项州法律规定：所有在该州高速公路上运输货物的汽车承运人，均须向州运输委员会注册并取得许可。该要求的目的是推动该州有效的治安、福利及安全法规适用于使用该州高速公路的承运人。注册费为象征性收费，对于依法完成注册并缴纳费用的承运人，委员会无酌情权拒绝发放许可。

Are the state's requirements constitutional when applied to a wholly interstate carrier?

当适用于完全跨州的承运人时，该州的上述要求是否符合宪法？

(A) No, because neither a carrier's registration nor its payment of a nominal fee is necessary to facilitate the application of state laws to motor carriers.

不符合，因承运人的注册和象征性费用支付都不是促进州法律适用于汽车承运人的必要条件。

(B) No, because the requirements impose an undue burden on interstate commerce.

不符合，因这些要求对州际贸易造成了不应有的负担。

(C) Yes, because the requirements apply equally to interstate and intrastate carriers and are the only prerequisites to the issuance of the permit.

符合，因这些要求同样适用于州际和州内的运输公司，并且是签发许可证的唯一先决条件。

(D) Yes, because the requirements are the least restrictive means of serving the state's compelling interest in highway safety.

符合，因这些要求是满足该州在高速公路安全方面的迫切利益的限制最少的方式。

Analysis:

正确答案为（C）。

本题中，该州法律未歧视州际贸易，且题干表明：与该州适用治安、福利及安全法规的利益相比，该要求的负担极低 (the burden is minimal compared with the state's interest in applying its police, welfare, and safety regulations)。因此此处不涉及违反宪法第 4 条特权与豁免条款，该州的要求符合宪法。

C. State Taxation of Interstate Commerce 州对跨州贸易课税的相关问题

1. States may **not** use their **tax systems** to help in-state businesses.

各州不得利用其**税收体系**扶持本州企业（而歧视外州的商业）

A lot of states have state laws encouraging people to buy in-state dairies; if buy in-state dairies, then just small taxes; if buy out-of-state dairies, then big taxes. This is unconstitutional.

许多州都有州法律鼓励人们购买州内乳制品；如果买州内乳制品，那么只需小额税收；如果买州外的乳制品，那就要交高额的税。这是违宪的。

2. A state may only tax activities if there is a **substantial nexus** to the state.

一州仅能对与本州存在**实质联系**的活动征税。

Note:

A state may require that out-of-state business collect sales tax even if they don't have a physical presence in the state, so long as the business has a substantial nexus to the state. e.g.: Internet e-commerce companies.

一个州可能要求州外企业征收销售税，即使他们在该州没有实体存在，只要企业与该州有实质性联系。例如：互联网电子商务公司。

3. State taxation of interstate businesses must be fairly **apportioned**.

对跨州经营企业的州征税必须合理**分摊**税额。

Example:

An interstate truck company which operates in all 50 states, a state could calculate the percentage or revenue it earns in that state compared to the rest of the country, or the miles traveled in that state compared to the rest of the country, as long as the state only tax that which is connected to the state, the tax is allowed.

一家在全美 50 个州均有业务的跨州卡车公司，某州可通过该公司在本州的收入占其全国总收入的比例，或该公司在本州的行驶里程占其全国总里程的比例来核算应税部分。只要该州仅对与本州存在关联的业务部分征税，这种征税行为就是合法的。

V. The Structure of the Constitution's Protection of Individual Liberties

个人自由保护之宪法框架

Overview 综述

The Structure of the Constitution's Protection of Individual Liberties refers to the framework through which the U.S. Constitution safeguards personal freedoms from government interference. It includes defining when the Constitution applies (e.g., government vs. private conduct), extending Bill of Rights protections to state governments, and using different judicial review standards to evaluate government actions that restrict liberties.

个人自由保护之宪法框架指美国宪法用以防范政府干预、保障个人自由的体系，涵盖宪法适用的前提（如政府行为与私人行为的区分）、《权利法案》对州政府的约束，以及法院评估政府限权行为的不同审查标准。

The Constitution applies only to **government action**, such as laws, policies, or conduct by government agencies or officials, and generally does not cover private conduct (like actions by individuals, businesses, or non-government groups). Narrow exceptions exist when private actors perform public functions (e.g., a private company operating a public prison) or when the government compels private discrimination.

宪法仅适用于**政府行为**（例如政府机构或官员制定的法律、政策或实施的行为），通常不适用于私人行为（如个人、企业或非政府组织的行为）。仅当私人主体履行公共职能（如私营公司运营公立监狱），或政府强制私人实施歧视行为时，宪法才会适用于私人行为。

The **Bill of Rights** (the first 10 constitutional amendments) initially restricted only the federal government. Through the "incorporation doctrine" (applied via the 14th Amendment), most protections in the Bill of Rights now also bind state and local governments, ensuring these governments respect the same individual liberties as the federal government.

《**权利法案**》（宪法前 10 条修正案）最初仅约束联邦政府。通过“合并原则”（借助第 14 条修正案适用），《权利法案》的大部分保护内容如今也约束州及地方政府，确保这些政府与联邦政府一样尊重个人自由。

Courts use **three levels of scrutiny** to evaluate government actions affecting individual liberties: **Rational Basis Test** applies to non-fundamental rights or non-suspect classes, requiring only a rational link to a legitimate government interest; **Intermediate Scrutiny** applies to quasi-suspect classes (e.g., gender) or important non-fundamental rights, requiring a substantial link to an important government interest; **Strict Scrutiny**, applied to fundamental rights (e.g., speech) or suspect classes (e.g., race), requires the action to be narrowly tailored to a compelling government interest with no less restrictive alternative.

法院通过**三种审查标准**评估影响个人自由的政府行为：**合理基础审查**适用于非基本权利或非可疑群体，仅要求行为与合法政府利益存在合理关联；**中等审查**适用于准可疑群体（如性别）或重要非基本权利，要求行为与重要政府利益存在实质关联；**严格审查**适用于基本权利（如言论）或可疑群体（如种族），要求行为是为实现迫切政府利益而精准制定，且无更少限制的替代方案。

A. Is there a Government Action? 有政府行动吗？

1. The Constitution applies only to **government action**. Private conduct need not comply with the Constitution.

只有**政府行为**需要符合宪法要求，私人行为不需要。

2. Congress, **by statute, may** apply constitutional norms to **private conduct**.

国会可以在以下情况下**通过立法**要求**私人行为**也遵循宪法要求：

a. Pursuant to the 13th Amendment (which prohibits slavery and involuntary servitude), Congress can prohibit private race discrimination and has broad powers to adopt laws to enforce this provision.

根据《第十三修正案》的规定（禁止奴隶制和强制劳役），国会可以禁止私人的人种歧视，并且有广泛的权力制定和通过法律去实施《第十三修正案》的规定。

Example:

The U.S. Constitution initially applies only to government conduct (not private conduct) — so racial discrimination by private companies was not directly regulated by the Constitution itself. However, Congress has translated constitutional values (like equal protection) to private conduct by enacting federal statutes: for example, Title VII of the Civil Rights Act of 1964 prohibits private employers from racial discrimination against employees. Under these laws, employees can sue private companies for racial discrimination.

美国宪法最初仅适用于政府行为（不适用于私人行为）——因此私营公司的种族歧视行为本身不受宪法直接规制。但国会通过制定联邦法律（将宪法价值如“平等保护”延伸至私人行为）：例如 1964 年《民权法案》第七章明确禁止私营雇主对员工实施种族歧视。依据这些法律，员工可以起诉私营公司的种族歧视行为。

【MBE 考试提示】

Private discrimination never violates 13th Amendment, only slavery does. But private discrimination can violate a statute adopted by Congress under the 13th Amendment.

私人歧视本身不违反《第十三修正案》，只有奴隶制才违反。但私人歧视可能违反国会根据《第十三修正案》通过的联邦法规。

b. The commerce power **can** be used to apply constitutional norms to **private conduct**.

国会**可以通过**贸易权使得**私人行为**遵循宪法的规定。

Example:

One of the most famous legislative examples in U.S. history is the Civil Rights Act of 1964, which Congress enacted based on the Commerce Power (from Article I, Section 8 of the Constitution), the Equal Protection Obligation (from the 14th Amendment), and the Voting Rights Protection (from the 15th Amendment). Within this Act, Title II addresses discrimination in public accommodations: it prohibits venues like hotels and restaurants from engaging in race-based discrimination, such as refusing service to certain groups or segregating seating. Title VII, meanwhile, targets employment discrimination—it requires employers to avoid bias against employees or job applicants based on race, sex, or religion, whether in hiring decisions, salary setting, or other employment-related matters. Congress drew on its authority under the Commerce Clause to establish these provisions, and the U.S. Supreme Court has affirmed that these laws are consistent with the Constitution.

这是美国历史上最著名的立法案例之一：《1964 年民权法案》，由国会依据宪法第一条第八款的商事权力、第十四修正案的平等保护义务，以及第十五修正案的投票权保护条款制定而成。法案中的 Title II 针对公共场所的歧视问题，禁止酒店、餐厅等场所实施基于种族的歧视行为，比如拒绝为特定群体提供服务或设置隔离座位；而 Title VII 则聚焦就业歧视，要求雇主在招聘、薪酬设定等各类就业相关事务中，不得基于种族、性别或宗教对员工或求职者施加偏见。国会是凭借其商事条款下的授权确立了这些规定，且美国最高法院已确认这些法律符合宪法要求。

Supreme Court Case: Ollie's Barbecue case (Katzenbach v. McClung, 1964)

最高法院案例：奥利烧烤店案（1964 年卡岑巴赫诉麦克朗案）

Ollie McClung argued that his restaurant (Ollie's Barbecue, located on a major road in Birmingham, Alabama near an interstate highway) could refuse service to African Americans—claiming Congress lacked authority under the Commerce Clause to enact the Civil Rights Act of 1964. Though his suppliers were local, half his food came from outside Alabama, and he served many out-of-state customers; still, he insisted his small business had no impact on interstate commerce.

奥利·麦克朗主张，自己位于阿拉巴马州伯明翰主干道（邻近州际公路）的餐厅“奥利烧烤店”有权**拒绝为非裔美国人提供服务**，理由是国会依据《商事条款》制定《1964 年民权法案》的行为越权。尽管他的供应商是本地的，但餐厅半数食材来自阿拉巴马州外，且服务大量州外顾客；即便如此，他仍坚称自己的小生意不影响州际贸易。

The issue was: **Does the Civil Rights Act of 1964 (enacted via the Commerce Clause) have the power to prohibit racial discrimination by private restaurants?**

本案争议焦点是：国会依据《商事条款》制定的《1964 年民权法案》，是否有权禁止私营餐厅实施种族歧视？

The Supreme Court ruled against McClung: it held the Civil Rights Act could bar his restaurant from discriminating against African Americans. The Court reasoned that restaurant discrimination burdened interstate commerce in two ways: (1) it disrupted the interstate flow of food (since his supplies came from out of state); (2) it restricted the interstate movement of African Americans (who could not access services while traveling across states). The Court concluded the Act was a rational means to protect interstate commerce, as discrimination undermined this national economic activity.

最高法院裁判**支持民权法案**：裁定该法案可禁止麦克朗的餐厅歧视非裔美国人。法院的理由是，餐厅的种族歧视从两方面损害了州际贸易：（1）干扰了食材的州际流通（因其食材来自州外）；（2）限制了非裔美国人的跨州流动（他们在跨州旅行时无法获得服务）。法院最终认定，《民权法案》是保护州际贸易的合理手段，因为歧视会破坏这一全国性经济活动。

c. Congress **cannot** use Section 5 of the 14th Amendment to regulate **private behavior**, but only to regulate **state and local government**.

国会**不能**使用《第十四修正案》第五条去管理**私人行为**，而只能用来管理**州和地方政府**。

Supreme Court Case: United States v. Morrison 2000

最高法院案例：2000 年美国诉莫里森案

It involves the civil damages provision of the Violence Against Women Act, this law says that women who suffered from gender-motivated violence could sue in federal court for remedy even if there is no criminal case. A woman was raped by some Virginia Tech football players, she sued in federal court under this Act (without a criminal case existed) and the case was brought up to the Supreme Court.

这涉及到《反对对妇女施暴法》的民事损害赔偿条款，该法规定，即使没有刑事案件，遭受性别暴力的妇女也可以向联邦法院起诉，要求赔偿。一名妇女被一些弗吉尼亚理工大学的足球运动员强奸，她根据该法案向联邦法院提起诉讼（没有刑事案件存在），案件被提交给最高法院。

The issue here is here whether Congress has the power to regulate this kind of violence through VAWA under Commerce Clause.

这里的问题是国会是否有权根据商业条款通过《反对对妇女施暴法》规范这种暴力行为。

The Supreme Court held that Congress **shouldn't have the power to regulate private behavior** under Section 5 of 14th Amendment. The court also held VAWA unconstitutional under Commerce Clause because it's non-economic activity and the behavior it protects does not have substantial impact on interstate commerce.

最高法院认为，根据《第十四修正案》第 5 条，**国会无权规范私人行为**。法院还根据商业条款裁定《反对对妇女施暴法》违宪，因为性别暴力是非经济活动，它所保护的行为对州际贸易没有实质性影响。



Note:

我们还在哪里见过《第十四修正案》第五条？

1. *States may be sued pursuant to federal laws adopted under Section 5 of the 14th Amendment;*
各州可根据《第十四修正案》第五条规定的联邦法律被起诉；

2. *Congress's power under Section 5 of the 14th Amendment: Not to create new rights or expand the scope of rights, but just to prevent or remedy past violations of rights.*

国会根据《第十四修正案》第五条所拥有的权力：**不得创造新的权利或扩大权利的范围，只能防止或补救过去侵犯权利的行为。**

3. Exceptions 例外情形

Situations where private conduct **MUST** comply with the Constitution:

以下的情况，私人行为也必须合宪：

a. Public Function Exception 公共职能例外

The Constitution applies if a private entity is performing a task traditionally, exclusively done by the government.

公共职能的例外，即如果私人主体在履行一项传统上且专门由政府承担的职能，则宪法（条款）对其适用。

Supreme Court Case 1: Marsh v. Alabama 1946

最高法院案例 1：1946 年马什诉阿拉巴马州案

Marsh involved a company town, the company literally owned all the land in the town and ran the town. Some Jehovah's Witnesses wanted to distribute literature. The company said, this is private property, Constitutional does not apply. The Supreme Court upheld Jehovah's Witnesses, the Supreme Court explained that running a town is a task that's been traditionally exclusively done by the government, when a private entity does it, it must comply with the Constitution.

马什镇的运营由一家公司掌控，该公司不仅拥有镇内所有土地，还直接管理全镇事务。当耶和华见证人试图分发宗教宣传材料时，该公司以“这是私有财产，宪法不适用”为由拒绝合作。美国最高法院最终支持了耶和华见证人的诉求，并明确指出：城镇管理历来是政府专属职责，任何私人实体若涉足此领域，都必须遵守宪法规定。

Supreme Court Case 2: White primary case: Smith v. Allwright 1944

最高法院案例 2：1944 年白人初选案：史密斯诉奥尔赖特案

In late 19th century, Texas refused to allow African Americans to vote. When Texas was ordered to enfranchise blacks, it said it would no longer hold political primary elections. It would let the political parties, private entities, run their own primary elections. The political party then refused to allow African Americans to vote. But the Supreme Court said that holding an election for government office, even a primary election, is a task that's been traditionally, exclusively done by the government, when a private entity does it, it must comply with the Constitution.

19 世纪末，得克萨斯州禁止非裔美国人投票。在法院下令该州赋予黑人公民选举权后，德州停止举办公立初选，转而将初选的组织权交给政党（私人实体）。这些政党随后拒绝允许非裔美国人参与其初选投票。最高法院裁定：政府公职的政党初选属于公共职能 这是传统上完全由政府履行的事务；即便由私人实体（如政党）执行该职能，也必须遵守宪法（包括平等保护权，禁止选举中的种族歧视）。

Supreme Court Case 3: Jackson v. Metropolitan Edison 1974 高频考点

最高法院案例 3：1974 年杰克逊诉大都会爱迪生公司案

Jackson involved a privately owned utility company that went to terminate a customer's service. The customer argued that running utility is a task that's been traditionally exclusively done by the government, when a private entity does it, it must comply with the Constitution. The Supreme Court ruled in favor of the private utility and against the customer. The Supreme Court said that since it's a private utility, the Constitution doesn't apply. The court said running an utility isn't an activity that's been traditionally exclusively done by the government. And thus, since the Constitution didn't apply, no due process was required.

杰克逊案涉及一家私营公用事业公司，该公司试图终止客户的服务。客户主张，运营公用事业是一项传统上由政府独家负责的任务，如果私营实体这样做，就必须遵守宪法。最高法院判决该私营公用事业公司胜诉，而客户败诉。最高法院表示，由于该公司是私营公用事业公司，宪法不适用。同时法院也指出，运营公用事业并非传统上由政府独家负责的活动。因此，由于宪法不适用，无需遵循正当程序。

b. The Entanglement Exception 纠缠的例外

The Constitution applies if the government affirmatively authorizes, encourages or facilitates unconstitutional activity. Either the government has to stop what it's doing, or the private conduct has to comply with the Constitution.

当政府授权、鼓励或者促进违宪行为的发生时，因为政府和私人行为之间发生了纠缠 / 不能分开，所以也适用宪法。如果私人行为不想受到宪法的管制，其必须断开和政府的纠缠；若纠缠行为继续，则私人行为就要继续受到宪法的管制。因为关于此例外法院的意见不甚统一，所以对于以下几个经典案例一定要好好把握：

① Courts **cannot enforce racially restrictive covenants**.

法院**不能强制种族限制**的合同条款。

 Supreme Court Case: Shelly v. Kraemer 1948

最高法院案例：1948 年雪莱诉克雷默案

The case arose after an African-American family purchased a house in St. Louis that was subject to a restrictive covenant preventing "people of the Negro or Mongolian Race" from occupying the property. The purchase was challenged in court by a neighboring resident and was blocked by the Supreme Court of Missouri before going to the U.S. Supreme Court on appeal.

此案的起因是一个非裔美国家庭在圣路易斯购买了一处房产，该房产受一项限制性契约的约束，禁止“黑人或蒙古人种”居住。该交易遭到邻近居民的诉讼，并被密苏里州最高法院阻止，之后上诉至美国最高法院。

In a majority opinion, U.S. Supreme Court Chief Justice Fred Vinson struck down the covenant, holding that the Fourteenth Amendment's Equal Protection Clause prohibits racially restrictive housing covenants from being enforced. Vinson held that private parties could abide by the terms of racially restrictive covenant, but that a judicial enforcement of the covenant qualified as a state action and was thus prohibited by the Equal Protection Clause.

美国最高法院首席大法官弗雷德·文森在多数意见中推翻了该契约，认为《第十四修正案》的平等保护条款禁止执行种族限制性住房契约。文森认为，私人可以遵守种族限制性契约的条款，但司法执行该契约属于州政府行为，因此受到平等保护条款的禁止。

- ② There is a state action **when the government leases premises to a restaurant that racially discriminates.**
当政府将场所出租给存在种族歧视的餐厅时，即构成州政府行为。

 Supreme Court Case: Burton v. Wilmington Parking Authority 1961

最高法院案例：1961 年伯顿诉威尔明顿停车管理局案

Wilmington, Delaware ran a parking authority, the parking authority leases space to The Eagle Restaurant, this restaurant refused to admit or serve African American customers. Supreme Court said that for the government to lease premises to a restaurant that racially discriminates is for the government to impliedly authorize, to facilitate discrimination. The Supreme Court said that if the restaurant wants to stay on government property, it has to stop discriminating.

特拉华州威尔明顿市经营着一家停车管理局，该停车管理局将场地出租给鹰餐厅，但这家餐厅拒绝接纳或服务非裔美国人顾客。最高法院裁定，政府将场地出租给一家种族歧视的餐厅，即构成默示授权，助长歧视行为。最高法院表示，如果这家餐厅想继续留在政府土地上，就必须停止歧视行为。

- ③ There is a state action **when a state provides free textbooks to private schools that racially discriminate.**
当政府向存在种族歧视的私立学校提供免费教科书时，即构成州政府行为。

 Supreme Court Case: Norwood v. Harrison 1973

最高法院案例：1973 年诺伍德诉哈里森案

The State of Mississippi adopted a program of giving free textbooks to all public and private schools in the state. The recipients included segregated, all-white private schools. The Supreme Court said that for Mississippi, especially at that in history, to give free books to schools that racially discriminate was for the state to impliedly authorize to facilitate discrimination. The Supreme Court said that if the private schools want to continue to get the free books, they have to stop discriminating.

密西西比州通过了一项计划，向该州所有公立和私立学校免费提供教科书。受惠学校包括实行种族隔离、全白人私立学校。最高法院表示，对于密西西比州来说，尤其是在历史上的那个时期，向种族歧视的学校免费提供教科书，无异于该州默示授权助长歧视。最高法院表示，如果私立学校想要继续获得免费教科书，就必须停止歧视。

- ④ There is no state action **when a private school that is over 99% funded by the government fires a teacher because of her speech.**

即使一所私立学校的大多数经费（如 99%）来自政府，校方因教师的言论将其解雇的行为亦不构成州政府行为。也就是说，虽然这所私立学校的经费大多来自政府，但法律上它仍是私人主体；即便拿了大量政府资金，它因教师言论解雇教师的行为，不会被认定为州政府行为，所以不适用宪法（如《第一修正案》关于言论自由）的约束。

 Supreme Court Case:

最高法院案例：

There was a private school in Massachusetts, it provided special education, it was over 99% funded by the government. A teacher there criticized the principle, and she got fired. Some other teachers spoke on her behalf, they got fired too. They sued saying, given the almost 100% government funding, that should be enough for the Constitution to apply. But the Supreme Court ruled in favor of the school. The court noted that it was a private school. The court said that the state have not done anything to encourage firing teachers for their speech. The Supreme Court said the government subsidy is insufficient for a finding of state action.

马萨诸塞州有一所私立学校，提供特殊教育，其 99% 以上的资金由政府提供。一位老师批评了校长，结果被解雇了。其他一些老师也为她辩护，结果也被解雇了。他们提起诉讼，称鉴于学校几乎 100% 的资金都由政府提供，这应该足以让宪法得以适用。但最高法院最终判决学校胜诉。法院指出，这是一所私立学校。法院表示，州政府没有采取任何措施鼓励教师因言论不当而被解雇。最高法院表示，政府补贴不足以构成州行为。

 【MBE 考试提示】 高频考点

Even the private school received almost 100% government subsidy, it is not sufficient for a finding of state action.

也就是说，即使私立学校获得几乎 100% 的政府补贴，这也不足以认定其行为构成州政府行为。

- ⑤ There is no state action **when the NCAA orders the suspension of a basketball coach at a state university.**
当全国大学体育协会（NCAA）对某州立大学的篮球教练作出停职处罚时，不构成州行为。这一情形不符合纠缠例外的适用条件，因此无需受宪法约束。

 Supreme Court Case: NCAA v. Tarkanian 1988

最高法院案例：1988 年 NCAA 诉 Tarkanian 案

Jerry Tarkanian was the basketball coach at the University of Nevada at Las Vegas. The National Collegiate Athletic Association ordered him suspended for recurring violations. He sued and said he should get due process. He said that he worked for a state university and NCAA is largely made up of state colleges and universities, he should be given due process. The Supreme Court ruled in favor of NCAA, because it is a private entity, so it does not have to comply with the Constitution.

杰里·塔卡尼安曾任内华达大学拉斯维加斯分校篮球教练。美国大学体育协会（NCAA）因他屡次违规而下令对他停赛。他提起诉讼，并表示自己应该获得正当程序。他表示，自己在一所州立大学工作，而 NCAA 主要由州立学院和大学组成，因此他应该获得正当程序。最高法院最终裁定 NCAA 胜诉，因为它是一个私人实体，因此无需遵守宪法。

- ⑥ There is state action **when a private entity regulates interscholastic sports within a state.**
当一个私人团体组织 / 管理一个州内的校际运动活动时，其符合纠缠的例外，因而需要适用宪法。

 Supreme Court Case: Brentwood Academy v. Tennessee Secondary School Athletic Association 2001

最高法院案例：2001 年布伦特伍德学院诉田纳西州中学体育协会案

The Tennessee Secondary School Athletic Association is a private entity in Tennessee that oversees high school sports. The State of Tennessee delegated its authority to the Association to regulate these sports activities. The Association imposed sanctions on Brentwood Academy for violating recruiting rules; the Academy then sued the Association, arguing it was entitled to due process before the sanctions were issued. 田纳西州中学体育协会是田纳西州内负责监管高中体育活动的私人实体，田纳西州已将高中体育的监管权委托给该协会。该协会以布伦特伍德学院违反招生规定为由对其实施处罚，学院随后起诉协会，主张处罚前应经过正当法律程序。

The Association claimed it was a private entity (similar to the NCAA), so the Constitution did not apply to its actions. However, the Supreme Court ruled against the Association, citing the entanglement between the Tennessee Athletic Association and the state of Tennessee. The Court noted two key points: The State of Tennessee had explicitly delegated its regulatory authority over high school sports to the Association; and 85% of the Association's members were public schools, most of its funding came from public schools, and it typically held meetings on public school premises.

协会辩称自己是私人实体（与全国大学体育协会 NCAA 类似），因此宪法不适用于其行为。但最高法院判决协会败诉，理由是田纳西州中学体育协会与田纳西州之间存在深度纠缠。法院指出两项核心依据：田纳西州已明确将高中体育的监管权授予该协会；协会 85% 的成员是公立学校，其大部分资金来自公立学校，且通常在公立学校场地召开会议。

Why Doesn't the NCAA Precedent Apply Here?
为何 NCAA 的判例在此不适用？

The Supreme Court's only explanation for distinguishing this case from the NCAA precedent was: the NCAA operates nationwide, while the Tennessee Association operates solely within one state. Though this geographic scope difference should not logically affect the "state action" analysis, the Supreme Court nonetheless relied on it to reach its decision.

最高法院区分本案与 NCAA 判例的唯一理由是：NCAA 的运营范围遍及全美，而田纳西州体育协会仅在单一州内运作。尽管（运营范围的差异）在逻辑上本不应影响“州行为”的认定，但联邦最高法院最终仍以此为依据作出了裁决。

- ⑦ There is no state action **when a private club with a liquor license from the state racially discriminates**.
当一个从州那里获得卖酒执照的私人酒吧进行种族歧视时，其不被当做是州行为，因而不符合纠缠例外的条件，不用遵循宪法。

Supreme Court Case: Moose Lodge No. 107 v. Irvis 1972 最高法院案例：1972 年 Moose Lodge 案第 107 号诉 Irvis 案

The Moose Lodge did not serve Irvis, an African-American man invited to its private dining room by a white member, because of his race. He argued that this constituted unconstitutional racial discrimination because the Lodge received a liquor license from the state. Since the state had control over granting liquor licenses and could issue only a limited number of them, the lower court ruled that this discriminatory conduct could be considered state action. The case was brought up to the Supreme Court eventually.

穆斯旅馆拒绝接待一位白人会员邀请到其私人包厢的非裔美国人艾维斯(Irvis), 理由是他种族歧视。艾维斯辩称, 穆斯旅馆持有州政府颁发的酒类许可证, 因此构成违宪的种族歧视。由于州政府拥有酒类许可证的发放控制权, 且只能发放有限数量的许可证, 因此下级法院裁定, 这种歧视行为可视为州政府行为。此案最终上诉至最高法院。

The Supreme Court held that the operation of Pennsylvania's regulatory scheme enforced by the state liquor board, does not sufficiently implicate the State in appellant's discriminatory guest practices so as to make those practices "state action" within the purview of the Equal Protection Clause, and there is no suggestion in the record that the State's regulation of the sale of liquor is intended overtly or covertly to encourage discrimination. Therefore, the Supreme Court ruled in favor of the Moose Lodge, and the Moose Lodge was able to keep its liquor license and continue its discriminatory policies.

最高法院裁定，宾夕法尼亚州由州酒类委员会执行的监管方案的运作，不足以表明该州参与了上诉人的歧视性宾客行为，从而不足以使这些行为成为平等保护条款范围内的州政府行为。此外，记录中没有任何迹象表明该州对酒类销售的监管意图公开或暗中鼓励歧视。因此，最高法院判决穆斯旅馆胜诉，穆斯旅馆得以保留其酒类经营许可证并继续推行其歧视性政策。

B. The Application of the Bill of Rights 《权利法案》的适用

1. Original Scope: Binding Only the Federal Government 初始适用范围：仅约束联邦政府

The Bill of Rights originally applies directly only to the federal government—meaning its restrictions on government power initially bound only federal authorities, not state or local governments.
《权利法案》最初仅直接适用于联邦政府，即其对政府权力的限制，最初仅约束联邦机关，并不约束州或地方政府。

2. Extension to State & Local Governments via Incorporation Doctrine 通过并入原则扩展适用至州与地方政府

Most provisions of the Bill of Rights have been incorporated into the Due Process Clause of the 14th Amendment, thereby extending their application to state and local governments.
《权利法案》的多数条款通过并入《第十四修正案》的正当法律程序条款，被扩展适用于州及地方政府。

The 14th Amendment prohibits states from depriving any person of "life, liberty, or property, without due process of law." Since 1897, the Supreme Court has (via case law) incorporated nearly all Bill of Rights protections to the states, with three key **exceptions**.

《第十四修正案》规定：非经正当法律程序，任何州不得剥夺公民的生命、自由或财产。自 1897 年起，最高法院通过判例将《权利法案》的几乎所有权利并入州层面的约束，仅保留以下三项例外。

a. 3th Amendment: Right Against Unlawful Quartering of Soldiers 《第三修正案》：禁止士兵未经许可驻留民宅的权利

The 3th Amendment right to be free from the quartering of soldiers in one's home without consent has not been incorporated. States are not bound by this protection.
《第三修正案》中公民有权拒绝士兵未经许可驻留其住宅的权利未被并入。州政府不受此权利约束。

b. 5th Amendment: Right to Grand Jury Indictment in Criminal Cases 《第五修正案》：刑事案件中由大陪审团审查起诉的权利

The 5th Amendment right to a grand jury indictment in criminal cases has not been incorporated. While federal criminal cases require a grand jury to issue an indictment before trial, states may choose to use alternative procedures (e.g., preliminary hearings) instead.
《第五修正案》中刑事案件需经大陪审团审查并出具起诉书的权利未被并入。联邦刑事案件审判前必须经大陪审团起诉，但州政府可选择采用其他程序（如预审听证）替代。

c. 7th Amendment: Right to Jury Trial in Civil Cases 《第七修正案》：民事案件中由陪审团审判的权利

The 7th Amendment right to a jury trial in civil cases has not been incorporated—states are not required to provide jury trials for civil matters (though many do so voluntarily).
《第七修正案》中民事案件由陪审团审判的权利未被并入，州政府无义务为民事案件提供陪审团审判（尽管多数州会自愿采用该程序）。

C. Level of Scrutiny 不同程度的审查标准

When the Supreme Court addresses individual liberties under the Constitution, the outcome of the analysis will depend on the level of scrutiny used by the court. It's imperative to remember the phrasing of the level of scrutiny, describe it the right way and the burden of proof.

当最高法院处理宪法赋予的个人自由时，分析结果将取决于法院采用的审查等级。务必记住审查等级的措辞，并以正确的方式描述审查等级，并明确举证责任。

1. Rational Basis Test 合理性基础测试

Definition: a law is upheld if it is rationally related to legitimate government purpose (no need to be actual purpose). The challenger has the burden of proof.

定义：如果一项法律与合法的政府目的（无需是实际目的）合理相关，则该法律成立。挑战者负有举证责任。

What the government needs to do is to show the government action is permissible, legitimate to do. In fact, the court does not even insist that the government's actual purpose be legitimate. So long as there is a conceivable permissible purpose, that's good enough. And the means just has to be a reasonable, a rational way to achieve the end. Therefore, the rational basis test is tremendously deferential to the government, the government usually wins under this review.

政府需要做的是证明其行为是允许的、合法的。事实上，法院甚至不坚持政府的实际目的是否合法。只要存在一个可以想象的、允许的目的，就足够了。手段也必须是合理的，是实现目标的理性方式。因此，在合理基础测试标准下，法院会对政府表现出极大的尊重，政府通常会在这类审查中胜诉。

Example:

A state law bans the sale of alcohol to people under 18. A 17-year-old challenges the law, arguing it violates their liberty.
某州法律禁止向 18 岁以下人群销售酒精。一名 17 岁未成年人起诉该法律，主张其侵犯自身自由权。

The court applies the rational basis test: the government's legitimate purpose (protecting minors' health) is rationally related to the law (banning underage alcohol sales). The challenger fails to prove the law is irrational, so the law is upheld.
法院适用合理性基础审查：政府保护未成年人健康的合法目的，与禁止未成年人购酒的法律存在合理关联。挑战者无法证明该法律不合理，因此法律被维持。

2. Intermediate Scrutiny 中级审查

Definition: a law will be upheld if it is substantially related to an important government purpose (the actual purpose). Under this test, government had the burden of proof.
定义：如果一项法律与政府的重要目的（即实际目的）实质相关，则该法律将被维持。根据这一标准，政府负有举证责任。

Here, the court will only look at the government's actual purpose. The court has to be persuaded that the government's actual objective is important. A conceivable important purpose for the government's action isn't good enough. And the court has to be persuaded that the means are substantially related to achieving the end. It means that the means that the government used have to be a very good way of achieving the end. The means do not have to be the best, but needs to be substantially related.
在此，法院只会审查政府的实际目的。法院必须确信政府的实际目标至关重要。仅仅设想政府行动的重要目的本身是不够的。法院还必须确信政府的手段与实现目标有实质性关联。这意味着政府使用的手段必须是实现目标的有效途径。这些手段不必是最好的，但必须有实质性关联。

Example:

A state law requires that only men can serve as firefighters (claiming men have greater physical strength). A female applicant challenges the law for gender discrimination.
某州法律规定仅男性可担任消防员（理由是男性体力更强）。一名女性申请者起诉该法律存在性别歧视。

The court applies intermediate scrutiny: the government's "ensuring firefighter physical capability" is an important purpose, but the law (excluding all women) is not substantially related to this purpose (many women meet physical requirements). The law is struck down.
法院适用中级审查：政府“确保消防员体能达标”是重要目的，但“排除所有女性”的法律与该目的并不实质关联（许多女性符合体能要求）。最终该法律被推翻。

3. Strict Scrutiny 严格审查

Definition: a law will be upheld if the law is necessary to achieve a compelling government purposes (the actual purpose). The government has the burden of proof, therefore they lose most of the times.
定义：如果一项法律对于实现令人信服的政府目的（实际目的）是必要的，则该法律将被维护。政府负有举证责任，因此大多数情况下政府都会败诉。

In order for the government to show that the means are necessary, it has to convince the court that there is no less restrictive alternative that can achieve the goal.
为了证明这些手段是必要的，政府必须让法庭相信，没有其他限制较少的替代方案能够实现这一目标。

Example:

A city passes a law banning all religious gatherings in public parks. A church challenges the law for violating free exercise of religion.
某城市通过法律，禁止所有宗教团体在公共公园集会。某教堂起诉该法律侵犯宗教信仰自由权。

The court applies strict scrutiny: the government claims the purpose is "maintaining public order," but this is not a compelling purpose (gatherings can be regulated without a total ban). Even if it were, there are less restrictive alternatives (e.g., requiring permits). The law is struck down.
法院适用严格审查：政府主张目的是“维护公共秩序”，但这并非强制目的（集会可通过管制而非全面禁止实现秩序）；即便目的成立，也存在限制更少的替代方案（如要求申请许可）。最终该法律被推翻。

The Levels of Scrutiny 审查级别				
	Means 方法	Ends 结局	Least Restrictive Alternative Analysis 最少限制性替代分析	Burden of Proof 举证责任
Rational Basis Test 合理性基础测试	Rationally Related 合理性相关	Legitimate Conceivable Purpose 合法可想象的目的	No	Challenger 挑战者
Intermediate Scrutiny 中级审查	Substantially Related 实质性相关	Important Actual Purpose 重要的实际目的	No	Government 政府
Strict Scrutiny 严格审查	Necessary 必要的	Compelling Actual Purpose 令人信服的实际目的	Yes	Government 政府

VI. Individual Liberties 个人自由

Overview 综述

Individual liberties and the Due Process Clause are inseparable: due process functions as the constitutional backbone for protecting individual freedoms, operating in two distinct but complementary forms: **Procedural Due Process** and **Substantive Due Process**.

个人自由与正当法律程序条款密不可分: 正当程序是宪法层面保护个人自由的核心支柱, 以两种独立却互补的形式发挥作用, **程序上的正当法律程序**与**实质性的正当法律程序**。

Procedural Due Process governs the **how** of government action: it requires that when the government seeks to deprive a person of life, liberty, or property, it must use fair, reasonable procedures. This analysis hinges on two core questions: first, whether a deprivation of life, liberty, or property has occurred; second, if so, what specific procedures are required to ensure fairness, tailored to the stakes of the deprivation.

程序上的正当法律程序规范政府行为的**方式**: 当政府试图剥夺个人的生命、自由或财产时, 必须采用公平、合理的程序。其分析围绕两个核心问题展开: 一是是否存在生命、自由或财产被剥夺的情形; 二是若存在剥夺, 需采取哪些具体程序以保障公平性, 具体程序需匹配剥夺行为的影响程度。

Substantive Due Process, by contrast, governs **what** of government action: it limits the government's authority to pass laws that infringe on **fundamental rights**, even if the government follows proper procedures. This includes two key areas: 实质性的正当法律程序则规范政府行为的**内容**: 它限制政府制定侵犯**基本权利**的法律, 即便政府遵循了合法程序也不例外。这一范畴包含两大核心领域:

- **Economic liberties**: Protected via provisions like the 5th Amendment's Takings Clause (governing government seizure of private property) and Article I, Section 10's Contract Clause (restricting government interference with private contracts);

经济自由: 通过《第五修正案》的征用条款（规范政府对私人财产的征收）与《宪法第一条第十款》的合同条款（限制政府干预私人合同）等条款予以保护;

- **Privacy (a fundamental right)**: Encompassing core freedoms such as the right to custody of one's children, the right to refuse unwanted medical treatment, the right to travel freely between states, and the right to vote—all of which the courts have recognized as essential to individual autonomy and thus shielded from undue government intrusion.

隐私权（基本权利）: 涵盖子女监护权、拒绝非自愿医疗的权利、州际旅行权、投票权等核心自由。法院已将这些权利认定为个人自主的关键组成部分, 因此禁止政府过度干预。



【MBE 考试提示】

在 MBE 考题中, 若选项同时涉及程序上的正当法律程序、实质上的正当法律程序与平等保护, 需结合**原告主张的核心诉求判断**, 核心是聚焦原告寻求的救济类型及主张的法律性质, 具体规则如下:

- **程序正当程序（Procedural Due Process）**: If P claim centers on deficient government procedures (e.g., demanding a fairer hearing), the claim falls under Procedural Due Process.

如果原告的主张围绕政府程序存在缺陷展开（例如要求更公平的听证），则适用程序正当程序。

- **实质正当程序（Substantive Due Process）**: If P challenges the validity of the government action itself—arguing that the government's conduct infringes on a fundamental right (e.g., privacy, liberty) even if proper procedures were followed, the claim is governed by Substantive Due Process.

如果原告质疑政府行为本身的合法性（即, 即便政府遵循了合法程序, 其行为仍侵犯了基本权利, 如隐私权、自由权），则适用实质正当程序。

- **平等保护（Equal Protection）**: If P alleges that the government treated them differently from similarly situated individuals without a legitimate justification, the claim implicates Equal Protection.

如果原告主张政府对其与同类主体采取了差别对待且该差别对待缺乏合法理由, 则适用平等保护。

A. Procedural Due Process 程序上的正当法律程序

1. Definition 定义

It refers to the procedures a government must follow to take away someone's life, liberty or property. 程序上的正当法律程序指的是, 当生命、自由或财产被剥夺时, 政府必须遵循一定的法定程序。

2. Question 1: Has There Been a Deprivation of Life, Liberty or Property?

问题 1: 是否存在生命、自由或财产被剥夺的情况?

a. Definitions 定义

① A **deprivation of liberty** occurs if there is the loss of a significant freedom provided by the Constitution or a statute. 如果丧失宪法或法规所赋予的重要自由, 就会发生**自由权的剥夺**。



Example 1:

Except in an emergency, before an adult can be civilly committed, there must be notice and hearing. 除紧急情况外, 成年人在被民事收容前, 必须经过通知和听证程序。



Example 2:

When a parent institutionalizes a child, there only has to be a screening by a neutral fact finder. The Supreme Court says that it assumes that parents act in the best interest of children. So, if a parent wants to institutionalize a child, there only has to be a screening procedure where a doctor, other neutral fact finder approves the commitment.

当父母将孩子送入机构收容时, 只需由中立的事实调查员进行筛查即可。最高法院表示, 其假定父母的行为符合孩子的最大利益。因此, 如果父母希望将孩子送入机构, 只需进行筛查程序, 由医生或其他中立的事实调查员批准即可。



Example 3:

Harm to reputation by itself is not a loss of liberty. Paul v. Davis 1976. Court said there has to be a tangible harm as well in order to claim a loss of liberty from harm to reputation.

名誉损害本身并不构成自由的丧失在。在 1976 年保罗诉戴维斯案中, 法院认定, 必须存在切实的损害, 才能主张因名誉损害而导致的自由权的丧失。



Example 4:

Prisoners rarely have liberty interest. When prisoners claim a deprivation of liberty and seek due process, they almost always lose.

囚犯很少有自由权益。当囚犯主张被剥夺自由并寻求正当程序时, 他们几乎总是会败诉。

② A **deprivation of property** occurs if a person has an **entitlement** (a **reasonable expectation** to the continued receipt of a benefit) and that entitlement is not fulfilled.

若个人享有**法定权利**（即对持续获得某项利益的**合理期待**），且该权利未被实现, 则构成**财产权的剥夺**。注意这里法定权利属于自由权范畴, 而非财产权。



Note:

Before entitlement emerged, due process analysis distinguished between rights and privileges. But courts have now abandoned this distinction. On MBE questions, any answer claiming due process applies because something is a right (not a privilege) or does not apply because it is a privilege (not a right) is always incorrect.

在权益概念出现前, 正当程序分析曾区分权利与特权。如今法院已不再采用这一划分。因此在 MBE 考题中, 凡以是权利所以适用正当程序或是特权故不适用正当程序作答的选项, 均为错误答案。

 Example 1: 高频考点

A person works for the government, and the government tells the person that the job is his or hers for the next year. In the middle of the year, he/she got fired. And this person sued the government for a due process hearing. Should this person have a hearing? Yes, because this person had a reasonable expectation that the job would be there for a year. When it was taken away in the middle of the year, property was deprived, and due process was required.

一个人在政府工作，政府告诉这个人，这份工作明年仍由其担任。结果到了年中，此人被解雇了。这个人起诉政府，要求进行正当程序听证。这个人应该获得听证吗？是的，因为这个人有合理的预期，这份工作会保留一年。当这份工作在中被解除时，他的财产权就被剥夺了，因此适用正当程序。

 Example 2:

Roth worked for the University Wisconsin system on a year-to-year contract. Each contract made it clear that there should be no expectation that the contract would be renewed. The contract expired, and it was not renewed. Roth sued and said that he should be given due process with regard to the non-renewal. Was the government required to provide Roth due process? No! Though the gripes of Roth were great, he had no reasonable expectation that the contract would be renewed. He had no property interest, thus no due process was required. 罗斯与威斯康星大学系统签订了一份年度合同。合同条款明确指出，双方不应期待合同会自动续签。合同到期后未获续签，罗斯提起诉讼，主张在合同未续签过程中应获得正当程序保障。政府是否必须为罗斯提供正当程序？当然不需要！尽管罗斯的诉求十分强烈，但他根本无法合理预期合同会续签。由于他没有财产权益，因此无需遵循正当程序。

b. **Government negligence** is not sufficient for a deprivation of due process. Generally, there must be an **intentional action** or at least **reckless action for liability** to exist.

仅以政府的过失行为，不足以主张正当程序被剥夺。通常而言，只有当政府实施了**故意行为**，或至少存在**重大过失行为**时，才会产生相关责任。

 Supreme Court Case: Daniels v. Williams 1986

最高法院案例：1986 年丹尼尔诉威廉姆斯案

Petitioner brought an action in Federal District Court seeking to recover damages for injuries allegedly sustained while being an inmate in a Richmond jail, Virginia. He slipped on a pillow negligently left on a stairway by the jail's sheriff's deputy. Petitioner contends that such negligence deprived him of his liberty interest in freedom from bodily injury without due process of law within the meaning of the Due Process Clause of the Fourteenth Amendment. The Supreme Court ruled in favor of the Respondent and held that the Due Process Clause is not implicated by a state official's negligent act causing unintended loss of or injury to life, liberty, or property. The Due Process Clause was intended to secure an individual from an abuse of power by government officials. Far from an abuse of power, lack of due care, such as respondent's alleged negligence here, suggests no more than a failure to measure up to the conduct of a reasonable person.

申请人向联邦地区法院提起诉讼，寻求赔偿其在弗吉尼亚州里士满监狱服刑期间所遭受的伤害。他踩到监狱副警长疏忽放置在楼梯上的枕头而滑倒。申请人主张，这种疏忽剥夺了他根据《第十四修正案》正当程序条款所享有的自由权益，即未经正当法律程序而免受人身伤害。最高法院裁定，州政府官员的疏忽行为导致生命、自由或财产的意外损失或伤害，并不涉及正当程序条款。正当程序条款旨在保护个人免受政府官员滥用权力。缺乏应有的谨慎（例如申请人在本案中指控的疏忽）远非滥用权力，而仅仅表明其行为不符合一个理性人的行为标准。

However, in **emergency situations**, the government is liable under due process only its conduct **shocks the conscience** .

在**紧急情况下**，只有当政府的行为**震惊良心**的时候，政府才会因违反了正当程序而担责。也就是说，当在紧急情况下，只要不是特别过分使人震惊的做法，政府一般不会因为正当程序原则而担责。

 Supreme Court Case: County of Sacramento v. Lewis 1998

最高法院案例：1998 年萨克拉门托县诉刘易斯案 高频考点

A police officer was responding to a fight when Respondent and another failed to adhere to the police demand to stop. Instead of stopping, they maneuvered between police cars and sped off. The officer chose to pursue Respondent through a residential neighborhood at speeds of up to 100 mph. While trying to make a sharp left turn, the motorcycle slid and both driver and passenger were thrown. The cruiser avoided hitting the driver, but hit Respondent and threw him 70 feet. He was pronounced dead at the scene. The issue in this case is that whether the officer violated substantive due process when he caused the death of Respondent during a high-speed chase.

一名警官正在处理一场斗殴，被告和另一人未能遵守警方的停车要求。他们非但没有停车，反而在警车之间穿梭，加速逃逸。警官选择以高达 100 英里 / 小时的速度穿过居民区追捕被告。当被告试图急转弯时，摩托车侧滑，司机和乘客都被甩了出去。警车避开了司机，但撞到了被告，并将他抛出 70 英尺。被告当场被宣布死亡。本案的问题是，警官在高速追逐中导致被告死亡是否违反了实质性正当程序。

The Supreme Court held that the police officer did not intend to harm or worsen the fight of Respondent. The police officer was doing his job and using his best judgment at the time of the pursuit. He did not intend to kill Respondent or harm him in any way. If he had, then the conduct would be shocking and held to violate the United States Constitution.

最高法院裁定，该警官无意伤害或加剧被告的斗殴。该警官在追捕时正在履行职责，并运用了最佳判断。他无意杀死被告或以任何方式伤害他。如果他有此意图，则其行为将令人震惊，并被认定违反美国宪法。

c. Generally, the government's failure to protect people from **privately inflicted harms** does not deny due process. 一般来说，当政府没有保护**私人引发的伤害**时，并不会导致正当程序问题的出现。

 Supreme Court Case: DeShaney v. County of Winnebago 1989

最高法院案例：1989 年 DeShaney 诉 Winnebago 县案 高频考点

When the DeShaneys divorced, their son Joshua was placed in the custody of his father, Randy. Winnebago County Department of Social Services was reported that Randy had abused Joshua. When DSS followed up with Randy, he denied the accusation, and DSS took no further action. A child protection team eventually decided that Joshua should return to his father. Several months later, Randy beat Joshua so viciously that he fell into a coma and suffered devastating brain damage.

德沙尼夫妇离婚后，他们的儿子约书亚被交由父亲兰迪监护。温尼贝戈县社会服务部接到举报，称兰迪虐待了约书亚。当社会服务部对兰迪进行后续调查时，兰迪否认了这一指控，社会服务部也没有采取进一步行动。最终，一个儿童保护小组决定将约书亚送回父亲身边。几个月后，兰迪对约书亚进行了残酷的殴打，导致他昏迷不醒，并遭受了永久性的严重脑损伤。

Joshua filed a damages claim against DSS with the assistance of his biological mother. They provided evidence that he would need to spend the rest of his life in a facility for the mentally retarded. The claim hinged on a Fourteenth Amendment argument that DSS had infringed Joshua's right to liberty by failing to protect him against a risk of abuse by Randy of which it knew or should have known.

约书亚在其生母的协助下向社会保障部（DSS）提起了损害赔偿索赔。他们提供了证据，证明他需要在智障人士机构度过余生。该索赔基于《第十四修正案》的一项论点，即社会保障部未能保护约书亚免受兰迪虐待的风险，而该机构明知或理应知晓此事，因此侵犯了约书亚的自由权。

The Supreme Court held that due process is designed to protect individuals from the government rather than from one another. This claim is properly brought under the substantive rather than the procedural component of due process. Due process does not give rise to an affirmative right to government assistance with protecting one's life, liberty, or property. The government cannot be held liable for injuries that might not have happened if it had provided certain services if it has no duty to provide those protective services. At the time that the government returned the child to his father, he was not in a worse position than he would have been in had the state never taken custody of him. The government does not assume a permanent guarantee of an individual's safety once it provides protection for a temporary period. Only if the government literally creates the danger, only if a person is in government custody, does the government have any duty to provide protection.

最高法院认为，正当程序旨在保护个人免受政府侵害，而非保护个人免受他人侵害。这一主张应通过正当程序的实质性内容而非程序性内容提出。正当程序并不产生要求政府提供保护个人生命、自由或财产的积极权利。如果政府没有义务提供某些保护性服务，则不能因“若政府提供了这些服务，伤害可能不会发生”而要求政府对伤害承担责任。当政府将孩子交还给其父亲时，孩子所处的状况并不比州政府从未监护过他时更糟糕。政府在提供了一段时间的保护后，并不承担对个人安全的永久性保障。只有当政府的行为造成了危险，或者当此人完全处于政府的监护之下，政府才有责任对其提供完全的保护。

3. Question 2: If There Has Been a Deprivation, Then What Procedures are Required?

问题 2：如果发生剥夺，需要什么程序？

a. There is a 3-Part Balancing Test of the Following:

平衡测试分为以下 3 部分：

- ① The **importance** of the interest to the individual.
对于个人权益的重要程度。

The more important the interest is to the person, the more procedural protection will be required by the court;
这项权益对个人越重要，就越需要法院给出程序上的保护；

- ② The **ability** of additional procedures to increase the accuracy of the fact-finding.
通过增加程序而提升发现事实的准确性的能力。

The more additional procedures will lead to better and more accurate decisions and reduced erroneous deprivation, the more likely the court will require them;
附加程序越多，就能作出更好、更准确的决定，减少错误剥夺，法院就越有可能要求它们；

- ③ The government's interest is usually **administrative efficiency** and **saving money** for the government.
政府的重点一直都是行政效率和成本节约。

b. Procedural Scenarios 程序适用场景

- ① Before **welfare benefits** are terminated there must be notice and a hearing;
社会福利救济金要被终止前，必须有前置的通知和听证程序。
- ② When **social security disability benefits** are terminated, there need be only a post-termination hearing;
要终止社会保障及残障福利，只需要后置听证程序。
- ③ Before a school can **discipline a student** there must be notice of the charges and an opportunity to explain.
学校在对**学生进行处罚**之前，必须通知学生有关指控并提供解释的机会。



Note:

*Corporal (肉体的) punishment in schools does not require any due process.
学校的体罚不需要适用任何正当程序。*

- ④ Before a **parent's right to custody** a child can be **permanently terminated** there must be notice and a hearing;
在永久终止父母对孩子的监护权之前，必须事先通知并举行听证会；

- ⑤ An American citizen **detained as an enemy combatant** must be accorded due process;
将美国国民当作敌方战斗人员而关押的时候，必须适用正当程序；

- ⑥ **Punitive damage** awards require instructions to the jury and judicial review to **ensure reasonableness**. The Supreme Court also said that **grossly excessive punitive damages** violate due process.
惩罚性赔偿裁决需要向陪审团提供指示并经过司法审查，以确保其合理性。最高法院还认定，**过高的惩罚性赔偿**违反了正当程序。



Supreme Court Case: BMW v. Gore 1996

最高法院案例：1996 年宝马诉戈尔案

Gore found out several months after buying a new BMW that it had been repainted before it was sold to him. This reduced the value of the car by about 10 percent from the \$41,000 that he had paid an Alabama dealership for it. Fourteen similar cars had been sold in Alabama and about 1,000 across the US. In his fraud claim, Gore sought \$4,000 in actual damages and \$4 million in punitive damages on the basis that it represented \$4,000 for each of the 1,000 similarly repainted cars. When a jury granted Gore these damages, BMW argued that they were constitutionally excessive. The Alabama Supreme Court ultimately cut the damages award in half because it ruled that the jury had improperly used national sales rather than Alabama sales in making its damages calculation.

戈尔购买了一辆新的宝马几个月后，发现这辆车在出售给他之前被重新喷漆过。这使得这辆车的价值比他支付给阿拉巴马州经销商的 41,000 美元缩水了约 10%。当时阿拉巴马州售出了 14 辆类似的汽车，全美各地售出了约 1,000 辆。戈尔在欺诈索赔中要求 4,000 美元的实际损失和 400 万美元的惩罚性赔偿，理由是这相当于每辆被重新喷漆的类似汽车的赔偿金额为 4,000 美元。当陪审团裁定戈尔获得这些赔偿时，宝马辩称这些赔偿金额违反了宪法。阿拉巴马州最高法院最终将赔偿金额减半，因为法院裁定陪审团在计算赔偿金额时，错误地使用了全国销量而不是阿拉巴马州的销量。

The Supreme Court ruled that \$2 million was grossly excessive because the harm caused by the defendant was merely economic and was not intentional or reckless. The 500 to 1 ratio between punitive and actual damages was spectacular in view of the lack of potential harm to other consumers.
最高法院裁定，200 万美元的赔偿金额严重过高，因为被告造成的损害仅仅是经济损失，并非故意或鲁莽行为。考虑到对其他消费者的潜在损害不大，惩罚性赔偿与实际赔偿之比高达 500 比 1，这显然不合理。

- ⑦ Except in exigent circumstances, **prejudgment attachment or government seizure of assets** require notice and a hearing. The government may seize property that is used in illegal activity, even if the property has an innocent owner.
除非在紧急情况下，**预先判决的财产扣押或政府对资产的查封**必须经过通知和听证程序。此外，政府可以扣押用于非法活动的财产，即使该财产被无辜的所有者所拥有。



Supreme Court Case: Bennis v. Michigan 1996

最高法院案例：1996 年本尼斯诉密歇根州案

Tina Bennis (Petitioner) jointly owned a car with her husband. The police arrested him after observing him having sex with a prostitute in their car. An indecency law states that the government can seek forfeiture of property that is a public nuisance. The government sought to declare the car a public nuisance. The issue here is that if an owner of property does not know how her property is being used by another, can the owner's interest still be forfeited?

蒂娜·本尼斯（申请人）与其丈夫共同拥有一辆汽车。警方在目睹他在车内与一名妓女发生性关系后逮捕了他。密歇根州的猥亵法规定，政府可以没收构成公共滋扰的财产。政府试图将这辆车认定为公共滋扰。这里的问题是，如果财产所有者不知道他人如何使用其财产，其权益是否仍会被没收？

The Supreme Court held that the government is not required to compensate an owner for property, which it has already lawfully acquired under the exercise of governmental authority other than the power of eminent domain. Thus, there was no taking that required compensation Petitioner's automobile facilitated and was used in criminal activity. The state sought to deter illegal activity, and they rightly do so by subjecting the car to forfeiture.

最高法院裁定，政府无需就其已根据除征用权以外的其他政府权力合法获得的财产向所有者进行补偿。因此，不存在需要补偿的征用行为。申请人的汽车被用于犯罪活动并为起其提供便利。州政府试图遏制非法活动，因此没收该汽车的作法是正当的。

Procedural Due Process 程序性正当程序

Core Question:Has the government deprived a person of life,liberty(a significant freedom secured by the Constitution or Statute),or property(an entitlement to a continued receipt of a benefit)?

核心问题：政府是否剥夺了某人的生命、自由（宪法或法规保障的重要自由）或财产（继续获得福利的权利）？

YES

What procedures must government supply?
政府必须提供哪些程序？

BALANCE:

平衡考量：

- a) Importance of interest to the individual;
权益对个人的重要性；
- b) Ability of additional procedures to increase the accuracy of the fact finding;and
通过附加程序来提高事实调查的准确性的能力；及
- c) The government's interests.
政府的利益。

NO

Government need not provid procedural due process.
政府不必提供程序性正当程序。



【MBE 考试提示】

在 Essay 题型中，需注意程序性正当程序的论述格式：

- 如果**不存在**生命 / 自由 / 财产被剥夺的情形，仍需先假设如果存在剥夺，再展开分析：
表述为：“If there were a deprivation of life, liberty, or property, the court would apply the 3-part balancing test...”（如果存在生命、自由或财产的剥夺，法院将适用三要素平衡测试……）
- 如果**确实存在**剥夺情形，则直接以既然存在剥夺为逻辑起点展开：
表述为：“Since there is a deprivation of life, liberty, or property, the court must apply the 3-part balancing test...”（既然存在生命、自由或财产的剥夺，法院必须适用三要素平衡测试……）



Review Activity

A state statute made it unlawful to sell soymilk for home consumption in containers less than one quart in size. A convenience store within the state specialized in sales of pints of soymilk. During a routine inspection, a state inspector discovered that the store was selling soymilk in pints and immediately revoked the owner's retail license pursuant to the statute.

一项州法规规定，禁止销售容量小于一夸脱（约 1.5 升）的家用豆奶。该州一家便利店专营品脱装豆奶。在一次例行检查中，一名州检查员发现该店以品脱装出售豆奶，并立即根据该法规吊销了店主的零售执照。

What is the owner's best argument in a suit to defeat the revocation of her retail license?

在诉讼中，店主为阻止零售执照被吊销提出的最佳论点是什么？

(A) The action of the state agency impaired her contract with wholesale distributors of pint cartons of milk.

州政府的行为损害了她与牛奶批发分销商签订的合同。

(B) The action of the state agency was a denial of equal protection.

州政府的行为否认了平等保护。

(C) The action of the state agency was a denial of procedural due process.

州政府的行为违反了正当程序。

(D) The action of the state agency was a denial of substantive due process.

州政府的行为是对实质性正当程序的否定。



Analysis:

正确选项为 (C)。

通过审题可知本题中，政府在未给店主提供适当的申诉 / 申辩程序的情况下，就撤销了其零售许可。因此，店主可依据这一理由主张政府撤销许可的行为违法。相比之下，主张政府行为损害了其与他人的合同、违反平等保护、违反实质正当程序的理由均不合理。

B. Substantive Due Process 实质上的正当程序原则

1. Definition 定义

Substantive due process asks whether there's an adequate justification, a sufficient reason for taking away a person's life, liberty or property. Over time, the analysis has been used in two areas: protecting economic liberties and safeguarding property.

实质性正当程序旨在审查是否存在充分合理的理由去剥夺个人的生命、自由或财产。随着时间的推移，这一分析被应用于两个领域：保护经济自由和维护财产权。

2. Economic Liberty Protection 经济自由保护

a. Rational Basis Test 合理基础审查标准

The Constitution provides only **minimal protection** for economic liberties, so only a rational basis test is used for laws affecting economic rights;

对于个体的经济自由的保护，宪法只给予**最低限度的保护**，仅适用合理基础审查标准。

- ① If you have a due process challenge to an employment regulation like a minimum wage law, rational basis test;
如果你以正当程序为由，对最低工资法这类就业监管规则提出质疑，适用合理基础审查标准；
- ② If you have a due process challenge to a regulation of a trade or profession, and people claim the right to practice their trade or profession, it's rational basis review.
如果你以正当程序为由，对某一行业 / 职业的监管规则提出质疑且主张有权从事该行业 / 职业，适用合理基础审查标准；
- ③ If you have a due process challenge to a consumer protection law, rational basis review.
如果你以正当程序为由，对消费者保护类法律提出质疑，适用合理基础审查标准。



Review Activity

In order to ensure the high quality of tutors in state public schools, a state law requires public schools to hire only tutors licensed by the state. To obtain a license, a tutor is required to achieve a passing score on a state-administered exam in the tutor's area of specialty. On several occasions, an organization representing tutors licensed in the state has successfully lobbied against proposed legislation that would have eased the licensing requirement.

为了确保州立公立学校教师的高质量，州法律规定公立学校只能聘请持有州政府执照的教师。要获得执照，教师必须在其专业领域通过州政府组织的考试并取得及格分数。代表持有州政府执照的教师的组织曾多次成功游说，阻止了旨在放宽执照要求的拟议立法。

An out-of-state tutoring company would like to conduct business in the state, but very few of its tutors are licensed by the state. The company has sued to challenge the law.

一家外州的辅导公司希望在本州开展业务，但其旗下的辅导老师中，只有极少数持有本州执照。该公司已提起诉讼，挑战该法律规定。

Is the company likely to prevail?

该公司有可能获胜吗？

(A) No, because the law is rationally related to a legitimate state interest.

不可能，因为该法律与合法的州政府利益合理相关。

(B) No, because the law is substantially related to an important state interest.

不可能，因为该法律与重要的州政府利益密切相关。

(C) Yes, because the law serves the special interests of licensed tutors rather than a legitimate government interest.

可能，因为该法律服务于有执照的导师的特殊利益，而不是合法的政府利益。

(D) Yes, because the law violates the privileges and immunities clause of Article IV.

可能，因为该法律违反了第四条的特权和豁免条款。

Analysis:

正确答案为 (A)。

这家州外辅导公司受到的影响，本质上是对其商业活动的影响，也即对其经济自由权（economic liberties）的影响。而针对限制 / 管制经济自由权的政府行为 / 法律，其合法性要求较低，仅需满足合理基础审查标准 (rational basis test) 即可。

b. The Takings Clause of the 5th Amendment 《第五修正案》的占有 / 征用条款

The government may take private property for public use but only if it provides **just compensation** or **terminate the regulation** and **pays the owner the damages** that incurred while the regulation was in effect (i.e., damages for a temporary taking). Here, the court does not use the levels of scrutiny, but rather a separate test for the takings clause.

政府可以征用私人财产用于公共用途，但前提是政府必须提供**公正补偿**，或**终止管制并向所有者赔偿管制期间造成的损失**（即临时征用的损失赔偿）。在本案中，法院并未使用审查级别，而是对征用条款进行了单独的审查标准。

① Question 1: Is There a Taking? 是否存在占有权？

There are two alternative ways of finding a taking:

有两种方法可以确定是否存在占有权：

i. Possessory Taking 占有取得 高频考点

Government confiscation or physical occupation of property is always a taking.

政府对财产的没收或实际占用始终构成（宪法意义上的）征收。

Example:

New York City adopted an ordinance requiring that all apartment building owners make available space for cable television boxes. The amount of space involved was just one cubic foot. Nonetheless, the Supreme Court found it taking, albeit one requiring only minimal compensation. The court said the government was essentially confiscating the space, it does not matter how small it was. This should be regarded as a possessory taking.

纽约市通过了一项法令，要求所有公寓楼业主为有线电视机电盒预留空间。该法令涉及的空间仅为一立方英尺。尽管如此，最高法院仍认定该行为构成占用，尽管仅需最低限度的补偿。法院表示，无论空间多小，政府实际上都是在没收。这应被视为占有性占用。

ii. Regulatory Taking 管制型占有

Government regulation is a taking if it **leaves no reasonable economically viable use** of the property.

如果政府管制没有对财产造成合理的经济上可行的利用，那么它就是一种征用。

Supreme Court Case 1: Penn Central v. NYC 1978

最高法院案例 1：1978 年宾夕法尼亚中央铁路公司诉纽约市案

Company bought Grand Central Station, New York, with plans to add an additional structure on top of it. Subsequent to purchase, the building was classified a historic landmark and the new construction was not permitted. The owners, who had purchased the building, sued and said, the government had decreased the value of their investment, and the government should pay. The Supreme Court ruled in favor of the city and held that the owner has still an economically viable use of the building they purchased. The court said at most, it was decreasing the value of the investment. But that's not enough for a regulatory taking.

该公司收购了纽约中央车站，计划在其上加建一座建筑。购入后，该建筑被列为历史地标，不允许进行新建。购买该建筑的业主提起诉讼，称政府降低了他们的投资价值，政府应该赔偿。最高法院最终裁定市政府胜诉，认为业主对其购买的建筑仍然拥有经济上可行的使用权。法院表示，这最多只是降低了投资价值。但这不足以构成管制型征用。

Supreme Court Case 2: Lucas v. South Caroline Coastal Commission 1992

最高法院案例 2：1992 年卢卡斯诉南卡罗来纳州海岸委员会案

David H. Lucas owned two vacant oceanfront lots in Charleston County, South Carolina. The Beachfront Management Act was later promulgated and effectively prevented Lucas from erecting homes on properties due to the effects it will have on the public beach. Lucas sued. The Supreme Court held in favor of Lucas because the government was preventing any development, any economically viable use, that's a regulatory taking.

大卫·H·卢卡斯在南卡罗来纳州查尔斯顿县拥有两块空置的海滨地块。后来，《海滨管理法》颁布，有效地阻止了卢卡斯在该地块上建造房屋，因为这会对公共海滩造成影响。卢卡斯提起诉讼。最高法院支持卢卡斯的诉求，因为政府阻止了任何开发，任何经济上可行的用途，这构成了管制型征用。

Example:

Imagine a person buys a piece of property knowing of restrictions of development. Can that person bring a challenge to them? The Supreme Court said yes.

假设一个人购买了一处房产，明知存在开发限制。该人可以提出异议吗？最高法院的答案是可以的。

Note 1:

Government conditions on the development of property must be justified by a benefit that is roughly proportionate to the burden imposed, otherwise it is a regulatory taking.
政府对于不动产的开发所产生的收益要和造成的负担大致相称，否则将构成管制型征用。

Note 2:

A property owner may bring a takings challenge to regulations that existed at the time the property was acquired.
财产所有权人可针对其取得财产时业已存在的相关法规，提起征收异议之诉。



Note 3:

Temporarily denying an owner use of property (developing property) is not a taking so long as the government's action is reasonable.

只要政府行为具有合理性，暂时禁止所有权人使用财产不构成征用。



Note 4:

Government action that amounts to a temporary appropriation or physical invasion of property may amount to a taking.

政府行为若构成对财产的临时性占用或实际侵入，可能构成（宪法意义上的）征用。

② **Question 2: Is it for Public Use? 是否为公共使用的目的？**

The Supreme Court has said that a taking is for **public use** so long as the government acts out of a reasonable belief that the taking will benefit the public.

最高法院明确：只要政府是基于征用行为将使公众受益的合理信念而采取行动，该征用即符合公共用途的要求。因为公共用途的范围很广泛，所以一般政府都能胜诉。

Supreme Court Case: Kelo v. City of New London 2005

最高法院案例：2005 年 Kelo 诉新伦敦市案

In 2000, the city of New London approved a development plan that wished to boost the depressed municipal economy. The city purchased property and sought to enforce eminent domain to acquire the remaining parcels from unwilling owners and eventually transferred the property to a developer. The original owners filed a suit against the city.

2000 年，新伦敦市批准了一项旨在提振低迷城市经济的发展计划。市政府购买了一些房产，并试图行使征用权，从不情愿的业主手中收购剩余的地块，最终将房产转让给了一家开发商。原业主对市政府提起了诉讼。

The Supreme Court ruled in favor of the city, the Court said that it was for public use because the city was acting out of a reasonable belief that the new owners would develop the property and it would create jobs and create economic growth. The Supreme Court reaffirmed the principal that taking is for public use so long as the government acts out of a reasonable belief that the taking will benefit the public.

最高法院做出了有利于市政府的裁决，法院表示，这片土地是供公共使用的，因为市政府的行为是出于合理的信念，即新的所有者会开发这片土地，创造就业机会，促进经济增长。最高法院重申了这一原则，即只要政府的行为是出于合理的信念，即这种征用将有利于公众，那么这种征用就是为了公共用途。

③ **Question 3: Is Just Compensation Paid? 是否进行了公正的补偿？**

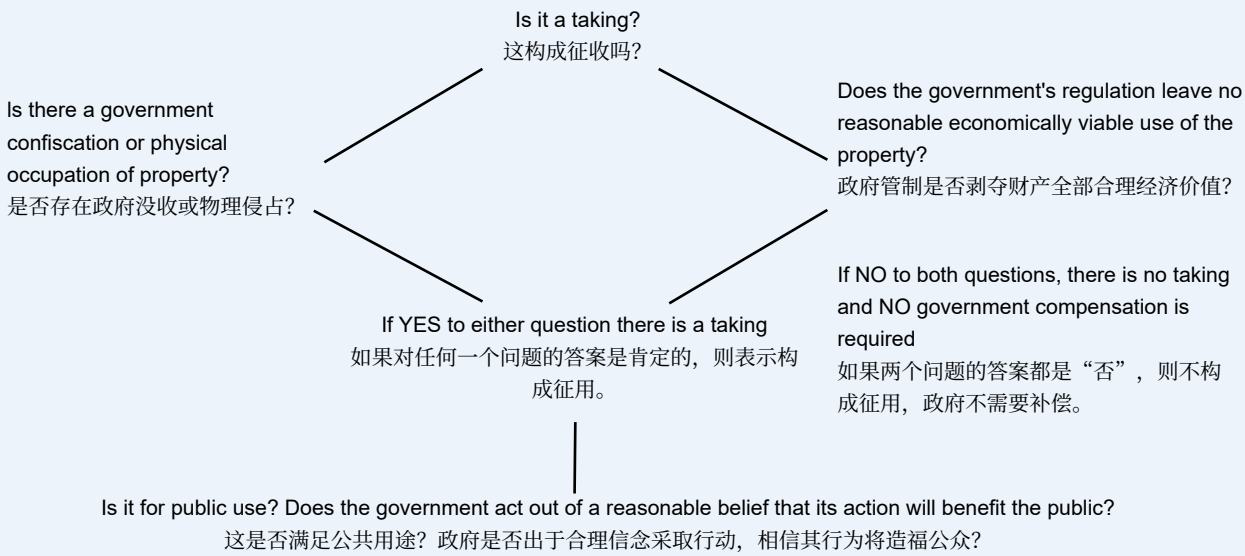
Just compensation is measured in terms of loss to the owner in reasonable market value terms. The gain to the government is irrelevant.

公正补偿的数额要看原所有人损失的价值，而不能看政府通过占有获得的价值。

**The Taking Clause
征用条款**

Principle: Government may take private property for public use if it pays just compensation.

原则：如果政府支付合理的补偿，它可以征用私人财产用于公共用途。



YES

Just compensation must be paid, Government must pay economic market value of property in hands of owner (gain to the taker is irrelevant).
必须支付公正的补偿。政府必须支付业主手中财产的经济市场价值（征用方的收益无关紧要）。

NO

Government must return the property.
政府必须归还财产。

c. Contract Clause 合同条款

The contract clause is found in Article 1, Section 10 of the Constitution, it limits the ability of states to enact laws that retroactively impair contract rights; it does not affect contracts not yet made.

合同条款见于《宪法》第一条第十款，该条款限制各州制定具有溯及力的、损害合同权利的法律；但它对尚未订立的合同不产生影响。

① **Scope 适用范围**

The clause applies only to **state or local** interference with already **existing contracts**.

该条款仅适用于**州或地方**对**现有合同**的干涉。



Note 1:

*The contract clause **does not** apply to federal governments. So, if the federal government is interfering, it can only be challenged with due process where it's rational basis review.*

合同条款不适用于联邦政府；如果联邦政府干预合同，仅能通过正当程序提出异议，此时适用合理基础审查标准。



Note 2:

The contract clause does not limit the state or local government to regulate the terms of future contracts that have yet to be entered into.

合同条款不限制州或地方政府对尚未订立的未来合同的条款进行管制。也就是说，对于还没签的合同，可以不用管。

② Private Contract 私人合同

State and local governments may interfere with existing private contracts if **intermediate scrutiny** is met. The exact language for the test in this situation is:

州 / 地方政府可以干预已经存在的私人合同，但条件是必须达到**中等审查标准**。在这种情况下，该检验标准的具体表述为：

Does the legislation **substantially** impair a party's rights under an existing contract?
该立法是否**严重**损害了一方在现有合同下的权利？

If so, is the law a reasonably and narrowly tailored means of **promoting an important and legitimate public interest**?
如果是，那么该法律是否是一种合理且狭隘地**促进重要且合法的公共利益的手段**？

③ Government Contract 政府合同

State or local interference with government contracts must meet strict scrutiny.

州 / 地方政府也可以干预政府合同，但条件是必须达到严格审查标准。因为最高院觉得州或地方政府单方面解除自身合同的行为看似存疑，因此必须接受更高层次的审查。

d.Ex Post Facto Laws 有溯及力的法律 / 事后法

It refers to laws enacted after a certain fact has occurred or a certain act has been completed, which can be applied to that fact or act and alter its criminal legal consequences or criminal legal relations. For example, a law that changes an act which was innocent or a misdemeanor under the law at the time of commission into a felony or a more serious offense is a law with retroactive effect.

指在某一事实发生或某一行为完成之后制定的、能够适用于该事实或行为并改变其刑事法律后果或者刑事法律关系的法律。如使某一依当时法律为无罪或属于轻罪的行为变成为有罪或属于重罪的行为的法律即为有溯及力的法律。



Note:

美国联邦宪法第一条禁止国会和各州通过有溯及力的刑事法律，许多州宪法也有类似的规定。

① Scope 适用范围

The ex post facto clause does not apply in civil cases, **only in criminal cases**.
“禁止适用有溯及力的条款”这一规定**只在刑事案件中适用**，不在民事案件中适用。



【MBE 考试提示】

为什么要在这里讲有溯及力的法律？因为它总会出现和合同条款相关的题目里，而且基本都是错误选项。
需要注意的是：事后法仅适用于刑事案件，不适用于民事案件；而民事案件对应的审查标准是合理基础审查。

② Difference between Bill of Attainder and Ex Post Facto Law

褫夺公权法案与溯及既往的法律的区别

A bill of attainder is a law that requires the punishment of a person or persons without a trial.

褫夺公民权法案，指立法机关创立的法律，不论何种形式，不经司法审判而对公民个人处以死刑或其他特别刑法，多指剥夺公民权利及没收财产。

Ex post facto law is a law that criminally punishes conduct that was lawful when it was done or that increases punishment for a crime after it was committed.

溯及既往的法律是对当时合法行为进行刑事处罚，或在犯罪行为发生后加重处罚的法律。



Review Activity 1

Under a state law, oil and gas rights can pass by will or through intestate succession. Some oil and gas rights in the state have been divided into very small interests after several generations of passing by intestate succession. It therefore is difficult to enter into extraction contracts in the state because of the need to include large numbers of heirs for any given tract of land. To remedy this problem, the state has enacted a law that provides that, at the death of an owner of less than 1% of the oil and gas interests in a tract of land, that owner's oil and gas rights are extinguished and his or her interests are transferred pro rata to the remaining owners. Is this law constitutional?
根据州法律，石油和天然气权益可以通过遗嘱或无遗嘱继承的方式转移。该州的一些石油和天然气权益经过几代人的无遗嘱继承，已被分割成极小份额。因此，在该州签订开采合同非常困难，因为任何一块土地都需要纳入大量的继承人。为了解决这个问题，该州颁布了一项法律，规定如果拥有一块土地中不到 1% 石油和天然气权益的所有者去世，该所有者的石油和天然气权益将失效，其权益将按比例转让给其余所有者。这项法律符合宪法吗？

(A) No, because the law effects a taking of property without just compensation.

不符合，因为该法律规定没收财产是没有得到公正补偿的。

(B) No, because the law unduly burdens interstate commerce in oil and gas production.

不符合，因为该法律对州际石油和天然气生产贸易施加了过重的负担。

(C)Yes, because property inheritance is a privilege created by state law.

符合，因为财产继承是州法律赋予的特权。

(D) Yes, because the law rationally promotes the legitimate state interest in fostering resource development.

符合，因为该法律合理地促进了州发展资源开发的合法利益。



Analysis:

正确选项为 (A)。

本题属于典型的对丧失相关财产权益的所有权人未提供公正补偿的征收情形，因此该法律违宪。



Review Activity 2

A state law to promote tourism creates an easement across a portion of a private farm for hikers who wish to use a historic trail that crosses the farm. The law allows the farm's owner to charge hikers a fee to cover the costs of this use, but it does not otherwise compensate the owner. Is the law constitutional?

一项旨在促进旅游业发展的州法律规定，对希望使用穿过私人农场历史步道的徒步旅行者，在农场部分区域设立了地役权。该法律允许农场主向徒步旅行者收取费用以覆盖使用成本，但除此之外，未对农场主提供任何补偿。该法律符合宪法吗？

(A) No, because the fee provision violates the privileges and immunities clause.

不符合，因为费用规定违反了特权和豁免条款。

(B) No, because the law takes the owner's property without just compensation.

不符合，因为该法律征用了所有者的财产而没有给予公正的补偿。

(C) Yes, because the fee provides the owner with just compensation.

符合，因为这笔费用为业主提供了公正的补偿。

(D) Yes, because the law has the public purpose of promoting tourism.

符合，因为该法律具有促进旅游业的公共目的。



Analysis:

正确选项为 (B)。

在私人土地上设立地役权，属于对私人土地的征收行为，因此应当向所有权人提供补偿。尽管法律允许农场主收取费用，但这并不等同于无需支付补偿，因为该费用并不等同于土地地役权对应的公平市场价值。因此，该州法律仍属违宪。

C. Substantive Due Process—Privacy 隐私权

Privacy is a fundamental right protected under substantive due process and therefore strict scrutiny is the standard used when the government interferes with privacy rights.
隐私权是个人的基本权利，所以当政府干预个人的隐私权时， 其行为 / 立法必须符合严格审查的标准。

1. The Right to Marry 结婚的权利

The Supreme Court has included the same-sex marriage into the right to marry. Therefore, the Supreme Court held that state laws that prohibit same-sex marriage violate equal protection and also the fundamental right to marry. But the Court did not name the level of scrutiny. Noted that the Supreme Court did not specify in this case about the level of scrutiny.
最高法院已将同性婚姻纳入婚姻权。因此，最高法院裁定，禁止同性婚姻的州法律违反了平等保护，也侵犯了婚姻的基本权利。但法院并未明确审查的级别。值得注意的是，最高法院在本案中并未明确审查的级别。

2. The Right to Procreate 生育的权利

U.S.constitutional reproductive rights lack explicit text, shaped by Supreme Court rulings. Pre-2022, the 14th Amendment's Due Process Clause implied a fundamental abortion right, with states bound by the "undue burden" standard before fetal viability. The 2022 Dobbs decision overruled these cases, held abortion is not a constitutional right, and returned abortion regulation to states. Contraception rights remain protected as privacy rights but differ from abortion rights.
美国宪法中并无关于生育权的明确条文，其具体界定由联邦最高法院的判例确立。2022 年之前，最高法院认为《第十四修正案》的正当法律程序条款隐含了堕胎这一基本权利，且在胎儿具备存活能力前，各州需受“不当负担”标准约束（不得对堕胎权设置不当阻碍）。2022 年“多布斯案”的判决推翻了上述判例，认定堕胎并非宪法所保障的权利，并将堕胎规制权归还给各州。需注意，避孕权仍作为隐私权受宪法保护，但与堕胎权并非同一概念。

Review Activity

A state adopted legislation making it a crime to have more than 2 girls. The stated purpose of the statute is to preserve the state's natural resources and to have more labor. A married couple has just had their third daughter. They have been arrested and convicted under the statute.
某州通过立法，规定生育超过两个女孩属于犯罪行为。该法规声称旨在保护该州的自然资源并增加劳动力。一对夫妇刚刚生下他们的第三个女儿。他们因该法规被捕并被定罪。

Which of the following is the strongest argument for voiding the convictions of the couple?
以下哪项是撤销这对夫妇的定罪的最有力论据？

- (A) The statute is an invalid exercise of the state's police power because there is no rational basis for concluding that the challenged statute would further the government's stated interests.
该法规是州政府警察权的无效行使，因为没有合理的依据可以得出结论认为，受到质疑的法规将进一步促进政府所宣称的利益。
- (B) The statute places an unconstitutional burden on the fundamental privacy interests of married persons.
该法规对已婚人士的基本隐私利益施加了违宪的负担。
- (C) The statute places too much discretion in state officials to determine who will be permitted to bear children.
该法规赋予州政府官员过多的自由裁量权来决定谁可以生育孩子。
- (D) The statute denies married persons equal protection of law.
该法规剥夺已婚人士受到法律的平等保护的權利。

Analysis:

正确选项为 (B)。

因为该州立法实际上限制了公民的生育权，而生育权对应的审查标准是严格审查而政府通常无法满足严格审查的要求，因此这一论据对这对被定罪的夫妇而言是最有力的。

争议焦点可能会集中在 (D) 项，但本案并不涉及平等保护的问题：该法规并未区分已婚人士与未婚人士，也没有对已婚夫妇和未婚伴侣的生育数量（女儿或子女数量）作出不同规定，因此选择 (D) 并不合适。

3. The Right to Keep the Family Together 一家人住在一起的权利

It is broader than the concept of parents and children, it includes extended family.
这个概念比父母和子女的概念更广泛，还包括大家庭的其他成员。

Supreme Court Case 1: Moore v. City of East Cleveland 1977

最高法院案例 1：1977 年摩尔诉东克利夫兰市案 **高频考点**

Appellant, Mrs. Inez Moore, lived in an East Cleveland home with her son and her two grandsons. The two grandsons were first cousins rather than brothers, with one of the grandsons moving in with Mrs. Moore after his mother's death. Appellant received notice that she was in violation of a Cleveland criminal statute that limits occupants of a dwelling to members of a single family, which means that the Ohio ordinance limited the number of unrelated people who could live in a single household. The way it defined "unrelated," it kept a grandmother from living with her two grandsons who were first cousins. The Supreme Court proclaimed that there's a fundamental right to keep the family together. And the Court declared the ordinance unconstitutional.
上诉人伊内兹·摩尔夫人与她的儿子和两个孙子住在克利夫兰东部的一所房子里。这两个孙子是堂兄弟而非亲兄弟，其中一个孙子在母亲去世后搬来与摩尔夫人同住。上诉人收到通知，称她违反了克利夫兰的一项刑事法规，该法规将住宅的居住者限制为单一家庭的成员，这意味着俄亥俄州的法令使得一位祖母无法与她的两个堂兄弟关系的孙子同住。最高法院宣布，维持家庭团聚是一项基本权利。法院最终裁定该法令违宪。

Note:

*In order to be considered a family, the individuals must be related to one another.
要被视为一个家庭，成员之间必须存在亲属关系。*

Supreme Court Case 2: Village of Belle Terre v. Boraas

最高法院案例 2：Belle Terre 村诉 Boraas 案

The Village of Belle Terre with the State University of York at Stony Brook is located. It too had a zoning ordinance that limited the number of unrelated people who could live in the same household. In this instance, it was college students who brought a challenge that they wanted to share a house. They lost. The difference between this case and the former one is that in this case, the individuals who were not related, so the Supreme Court refused to provide protection for them.
约克州立大学石溪分校所在的贝尔特爾村也曾有分区条例，限制同住的无亲属关系人数。本案中，一名大学生提出合租房屋的诉求，但败诉了。本案与前一案的区别在于，本案中涉及的是无亲属关系的个人，因此最高法院拒绝为他们提供保护。

4. The Right to Custody of One's Children 子女监护权

This is fundamental right that can only be terminated if it proves a compelling reason such as parental abuse or parental neglect. Noted that a state may create an irrebuttable presumption that a married woman's husband is the father of her child.

这是一项基本权利，只有在证明存在令人信服的理由（例如父母虐待或忽视）时才能终止。需要注意的是，州政府可以做出不可反驳的推定，认定已婚妇女的丈夫是其子女的父亲。

 Supreme Court Case: Michael H. v. Gerald D. 1989

最高法院案例：1989 年迈克尔·H 诉杰拉尔德·D 案

Carole and Gerald were married in the first place, and Carole then had an affair with Michael and then delivered a daughter, Victoria. She didn't leave Gerald but she moved in with Michael and the child, and they lived together about a year and a half. After 18 months, she rejoined her husband and took her child with. Michael sued for visitation rights, but the Supreme Court ruled against him. The Supreme Court said that a state can create an irrebuttable presumption that a married woman's husband is the father of her child and the biological father has no visitation right at all.

卡罗尔和杰拉尔德最初是夫妻，后来与迈克尔有染，并生下了一个女儿维多利亚。她没有离开杰拉尔德，而是搬去和迈克尔及孩子同住，他们一起生活了大约一年半。18 个月 after，她带着孩子与丈夫团聚。迈克尔起诉要求探视权，但最高法院判决败诉。最高法院表示，各州可以做出不可反驳的推定，认定已婚妇女的丈夫是其孩子的父亲，而亲生父亲根本没有探视权。

5. The Right of Parents to Control the Upbringing of Their Children 父母对子女抚育教养的控制权

The government interferes with the control has to meet the strict scrutiny. The Supreme Court found almost a century ago that it was unconstitutional for a state to prohibit parochial school education. The Court said that parents are exercising their fundamental right to raise their children could choose to have them go to parochial rather than public school.

政府干预（父母对孩子的）控制权必须接受严格审查。近一个世纪前，最高法院裁定，州禁止教会学校教育的行为是违宪的。法院表示，父母行使抚养子女的基本权利时，可以选择让孩子就读教会学校而非公立学校。

 Example:

In 2000, the Supreme Court held in another case that a court-ordered visitation from the grandparents over the competent parents' objection is unconstitutional because it's a violation of the due process, because it violates the fundamental rights of the parents to control the upbringing of their children.

2000 年，美国最高法院在另一起案件中裁定：法院无视具备监护能力的父母的反对，强制判令（外）祖父母享有探视权的做法违宪。这既违反了正当程序原则，也侵犯了父母对子女抚育进行管控的基本权利。

6. The Right to Purchase and Use Contraceptives 购买和使用避孕产品的权利

This is a fundamental privacy right that protects individuals (including married/unmarried persons) from government bans on obtaining or using contraceptives. It falls under substantive due process, requiring strict scrutiny for any government restriction.

这是一项基本隐私权，保护个人（包括已婚 / 未婚者）免受政府对避孕产品购买或使用的禁令限制。它属于实体正当程序范畴，政府对其施加的任何限制都需接受严格审查。

7. Right to Engage in Private Consensual Same-Sex Activity 参与私密并自愿同性性行为的权利

The Right to Privacy Protects a Right to Engage in Private Consensual Same-Sex Activity.
隐私权保护参与私下双方自愿的同性性行为的权利。

 Supreme Court Case: Lawrence v. Texas 2003

最高法院案例：2003 年劳伦斯诉德克萨斯州案

Texas had a law that made it a crime for people to engage in same-sex sexual activity. The Supreme Court declared this unconstitutional, it said that if the right to privacy means anything, it's what consenting adults do in their own bedroom. But the Court did not identify the level of scrutiny.

德得克萨斯州曾颁布法律，将同性成年人之间的性行为定为犯罪。最高法院裁定该法违宪，并申明：若隐私权具有实质意义，其核心便是达成合意的成年人在私人卧室内的行为不受政府干预。但法院未明确该判决适用的审查标准层级。

8. The Right to Refuse Medical Treatment 拒绝医疗的权利

- a. Competent adults have the right to refuse medical treatment, even life-saving medical treatment.
能力健全（非限制行为能力人）的成年人有权拒绝接受医学治疗，就算是放弃临终治疗都可以。
- b. A state has a compelling interest in protecting the sanctity of life and so may require clear and convincing evidence that a person wanted treatment terminated before it is ended.
对于州来说，保护生命的尊严是非常重要的，所以如果有人要求要终止其治疗，州有权要求其提供清晰并且有说服力的证据来证明其真的想要中止治疗。
- c. A state may prevent family members from terminating treatment for another, since there could be a conflict of interest.
州可以禁止家属来决定终止治疗，因为此处可能会存在利益冲突（比如病人想治疗家属不想治疗的情况）。

9. There is NO Constitutional Right to Physician-Assisted Suicide 不存在由医生辅助自杀的宪法权利

 Supreme Court Case: Washington v. Glucksberg 1997

最高法院案例：1997 年华盛顿诉格鲁克斯伯格案

It involved terminally-ill patients in the state of Washington who argued that the right to privacy should include a right to death with dignity, a right to physician-assisted death. The Supreme Court rejected that argument and held that the right to privacy does not include or protect the right to physician-assisted death.
该案涉及华盛顿州的绝症患者，他们主张隐私权应包括尊严死亡的权利和医生协助死亡的权利。最高法院驳回了这一论点，并裁定隐私权不包含或保护医生协助死亡的权利。

10. The Right to Bear Arms 个人有权为了自保拥有枪支

According to the Second Amendment, the Supreme Court has held that individuals have a right to have weapons for self-defense, but has not specified the level of scrutiny to be used.
根据《第二修正案》的规定，最高法院已经判定个人拥有为自卫而持有武器的权利，但尚未明确规定应采用何种审查标准。

But the Supreme Court has said that this right is not absolute. The government can regulate where guns are, like not being at airports or schools; it can regulate who has guns, like keeping ex-felons away from being in possession; the government can also regulate the type of weapons that people have.
但最高法院表示，这项权利并非绝对。政府可以规定枪支的存放地点，例如不得在机场或学校存放；政府可以规定谁拥有枪支，例如禁止前重罪犯持有枪支；政府还可以规定人们拥有的武器类型。

11. The Right to Travel 旅行的权利

- a. Laws that prevent people from moving into a state must meet strict scrutiny.
阻止人们迁入某个州的法律必须受到严格审查。
- b. Durational residency requirements (requiring a person to live in a jurisdiction for a specified amount of time to get a benefit) must meet strict scrutiny.
长期居住要求（要求一个人在一个司法管辖区居住一定时间以获得福利）必须经过严格审查。

Supreme Court Case: Shapiro v. Thompson 1969

最高法院案例：1969 年夏皮罗诉汤普森案

Vivian Marie Thompson was a 19-year-old unwed mother of one child and pregnant with her second child. She moved from Massachusetts to Connecticut to live with her mother in 1966. She later applied for dependent children assistance in August 1966. Her application was denied in November solely on the ground that she had not lived in the State for a year before her application was filed, a requirement under Connecticut law.

薇薇安·玛丽·汤普森是一位 19 岁的未婚母亲，育有一子，并怀有第二个孩子。1966 年，她从马萨诸塞州搬到康涅狄格州与母亲同住。同年 8 月，她申请了受抚养子女援助。11 月，她的申请被驳回，理由是她在提交申请前未在该州居住满一年，而这是康涅狄格州法律规定的一项要求。

The Supreme Court ruled in favor of Thompson because the constitutional right to free movement between states was implicated.

最高法院判决汤普森胜诉，因为这涉及到宪法赋予的州际自由流动权利。



Note:

The Supreme Court has said that for voting purpose, 50 days is the maximum allowable durational requirement. For welfare purpose, basically no durational requirement.

只有以投票权为目的时，最高法院允许州设定最长为在本州居住 50 天（或以内）的规定；如果不是为了投票权为目的，则一般不允许期限要求的设定。

c. There is no fundamental right to international travel, so restrictions on foreign travel need meet only the rational basis test.

国际旅行并不是一项基本权利，因此对出国旅行的限制只需满足合理基础审查标准。

12. The Right to Vote is a Fundamental Right 投票权是一项基本权利

a. Laws that **deny** some citizens the right to vote must meet **strict scrutiny**, but regulations of the electoral process to prevent fraud only need be on balance desirable.

剥夺个人投票权的法规必须满足**严格审查**的要求，但为防止选举舞弊而对选举程序进行的监管仅需在总体上被认为是可取的。



【MBE 考试提示】

Property ownership requirements for voting, almost always unconstitutional.

以财产所有权为投票资格的要求，几乎一律违宪。



Example:

A city had a requirement that said in order to vote in school board elections, person had to either own property in the city or have children in the city schools. The Supreme Court held that unconstitutional.

某市有一项规定，要求公民必须在该市拥有房产或子女在该市学校就读，才能在学校董事会选举中投票。最高法院裁定该规定违宪。



Supreme Court Case: Crawford v. Marion County Election Board 2008

最高法院案例：2008 年克劳福德诉马里昂县选举委员会案

A 2005 Indiana law required all voters casting a ballot in person to present a United States or Indiana photo ID. Under the Indiana law, voters who do not have a photo ID may cast a provisional ballot. To have their votes counted, they must visit a designated government office within ten days and bring a photo ID or sign a statement saying they cannot afford one.

2005 年印第安纳州的一项法律要求所有亲自投票的选民必须出示美国或印第安纳州的带照片身份证件。根据印第安纳州法律，没有带照片身份证件的选民可以投临时选票。为了计票，选民必须在十天内前往指定的政府办公室，携带带照片的身份证件或签署一份声明，说明他们无法出示带照片的身份证件。

The Supreme Court upheld the constitutionality of the photo ID requirement, finding it closely related to Indiana's legitimate state interest in preventing voter fraud, modernizing elections, and safeguarding voter confidence. Justice Stevens, in the leading opinion, stated that the burdens placed on voters are limited to a small percentage of the population and were offset by the state's interest in reducing fraud.

最高法院维持了带照片身份证件要求的合宪性，认为该要求与印第安纳州防止选民欺诈、实现选举现代化以及维护选民信心的合法州利益密切相关。史蒂文斯大法官在主导意见中指出，选民所承受的负担仅限于一小部分人口，并且会与该州减少欺诈行为的收益所抵消。该案例揭示为了防止诈骗可以对投票提出一些要求。

b. **One-person-one-vote** must be met for all state and local elections. It is constitutionally permissible for districting to be based on total population; it does not need to be based on eligible voters.

所有州和地方选举都必须遵循一人一票原则。在宪法上，以总人口为基础进行选区划分是允许的，不必以合格选民为依据。

c. **At-large elections** (where all voters cast a vote for all officeholders) are constitutional unless there is proof of a discriminatory purpose.

除非有证据证明存在歧视目的，否则**全民选举**（所有选民为所有公职人员投票）是合宪的。



Supreme Court Case: City of Mobile v. Bolden

最高法院案例：莫比尔市诉博尔登案

Mobile, Alabama, had a three-person city council, it might have, but didn't divide the city in three districts and have each district elect a representative. Instead, it had an at-large election, where every voter in the city cast three votes for the three-person city council. At the time of the litigation, Mobile was 2/3 white and 1/3 black. It had a long history of racially polarized voting. Nonetheless, the Supreme Court upheld this as constitutional because the at-large election is allowed unless there's proof of a discriminatory purpose, which was not shown in this case.

阿拉巴马州的莫比尔市设有三人市议会，但该市并未将辖区划分为三个选区、由每个选区各选出一名代表；相反，该市采用全市普选制：全市每位选民投三票，选出三人市议会。诉讼发生时，莫比尔市的人口构成为白人占 2/3、黑人占 1/3。该市长期存在种族对立的投票现象。尽管如此，最高法院仍裁定该制度合宪，因为除非有证据证明存在歧视性目的，否则全市普选制是被允许的，而本案并未证明存在此类歧视性目的。

d. The use of **race** in drawing election district lines (for the purpose of benefiting minorities) must meet **strict scrutiny**. 使用**种族**划分选区（目的是使少数族裔受益）必须受到**严格审查**。

e. Counting **uncounted votes** without pre-set standards in a presidential election violates equal protection. 在总统选举中不按照预先设定的标准计算**未计票**，违反平等保护原则。

13. NO Fundamental Right to Education 受教育权不受宪法保护

There is **NO** fundamental right to education under Equal Protection of the United States Constitution.

根据美国宪法的平等保护条款，教育权**并非**一项基本权利。



Supreme Court Case: San Antonio Board of Education v. Rodriguez 1973

最高法院案例：1973 年圣安东尼奥教育委员会诉罗德里格斯案

Rodriguez was a challenger to the Texas system of funding local schools largely through local property taxes. The result was that poorer areas had a tax at a very high rate but still had little to spent on education. Wealthy areas could tax at a much lower rate and had a great deal more to spend on education. The Supreme Court upheld it as constitutional. The Court ruled and later reaffirmed that education is not a fundamental right.

罗德里格斯对德克萨斯州主要通过地方财产税来资助地方学校的体制提出了质疑。该体制导致贫困地区税率很高，但用于教育的资金却很少。富裕地区可以以低得多的税率征税，却有更多资金用于教育。最高法院裁定该体制符合宪法。法院随后裁定并重申，教育**并非**一项基本权利。

14. NO Fundamental Right to Abortion 堕胎权不受宪法保护

There is **NO** fundamental right to abortion under the Right to Privacy or Liberties.
堕胎权不受宪法保护，限制堕胎权的法律只需要满足合理基础测试即可。各州立法者可以挑大梁，自行决定要不要保护堕胎权。

 Supreme Court Case: Dobbs v. Jackson Women's Health Organization June 24, 2022

最高法院案例：2022 年 6 月 24 日多布斯诉杰克逊妇女健康组织案

In this case, the Supreme Court ruled 6-3 to uphold Mississippi's ban on abortions after 15 weeks of pregnancy. The majority opinion overturned two landmark abortion-rights decisions:Roe v. Wade (1973) and Planned Parenthood v. Casey (1992).

在本案中，最高法院以 6 比 3 的投票结果，裁定维持密西西比州“禁止怀孕 15 周后堕胎”的禁令。多数意见推翻了两项保障堕胎权的标志性判决：1973 年《罗诉韦德案》与 1992 年《计划生育联合会诉凯西案》。

• 此前关键判例的规则：

① 《罗诉韦德案》（Roe v. Wade）

Ruled that the right to abortion is protected by the right to privacy, subject to strict scrutiny for government restrictions.
裁定堕胎权基于隐私权受到保护，政府对其施加的限制需接受严格审查。

② 《凯西案》（Planned Parenthood v. Casey）

Reaffirmed abortion rights as a privacy right, but replaced strict scrutiny with the undue burden test:
重申堕胎权受隐私权保护， 但将严格审查替换为过度负担测试：

- i. Before fetal viability: States cannot ban abortions, but may regulate them (so long as regulations do not create an undue burden on access).
胎儿具备独立生存能力前：州不得禁止堕胎，但可对堕胎进行规制（只要规制不会对堕胎获取造成过度负担）。
- ii. After fetal viability: States may ban abortions unless necessary to protect the woman's life.
胎儿具备独立生存能力后：州可禁止堕胎，除非不堕胎会危及孕妇生命。

• 多布斯案后，仍适用的原则：

- ① A 24-hour waiting period for abortions is not an undue burden, it is constitutional.
堕胎前 24 小时的等待期不属于过度负担， 即符合宪法。
- ② Requiring abortions to be performed by licensed physicians is not an undue burden, it is constitutional.
要求堕胎手术必须由持照医师实施， 不属于过度负担， 即符合宪法。
- ③ Banning “partial-birth abortions” (intact dilation and extraction) is not an undue burden, it is constitutional.
禁止“部分分娩堕胎”（完整扩张与拔除术，类似引产）不属于过度负担， 即符合宪法。
- ④ Governments have no duty to subsidize abortions or provide them in public hospitals.
政府无义务为堕胎提供资金支持， 也无义务在公立医院开展堕胎服务。

• 多布斯案后，可能改变的原则：

- ① Previously: Spousal consent/notification laws for abortions were unconstitutional; these may now become constitutional. 此前： 要求堕胎需配偶同意 / 通知的法律违宪； 此类法律如今可能合宪。

Previously, states requiring parental notice/consent for unmarried minors' abortions had to offer an alternative (e.g., judicial bypass, where a judge approves the abortion if it is in the minor's best interest or the minor is mature enough) ; this requirement may change.

此前： 州要求未婚未成年人堕胎需父母通知 / 同意时， 必须提供替代方案（如司法绕开： 未成年人可向法官证明堕胎符合自身最佳利益或已足够成熟， 由法官批准堕胎）； 这一要求可能发生变化。也就是说， 州法可以规定， 对于未成年也未结婚的女性， 在流产时需要父母统一 / 通知父母。

Fundamental Rights Key Examples
基本权利关键示例

Rights Triggering Strict Scrutiny 受到严格审查的权利	Not a Fundamental Right (Only Rational Basis Review) 非基本权利（仅基于合理基础审查）	Level of Scrutiny Unknown 审查级别未知
• Right to marry (bisexual marriage) 婚姻权（双性恋婚姻） • Right to procreate 生育权 • Right to custody of children 子女监护权 • Right to keep family together 维持家庭团聚的权利 • Right to purchase and use contraceptives 购买和使用避孕药具的权利 • Right to travel 旅行权 • Right to vote 表决权 • Freedom of speech (covered under First Amendment) 言论自由（受《第一修正案》保护） • Freedom of association (covered under First Amendment) 结社自由（受《第一修正案》保护） • Free exercise of religion (if the law burdening religion is not a neutral law of general applicability) (covered under First Amendment) 自由行使宗教信仰（如果对宗教施加限制的法律不是普遍适用的中立法律） （受《第一修正案》保护）	• Right to economic liberties protection (i.e. practice a trade or profession) 享有经济自由保护的權利（即从事某一行业或职业） • Right to physician-assisted death 医生协助死亡的权利 • Right to education 受教育权 • Right to international travel 国际旅行权 • Right to abortion 堕胎权	• Right to same-sex marriage 同性婚姻的权利 • Right to engage inprivate consensual homosexual activity 私下自愿进行同性恋行为的权利 • Right to refuse medical treatment 拒绝医疗的权利 • Right to possess firearms 拥有枪支的权利

VII. Equal Protection 平等保护

Overview 综述

Equal Protection is a constitutional principle ensuring governments treat similarly situated individuals fairly, with a structured analysis framework. The process for evaluating Equal Protection claims follows three key steps: first, identify the classification the challenged law creates (e.g., race, gender); second, determine the appropriate level of judicial scrutiny for that classification; third, assess whether the law meets the requirements of the applicable scrutiny standard.

平等保护是一项宪法原则，要求政府公平对待处境相似的个体，其分析遵循结构化框架。评估平等保护诉求的流程包含三个关键步骤：首先，明确受质疑法律所设定的分类（如种族、性别）；其次，确定该分类对应的司法审查等级；最后，判断该法律是否符合所适用审查标准的要求。

For constitutional application: The 14th Amendment's Equal Protection Clause applies directly to state and local governments. For the federal government, Equal Protection is enforced through the Due Process Clause of the 5th Amendment (via incorporation doctrine). In short, state/local governments are bound by the 14th Amendment, while the federal government is bound by the 5th Amendment for Equal Protection claims.

在宪法适用层面：《第十四修正案》的平等保护条款直接适用于州和地方政府；对于联邦政府，平等保护通过《第五修正案》的正当程序条款（经并入原则）得以实施。简言之，州/地方政府受《第十四修正案》约束，而联邦政府在平等保护诉求中受《第五修正案》约束。

Common classifications triggering specific scrutiny include:

常见的触发特定审查的分类包括：

- **Race/national origin:** Subject to **strict scrutiny** (the highest standard), meaning the government must prove the classification is narrowly tailored to serve a compelling interest (e.g., correcting past discrimination). This standard reflects the history of systemic discrimination against racial/ethnic minorities.
种族 / 国籍：适用**严格审查**（最高标准），即政府需证明该分类是为实现迫切利益（如纠正过往歧视）而精心设计的。这一标准源于种族 / 少数族裔遭受系统性歧视的历史背景。
- **Gender:** Evaluated under **intermediate scrutiny**, requiring the classification to be substantially related to an important governmental interest (e.g., addressing gender-based disparities in public policy).
性别：适用**中度审查**，要求分类与重要的政府利益具有实质关联性（如解决公共政策中基于性别的差异）。
- **Alienage:** Generally subject to **strict scrutiny**, though exceptions exist (e.g., laws restricting public office to citizens may use rational basis review, as self-government is a unique state interest).
外侨身份：通常适用**严格审查**，但存在例外（如限制公民担任公职的法律可适用合理基础审查，因自治是州的特殊利益）。
- **Legitimacy (non-marital children):** Also uses **intermediate scrutiny**, aiming to prevent unfair disadvantages to children based on their parents' marital status.
婚生地位（非婚生子女）：同样适用**中度审查**，旨在避免子女因父母婚姻状况而遭受不公平的不利对待。

All other forms of discrimination (e.g., economic status, age) are evaluated under the **rational basis test**—the least stringent standard, where the law is upheld if it is rationally related to a legitimate governmental interest. Courts defer heavily to the government here.

所有其他类型的歧视（如经济地位、年龄）则适用**合理性基础测试**，这是最宽松的标准，只要法律与合法的政府利益具有合理关联性即可被维持。法院在此类案件中会高度尊重政府的决策。

A. Basic Information 基本资料

1. General Rule 一般原则

Whenever a government draws a distinction among people, there is a basis for an equal protection challenge. 只要政府对公民进行区别对待，就存在提起平等保护诉讼的依据。

2. All Equal Protection Questions can be Broken down into 3 Steps

所有平等保护问题都可以分为 3 个步骤

a. What is the Classification? 分类是怎样的？

This step focuses on **identifying how the law/government action distinguishes between groups of people**. 这一步的核心是**识别法律 / 政府行为对哪些群体进行了区分**。

Common classifications include race/national origin, gender, legitimacy, economic status, age. 常见分类包括种族 / 国籍、性别、婚生 / 非婚生、经济地位和年龄。

b. What Level of Scrutiny Should be Applied? 应采用什么级别的审查？

Most questions are rational basis test, some are intermediate/strict scrutiny. 大多数题目是合理性基础测试，有些题目是中级 / 严格审查。

c. Does the Law Meet the Level of Scrutiny? 该法律是否符合审查标准？

This step tests whether the law satisfies the requirements of the applicable scrutiny: 这一步考查法律是否符合所适用的审查标准：

- ① For **Strict Scrutiny:** The Bar often tests whether the government's compelling interest is specific (e.g., public safety alone is insufficient).
对于**严格审查**：律考常考查政府的迫切利益是否具体（如仅以公共安全辩护通常不成立）。
- ② For **Intermediate Scrutiny:** The Bar asks if the classification is substantially related (e.g., laws banning women from certain jobs usually fail here).
对于**中级审查**：律考会考查分类是否实质关联（如禁止女性从事特定职业的法律通常无法通过）。
- ③ For **Rational Basis Test:** The Bar only requires the law to be not completely arbitrary (e.g., business hour restrictions tied to public order will pass).
对于**合理性基础审查**：律考仅要求法律并非完全任意（如与公共秩序相关的营业时间限制会通过审查）。

B. Constitutional Provisions Concerning Equal Protection 关于平等保护的宪法规定

1. The equal protection clause of the 14th Amendment applies only to state and local governments, never to the federal government.
《第十四修正案》的平等保护条款仅适用于州和地方政府，而不适用于联邦政府。

2. However, equal protection is applied to the **federal government through the due process clause of the 5th Amendment**.
通过《第五修正案》的正当程序条款，**平等保护也可以被适用于联邦政府**。

Example:

on equal protection principles, the Supreme Court found that a federal statute violated the Constitution when it refused to recognize same-sex marriages that were recognized as valid under applicable state law. The Court reasoned that if a state decided not to discriminate against such couples, the federal government had no business doing so.

因为结婚的权利是实质性正当程序中的一项重要的隐私权，所以当遇到这些问题的时候，平等保护原则也适用于联邦政府（比如对于同性结婚问题，联邦不能出台法律宣称同性婚姻无效）。

C. Classification Based on Race and National Origin 根据种族和国籍进行分类

1. Strict Scrutiny 严格审查标准

Strict scrutiny is the test used whenever the government discriminates against people on the basis of their race, or country/national origin.

政府基于种族和出生国（原国籍）对于个人的歧视适用严格审查标准。

2. How to Prove There is a Racial Classification? 如何证明存在种族分类？

a. The classification exists on the face of the law.

从表面上就能看出来因种族原因而产生分类 / 歧视。



Example 1:

In the 19th century, West Virginia had a law that said that only white men could serve on juries. The racial classification, for that matter, the sex classification was evident on the face of the law.

19 世纪，西弗吉尼亚州有一条法律规定，只有白人男性才能担任陪审员。种族分类，或者说性别分类，在该法律条文中显而易见。



Example 2:

Until Brown v. Board of Education in 1954, Southern states had laws that said that black children and white children had to attend separate public schools. The racial classification was evident on the face of those statutes, and they were declared unconstitutional.

在 1954 年“布朗诉教育委员会案”之前，南方各州的法律规定黑人儿童和白人儿童必须就读不同的公立学校。这些法规明显带有种族歧视的倾向，因此被宣布违宪。

b. If the law is **race-neutral on its face**, then proving a racial classification requires demonstrating **both discriminatory impact and discriminatory intent**.

如果从法律的表面看不出明显的歧视，那么需要证明同时存在“歧视的影响”以及“歧视的意图”才能证明存在对种族的分类。



Supreme Court Case: Washington v. Davis

最高法院案件：华盛顿诉戴维斯案

The District of Columbia Police Department administered a test to applicants for positions as police officers. The test measured verbal ability, vocabulary, and reading comprehension. A higher percentage of the black applicants than the white applicants failed the test. Respondents, unsuccessful black applicants, claimed the test constituted a violation of equal protection, because it had the effect of disproportionately disqualifying blacks for police service. Respondents did not allege discriminatory purpose on the part of the government. The District Court ruled against the Respondents.

哥伦比亚特区警察局对警官职位申请人进行了一项测试。该测试考察了语言能力、词汇量和阅读理解能力。黑人申请人的未通过测试比例高于白人申请人。被上诉人（未通过测试的黑人申请人）主张，该测试违反了平等保护原则，因为它导致黑人被不成比例地剥夺了担任警察职务的资格。受访者并未指控政府存在歧视性目的。地方法院判决被上诉人败诉。

The issue here is that whether the proof of the disproportionate effects of the qualifying exam sufficient to ground a finding that the exam unconstitutionally discriminated against the respondents.

问题在于，资格考试造成不成比例影响的证据是否足以构成对被上诉人构成违宪歧视的认定。

The Supreme Court held against the Respondents by saying that the Court has not embraced the proposition that a law can be a violation of equal protection on the basis of its effect, without regard for governmental intent. Disproportionate impact is not irrelevant, but it alone does not trigger the rule that racial classifications are subject to the strict scrutiny standard of review. The police force's efforts to recruit black police officers are evidence that the police department did not intentionally discriminate on the basis of race.

最高法院在判决中明确反对被上诉人的主张，指出法院从未认可过这样的观点：法律仅凭其实际效果就能构成对平等保护的违反，而无需考虑政府的立法意图。虽然不成比例的影响确实值得关注，但这并不能单独作为触发种族分类需接受严格审查标准的依据。警方招募黑人警员的举措，恰恰证明该部门并未基于种族进行蓄意歧视。



Note:

discriminatory use of peremptory challenges based on race denies equal protection. The Supreme Court though has said that if peremptory challenges are exercised on the basis of race, there is both discriminatory impact and intent.

民事诉讼或者刑事诉讼中的当事人可以不说明理由拒绝或者阻止某人充当本案的陪审员，法院即应更换给陪审员并召集另一陪审员，这种做法称为无因回避。在无因回避中，如果当事人是基于种族的原因提出更换要求的，是违反平等保护原则的。

3. How Should Racial Discrimination Benefiting Minorities be Treated?

如果种族歧视是基于为了少数人群提供好处而做出的，应该如何衡量？

a. **Strict scrutiny** is applied.

我们会进行严格的审查。

b. **Numerical set-asides** require clear proof of **past discrimination**.

对于枚举出的专用款项，其需要证明其设立是为了解决 / 针对过去曾存在的歧视问题，才可能合宪。



Supreme Court Case 1: JA Croson v. City of Richmond 1989

最高法院案例 1：1989 年 JA Croson 诉里士满市案

Richmond, Virginia set aside 30% of its public works monies for minority-owned businesses. The Supreme Court declared it unconstitutional, saying it wasn't a remedy for clearly proven past discrimination.

弗吉尼亚州里士满市将 30% 的公共工程资金拨给少数族裔企业。最高法院裁定该政策违宪，称其无法弥补过去明确存在的歧视。



Supreme Court Case 2: Untied States v. Paradise

最高法院案例 2：美国诉帕拉迪斯案

A federal district court in Alabama found that that Alabama state police engaged in intentional race discrimination in hiring and promotion. The remedy that was proposed was that every time a white was hired or promoted, an African-American had to be hired or promoted until the effects of the discrimination had been alleviated.

阿拉巴马州一家联邦地区法院裁定，阿拉巴马州警察在招聘和晋升过程中存在故意种族歧视。法院提出的补救措施是，每当一名白人被聘用或晋升，就必须聘用或晋升一名非裔美国人，直至歧视的影响得到缓解。

The Supreme Court held it constitutional saying that it was a remedy for clearly proven past discrimination.

最高法院裁定其符合宪法，称这是对过去明显歧视行为的一种补救措施。

The only case the Supreme Court recognized the numerical set-asides with clear proof of past discrimination that has not been overruled.

这是最高法院唯一认可数字配额预留的案例，前提是存在过往歧视的明确证据。更值得关注的是，该判例从未被推翻。



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